TITLE 41 - Public Lands

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TITLE 41

PUBLIC LANDS

CHAPTER 1. STATE LANDS

§1. Functions relative to state lands

A. The commissioner of administration of the division of administration or his designee, hereinafter in this Chapter referred to as the "commissioner", shall perform the functions of the state which relate to the administration and supervision of state lands, as provided by law. The commissioner may name a designee to perform certain of these functions as more specifically provided in this Chapter.

B. For purposes of this Title and any other provision of law, the terms "state land office" or "Register of the State Land Office" shall be deemed to refer to the commissioner or his designee.

Acts 1989, No. 282, §4, eff. June 27, 1989.

{{NOTE: SEE ACTS 1989, NO. 282, §5.}}

RS 41:2

Accounts and lists to be kept by the commissioner

§2. Accounts and lists to be kept by the commissioner

The commissioner shall:

A. Keep accounts of the sales of lands which were donated to the state by:

(1) Setting forth in the certificate issued therefor the section, parts of sections, township and range, district and parish, to whom and when sold, and for what price.

(2) Causing to be marked on the official plats or maps on file in his office the numbers of the certificates, which books and maps shall be bound and preserved as official records.

B. Prepare annually, on or before March first of each year, a descriptive list, by parish, of all lands sold during the preceding year, together with all data that may be afforded by his records.

Acts 1983, No. 705, §3, eff. Sept. 1, 1983; Acts 1989, No. 282, §4, eff. June 27, 1989.

{{NOTE: SEE ACTS 1989, NO. 282, §5.}}

RS 41:3

Proceeds of sale of warrants or public land

§3. Proceeds of sale of warrants or public land

All money arising from the sale of warrants or public land shall be paid by the purchaser to the state treasurer, on the warrant of the commissioner of administration. The state treasurer shall receive the money within forty-eight hours after the issuance of the warrant.

Acts 1983, No. 705, §3, eff. Sept. 1, 1983.

RS 41:4

Description of land or warrants in receipt

§4. Description of land or warrants in receipt

A. A description of the land or warrants shall be included in the order on the state treasurer to receive the money for the lands. No entry shall be made upon the books, maps, or other official record until the receipt of the state treasurer, also describing the land or warrants, has been submitted and filed in the office of the secretary or his designee.

B. Whoever violates the provision of this Section shall be fined five thousand dollars and shall be imprisoned for a term not more than ten nor less than two years.

Acts 1983, No. 705, §3, eff. Sept. 1, 1983.

RS 41:5

Receipt to purchaser

§5. Receipt to purchaser

The state treasurer shall deliver to the purchaser or his agent a receipt, which shall contain a correct description, by section, township and range, of the lands sold by the state. The state treasurer shall receive no extra compensation for this service.

Acts 1983, No. 705, §3, eff. Sept. 1, 1983.

RS 41:6

Issuance of patents

§6. Issuance of patents

The governor shall issue patents:

(1) For all lands sold, on presentation of the treasurer's receipt.

(2) For lands located by warrants, whenever he is satisfied that the lands have been legally sold and located.

Acts 1983, No. 705, §3, eff. Sept. 1, 1983.

RS 41:7

Annual list of lands entered or sold to be sent to parish assessors

§7. Annual list of lands entered or sold to be sent to parish assessors

The commissioner shall furnish, annually, on or before March first, to the assessors of each parish, the list of all the lands that may have been entered or sold during the preceding year, together with the names of the persons entering or purchasing them, in order that they may be assessed for taxes.

Acts 1989, No. 282, §4, eff. June 27, 1989.

{{NOTE: SEE ACTS 1989, NO. 282, §5.}}

RS 41:8

Fees of the commissioner

§8. Fees of the commissioner

The commissioner shall promulgate regulations establishing reasonable fees, not to exceed the cost of providing the services, for:

(1) Redemption certificates.

(2) Cancellation certificates.

(3) Original patents executed by the commissioner and the governor.

(4) Copies of official township plats, field notes, patents, and related matter.

(5) Each certification attached to copies of items listed in Paragraph (4).

(6) Copies of any other document pertaining to state lands.

Acts 1983, No. 705, §3, eff. Sept. 1, 1983; Acts 1989, No. 282, §4, eff. June 27, 1989.

{{NOTE: SEE ACTS 1989, NO. 282, §5.}}

RS 41:9

Disposition of fees collected

§9. Disposition of fees collected

All fees shall be collected and deposited into the state treasury.

Acts 1983, No. 705, §3, eff. Sept. 1, 1983.

RS 41:10

Right of appeal from decisions of the commissioner

§10. Right of appeal from decisions of the commissioner

The commissioner shall decide all conflicting claims of preference of right to any land granted to the state by acts of congress. After they have been decided by the commissioner and after he has assessed the land to the person first locating or settling thereon, the claimant aggrieved by the decision shall have the right, within six months after the decision of the commissioner, to appeal to the Nineteenth Judicial District Court.

Acts 1989, No. 282, §4, eff. June 27, 1989.

{{NOTE: SEE ACTS 1989, NO. 282, §5.}}

RS 41:11

Transcript or copy of proceedings

§11. Transcript or copy of proceedings

As soon as an application for an appeal is made to the commissioner he shall deliver to the party applying for the appeal a certified transcript or copy of all the proceedings had in his office relative to the conflicting claims. The party shall forthwith file the transcript in the office of the clerk of the parish in which the land is situated and give security for costs as in ordinary cases, and the matter shall be tried by the court de novo.

Acts 1989, No. 282, §4, eff. June 27, 1989.

{{NOTE: SEE ACTS 1989, NO. 282, §5.}}

RS 41:12

Filing of final judgment

§12. Filing of final judgment

As soon as a final judgment has been rendered, a certified copy of the judgment shall be filed in the office of the commissioner.

Acts 1989, No. 282, §4, eff. June 27, 1989.

{{NOTE: SEE ACTS 1989, NO. 282, §5.}}

RS 41:13

Listing of lands owned, leased, or rented by state or instrumentalities of state; subsequent acquisitions or alienations

§13. Listing of lands owned, leased, or rented by state or instrumentalities of state; subsequent acquisitions or alienations

A. The commissioner shall prepare and maintain in his office at all times and make available as a public record a listing which shall show the lands and improvements thereon and all royalty or mineral rights belonging to or under the control of the state, whether or not held directly in the name of the state or in the name of any state board, commission, department, or agency. Such listing shall clearly describe the land owned, leased or rented, or otherwise held or under the control of the state or its instrumentality, and shall show its location, acreage or other area, any improvements thereon, the date of acquisition and the value thereof, and such other information with regard thereto as may be required by rules and regulations of the commissioner.

B. Whenever any acquisition or alienation or other change in ownership or control of any land or immovable property or royalty or mineral rights is made with regard to any lands or improvements thereon, a report thereof shall be made to the commissioner within thirty days thereafter.

Acts 1989, No. 282, §4, eff. June 27, 1989.

{{NOTE: SEE ACTS 1989, NO. 282, §5.}}

RS 41:14

Conveyances of waterbottoms, ownership

§14. Conveyances of waterbottoms, ownership

No grant, sale or conveyance of the lands forming the bottoms of rivers, streams, bayous, lagoons, lakes, bays, sounds, and inlets bordering on or connecting with the Gulf of Mexico within the territory or jurisdiction of the state shall be made by the register of the state land office or by any other official or by any subordinate political subdivision, except pursuant to R.S. 41:1701 through 1714. Any rights accorded by law to the owners or occupants of lands on the shores of any waters described in this Section shall not extend beyond the ordinary low water mark. No one shall own any bottoms of lands covering the bottoms of waters described in this Section.

Acts 1985, No. 876, §2, eff. July 23, 1985; Acts 2018, No. 242, §2.

RS 41:15

Hunting on state land; restrictions; exceptions

§15. Hunting on state land; restrictions

A. No person shall construct or hunt from a permanent stand on state land. A permanent stand is a stand that is either a non-portable, freestanding structure or a stand that uses nails, screws, spikes, or other means to attach to a tree and which is not designed to be hand carried by one person nor to be removed daily. Any permanent stand may be removed and destroyed.

B. A portable stand may not be left on state lands unless the stand is removed from the tree or left in a non-hunting position. Each portable stand shall be legibly tagged with the owner's name, address, and phone number.

C. The provisions of this Section shall not apply to land under the jurisdiction of the Louisiana Wildlife and Fisheries Commission. The use of such land shall be regulated by the Louisiana Wildlife and Fisheries Commission in accordance with the provisions of Title 56 of the Louisiana Revised Statutes of 1950. The Louisiana Wildlife and Fisheries Commission may promulgate rules and regulations under the provisions of the Administrative Procedure Act for the implementation of the provisions of this Section.

D. Violation of any provision of this Section or rules adopted pursuant to this Section shall constitute a class two violation punishable as provided in R.S. 56:32.

Acts 2005, No. 259, §1; Acts 2006, No. 842, §1.

RS 41:16

Preservation of public lands for hunting, fishing, and recreational opportunities

§16. Preservation of public lands for hunting, fishing, and recreational opportunities

A. The commissioner shall exercise his authority to manage public lands in a manner to support, promote and enhance public hunting, fishing, and recreational opportunities to the extent authorized by law. The commissioner shall recognize, to the extent authorized by law, hunting, fishing, and recreational opportunities as primary uses of public lands that are available for public hunting, fishing, and recreational opportunities. The commissioner shall make land management decisions based on criteria that include public hunting, fishing, and recreational opportunities as a primary consideration.

B. Before March first of each calendar year, the commissioner shall submit to the Senate Committee on Natural Resources and the House Committee on Natural Resources and Environment a written report containing a listing of all acreage managed by the commissioner that is available for public hunting, fishing, and recreational opportunities and a listing of all acreage that was lost or gained for such purposes.

Acts 2006, No. 561, §1; Acts 2008, No. 580, §5.

RS 41:51

Surveys and plats

CHAPTER 2. SURVEYS AND RECORDS OF PUBLIC LANDS

§51. Surveys and plats

The governor may direct the Department of Transportation and Development:

(1) To make, from time to time, surveys of all unsurveyed lands belonging and that may hereafter belong to this state and to subdivide them into townships, sections and other proper subdivisions that may be necessary for their identification, description, entry and sale. In the event the Department of Transportation and Development cannot timely cause a requested survey to be made, then the register may on his own initiative cause a survey or surveys to be made of state lands which survey shall be subject to approval by the secretary of the Department of Transportation and Development. The cost of such a survey shall be borne by the register of the state land office.

(2) To prepare duly certified maps and plats of the lands and to file them in the state land office as soon as completed.

Amended by Acts 1960, No. 569, §1; Acts 2018, No. 242, §2.

RS 41:52

Records transferred to this state by the former office of the United States Surveyor General of the District of Louisiana

§52. Records transferred to this state by the former office of the United States Surveyor General of the District of Louisiana

The maps, books, records, field notes and documents appertaining to land title in this state which were transferred to this state by the former office of the United States Surveyor General of the District of Louisiana and accepted by this state by Act No. 6 of 1910 and Act No. 183 of 1928, are public records and are a part of the permanent archives of the state land office.

RS 41:53

Federal authorities to have access to records

§53. Federal authorities to have access to records

The United States authorities shall have free access to the records at all times.

RS 41:54

Place for deposit; custodian

§54. Place for deposit; custodian

The records shall be deposited and kept in a fire proof vault or room, provided by the register of the state land office, who may appoint a custodian thereof, under his control.

CHAPTER 3. VACANT AND UNAPPROPRIATED LANDS

§91. Grant of vacant and unappropriated lands; lease of nonnavigable water bottoms

A. In order to procure the settlement or resettlement of the vacant and unappropriated lands belonging to the state, the register of the state land office, when directed to do so by the governor, shall grant, for and on behalf and in the name of the state of Louisiana, to any person, or any agency, political subdivision or public corporation of the state, or any agency of the United States, corporate or otherwise, created under authority of Congress, any of the vacant and unappropriated lands belonging to the state.

B. When deemed in the interest of the state and upon approval of the governor, the register of the state land office is authorized to grant long-term leases with reasonable rates for the use of the water bottoms and air space above the water of any waters of the state which have been declared nonnavigable by an Act of Congress, to any public agency, political subdivision, public corporation or municipality, or to any private person who is a riparian owner with respect to the water bottoms and air rights to be leased, provided that the lease thereof has first been approved by the local governing authority, for the public or private development thereof. Nothing contained in this Subsection shall be deemed in any way to alter or abrogate the state's claim to mineral rights in the leased areas, or to entitle such lessee to any part of such mineral rights.

Amended by Acts 1976, No. 263, §1.

RS 41:92

Contracts; reservation of mineral rights

§92. Contracts; reservation of mineral rights

The grants shall be evidenced by contracts and may be upon such terms and conditions as the register of the state land office may deem to be to the best interest of the state, and shall be subject to approval of the governor. The contracts shall provide that default on the part of the grantee in the performance of any term or condition thereof shall operate ipso facto and without a putting in default by the state, as a cancellation of the grant. All mineral rights on any lands granted under this Chapter shall be reserved to the state.

RS 41:93

Patents

§93. Patents

Patents may be issued, in accordance with law, to any grantee for any land, upon forms to be prescribed by the register of the state land office upon the certificate of the governor and the register of the state land office that the contract has been fully complied with.

RS 41:94

Lands acquired at tax sale

§94. Lands acquired at tax sale

This Chapter shall not apply to lands adjudicated to the state at tax sale, until the expiration of three years from date of recordation of the tax deed evidencing the adjudication.

RS 41:95

Inventory and reports

§95. Inventory and reports

The register of the state land office, shall, when directed to do so by the governor, make an inventory of the lands, file reports and furnish any information relative to the lands, as may be required by the governor.

RS 41:96

Withdrawal from sale or entry of certain lands

§96. Withdrawal from sale or entry of certain lands

The governor shall withdraw from sale or entry any of the vacant and unappropriated public lands belonging to the State of Louisiana, now existing or hereafter acquired by accretion or otherwise, located south of the following lines and described and bounded as follows:

All of that area bounded on the east by the axis of the Mississippi River to the head of the passes at the mouth of the Mississippi River bounded on the northwest by a line, commencing at Cubits Gap Lighthouse and running south thirty-five degrees (35°) west (true bearing) through Cubits Gap Lighthouse, latitude 29°11'36.70" north, longitude 89°15'53.75" west; bounded on the northeast by a line beginning on and at the axis of the Mississippi River at a point, north of the head of the passes of the Mississippi River, and at the juncture of the channels of the Mississippi River and Pass A L'Outre, and running along and through the channel of Pass A L'Outre, along and through the channel of the North Pass, north of Pass A L'Outre Lighthouse to deep water in the Gulf of Mexico; and bounded on the south by deep water in the Gulf of Mexico, all as described on the copy of the United States Coast and Geodetic Survey Chart No. 194, to be identified with this Chapter by the signatures to be thereto affixed, of and by the Speaker of the House of Representatives, the president of the Senate and the Governor of the State of Louisiana, and to be filed for future reference in the office of and by the Secretary of State.

RS 41:97

Lands necessary for navigation purposes

§97. Lands necessary for navigation purposes

The lands so withdrawn from sale or entry are necessary for use in connection with the maintenance of the navigability of the channels at the mouth of the Mississippi River and may be used for those purposes.

RS 41:98

Withdrawal from sale or entry of mineral lands

§98. Withdrawal from sale or entry of mineral lands

The governor may withdraw from sale or entry any of the vacant and unappropriated public lands and lake beds or bottoms belonging to the state, whenever in his opinion, they appear to be more valuable for mineral than for any other purpose, and he may restore to sale or entry all withdrawn lands, at his discretion.

RS 41:131

Application to enter or purchase

CHAPTER 4. ENTRY AND SALE OF PUBLIC LANDS

PART I. IN GENERAL

§131. Application to enter or purchase

When any person desires to enter or purchase lands belonging to the state, including public lands donated by congress to the state of Louisiana known as swamp and overflowed lands, internal improvements, indemnity lands, or dried lake lands, or to similar lands of any levee board thereof, and properties adjudicated to the state for nonpayment of taxes during tax years 1880 through 1973, he shall make application to purchase, and deposit with the register of the state land office, or in the case of lands of any levee board, with the president of the levee board, an amount determined by the register of the state land office to be sufficient to cover the expense of advertising as evidence of good faith. Should the applicant at the sale provided for in this Chapter fail to purchase the land, then the money so deposited shall be returned to him; provided that should no one at the sale bid up to the minimum price stipulated in this Chapter, then the money shall be retained to pay the expense of the sale.

Amended by Acts 1960, No. 568, §1; Acts 2010, No. 282, §1.

RS 41:132

Information to be secured as to value of land

§132. Information to be secured as to value of land

On receipt of any application to purchase land so subject to sale, accompanied with the required deposit, the register of the state land office, or the president of the levee board, may require the parish surveyor of the parish wherein the lands are situated to furnish full information as to the character of the timber on the land, the quantity and kind thereof, or any other information affecting the value of the land. The register or the president, as the case may be, may also consult the assessment roll as to the assessment of lands of like character adjacent to the lands for which application is made and he may call in the services of timber experts in order to obtain reliable means of arriving at the fair value of the lands. The information so obtained shall be placed of record in his office and shall constitute a part of the permanent archives of his office.

RS 41:133

Advertisement

§133. Advertisement

The register of the state land office or the president of the levee board, as the case may be, shall cause to be published for thirty days in the official journal of the state and in the official journal of the parish where the land is located, an advertisement setting forth the description of the land, the time, place, and terms of the sale, and in the case of adjudicated properties, the name of the tax debtor and the year for which taxes were not paid. He may also require that the land shall be sold in lots of forty acres. In no case shall lands be sold in tracts exceeding quarter sections.

Acts 2010, No. 282, §1.

RS 41:134

Sale; minimum prices

§134. Sale; minimum prices

A. The land so advertised shall be sold by the sheriff of the parish where the land is located. The sale shall be at the principal door of the court house between the hours of eleven o'clock A.M. and four o'clock P.M. and shall be to the last and highest bidder.

B. The register shall fix the minimum price in all advertisements under this Chapter based on an appraisal of the property to be made by a person who shall be appointed by the register. The register shall pay the appraiser a reasonable compensation to be fixed by the register who shall be reimbursed for such compensation out of the moneys from the sale of such property. Based upon the appraisal thus made the register shall determine and fix a fair and reasonable price which shall constitute the minimum price which will be accepted. Nothing less than such minimum price shall be received for the property at the sale.

C. The sheriff making the sale shall make a provisional deed to the last and highest bidder, who has complied with his bid by paying the price of the adjudication. Upon surrender of this provisional deed to the register of the state land office or the president of the levee board, as the case may be, the holder thereof shall be entitled to a patent signed by the register or the president of the levee board, and the governor of the state.

D. Notwithstanding any provisions of law, or this Section, when the register of the state land office determines that the disposition of state-owned immovable property by sheriff sale is not in the best interest of the state, the register of the state land office may conduct such a sale by utilizing sealed bids. The sale may be confected to the highest bidder at a price not less than ninety percent of the appraised value; however, prior to such a sale, the register of the state land office shall advise the House Committee on Natural Resources and Environment and Senate Committee on Natural Resources of its reasons for utilizing sealed bids to dispose of the property.

Amended by Acts 1960, No. 568, §1; Acts 1987, No. 887, §1; Acts 2008, No. 580, §5; Acts 2010, No. 282, §1.

RS 41:135

Disposition of proceeds of sale

§135. Disposition of proceeds of sale

A. The sheriff making the sale shall deduct therefrom the expenses of advertising and his commission which shall be two percent of the amount of the bid, provided that this commission shall not exceed fifty dollars for any one day's adjudication. Except as otherwise agreed by the holders of statutory impositions and governmental liens, all proceeds from the sale of adjudicated property after deduction of the costs of the sale shall be paid pro rata to those holders, and except for the sale of property belonging to the Board of Commissioners of the Orleans Levee District, the balance of the monies derived from the sale shall be forwarded to the register of the state land office for deposit in the state treasury without delay, together with a certified statement showing the amount of the bid, the expenditure for advertising, and the amount withheld by him as commission. The balance of the monies derived from the sale of property belonging to the Board of Commissioners of the Orleans Levee District shall be forwarded directly to the Board of Commissioners of the Orleans Levee District for deposit in that board's bank accounts without delay, together with a certified statement showing the amount of the bid, the expenditure for advertising, and the amount withheld by him as commission. The levee district shall not sell any property located in the Bohemia Spillway.

B. The sheriff shall at the same time forward to the register of the state land office a proces verbal of the sale wherein he shall give a correct description of the property sold with the recital of the acts performed by him in effecting the sale, the amount of the purchase price received, the expense of advertising, the amount of his commission, and the amount in cash being forwarded to the register of the state land office.

Acts 1989, No. 511, §1; Acts 1997, No. 592, §1, eff. July 3, 1997; Acts 2010, No. 282, §1.

RS 41:136

Expenses

§136. Expenses

The newspapers publishing the advertisement of the sale of land shall receive therefor not more than the legal rate of advertising. All bills for expenses incurred by the register of the state land office, or the president of the levee board, shall be paid from the proceeds of the land sold, when realized.

Amended by Acts 1960, No. 568, §1.

RS 41:137

Sale, exchange, or lease of state lands; research and development park

§137. Sale, exchange, or lease of state lands; research and development park

A. Notwithstanding any other provision of law to the contrary, the state, or any of its departments, agencies, or boards, may sell, lease for a term of up to ninety-nine years, exchange, or otherwise dispose of any real property, or portions thereof, to political or public corporations, to municipalities, to other state agencies, departments, or boards, or to private persons, without the necessity of advertisement or bid, if the property sold, exchanged, or leased is dedicated for the purpose of creating a research and development park in cooperation with the Board of Supervisors of Louisiana State University and Agricultural and Mechanical College, Board of Supervisors of Southern University and Agricultural and Mechanical College, or the Board of Trustees for State Colleges and Universities, and the governing authority of the appropriate municipality or parish.

B. The assumption of the obligation by the vendee or lessee of the property to establish, operate, and manage a research and development park in accordance with restrictions and covenants mutually agreed upon between the state, or its department, agency, or board, and the lessee or vendee shall constitute valid consideration to the state for the sale, lease, or exchange of the dedicated property.

Acts 1992, No. 110, §1.

RS 41:138

Restrictions in sale of state lands to levee or drainage districts

§138. Restrictions in sale of state lands to levee or drainage districts

Notwithstanding any other provisions of law to the contrary, no land within the boundaries of any levee district or levee and drainage district, or any land that may in the future be included within the boundaries of any levee district or levee and drainage district, that presently belongs to or that may hereafter belong to the state shall be conveyed to a levee district or levee and drainage district or to the governing authorities of such districts unless such land is needed for immediate use for the construction of a levee or other flood control measure. In the event any such land is conveyed to a levee or levee and drainage district for the purpose of constructing a levee or other flood control measure and it is later found that all or a part of such land is not needed for such purpose, the portion of the land not needed shall immediately revert to state ownership and control.

Acts 1958, Ex.Sess., No. 12, §1.

RS 41:139

Notice to local governing authorities of intention to dispose of real property

§139. Notice to local governing authorities of intention to dispose of real property

The state or any of its boards, commissions, departments or agencies, prior to disposing of any real property held by it, except buildings, shall give notice to the governing authority of the parish and/or municipality in which the property is located. The notice shall be in writing and shall advise such authority of the intention to dispose of the property and shall include a description of the property, the manner in which such property shall be disposed of, and the terms and conditions upon which such disposition is proposed to be made; provided, however, that publication of such notice in the official journal of the parish wherein the property is located shall constitute the required written notification.

Acts 1964, No. 119, §1.

RS 41:140

Sales of immovable property by state agencies

§140. Sales of immovable property by state agencies

A. When any state agency as defined in R.S. 39:321(A) designates immovable property under its jurisdiction to be nonessential to the efficient operation of the agency, the secretary or other administrative head shall transfer the property to the division of administration hereinafter referred to as the division.

B. For any immovable property designated to be nonessential, the division shall prepare a land management evaluation report setting forth recommendations for the best use or disposition of the property. A copy of this report shall be filed with the House Committee on Natural Resources and Environment and Senate Committee on Natural Resources and delivered to the member of the House and Senate in whose district the immovable property is located.

C. Unless approval is received from the House Committee on Natural Resources and Environment and Senate Committee on Natural Resources within ninety days after receiving notice, the division shall not initiate implementation of its recommendation for best use or disposition of the property.

D. The division shall conduct any sale of state-owned property under the provisions of R.S. 41:131 et seq. or R.S. 47:2189, whichever is applicable, except as otherwise provided as follows:

(1) The division may obtain appraisals from up to three Louisiana state-certified appraisers to ascertain the current value of the property. The appraisals shall be obtained within six months prior to the conducting of the sale.

(2) In lieu of public auction or sealed bids and when it is in the best interest of the state, the division may contract under rules and regulations adopted by the division for the services of a licensed real estate broker to conduct the sale of the property. The term of the contract shall not exceed six months. A minimum sale price and a time period within which the sale is to occur shall be specified by the division as conditions of the contract. Payment shall not exceed five percent of the sale price and shall be contingent upon completion of the sale in accordance with the terms and conditions of the contract. The division shall have the right to cancel the contract at any time for any reason prior to the sale and conduct the sale as otherwise provided by law.

(3) No member of the legislature shall perform the services of appraiser or real estate broker authorized by this Subsection.

E. The division is authorized to adopt and promulgate rules and regulations in accordance with the Administrative Procedure Act, R.S. 49:950 et seq., to carry out the provisions of this Section. These rules shall, at a minimum, contain criteria and definitions for the determination of what is nonessential property and the best use of said property, and the procedure for transfer of property from agencies to the division.

F. The division shall submit an annual report to the House Committee on Natural Resources and Environment and Senate Committee on Natural Resources, detailing the amount of property sold, the agencies from which such property came, the cost of the sale, the net proceeds from such sale, and an updated inventory of immovable property still belonging to the state and which agency possesses the property.

Acts 1989, No. 282, §4, eff. June 27, 1989; Acts 1997, No. 216, §1, eff. June 16, 1997; Acts 2008, No. 580, §5.

NOTE: See Acts 1989, No. 282, §5.

RS 41:151

Receipt of donation of immovable property by state agencies

PART II. RECEIPT OF DONATION OF IMMOVABLE PROPERTY

§151. Receipt of donation of immovable property by state agencies

A. Except as otherwise provided by law, whenever the state is offered donation of immovable property, the commissioner of administration shall evaluate the offer of donation and shall make a determination of whether or not it is in the best interest of the state to accept the donation.

B. If the commissioner determines that acceptance of the donation is not in the best interest of the state, he shall notify the potential donor that the donation is refused, and he shall notify, on a quarterly basis, the House Committee on Natural Resources and Environment and the Senate Committee on Natural Resources of the offer and the refusal and the reasons therefor, unless the potential donor has specifically requested in writing that the offer remain confidential if not accepted. If the commissioner determines that acceptance of the donation is in the best interest of the state, he shall proceed with negotiation of the terms and conditions of the donation.

C. Prior to final acceptance by the commissioner, all donations of immovable property shall receive the approval of the House Committee on Natural Resources and Environment and the Senate Committee on Natural Resources. After the donor and the commissioner have agreed on the terms and conditions of the donation, the commissioner shall present to the House Committee on Natural Resources and Environment and the Senate Committee on Natural Resources a report that contains a description of the property that is to be donated to the state, the evaluation of the donation that was conducted by the division of administration to determine that acceptance of the donation is in the best interest of the state, and the terms and conditions of the donation that have been negotiated by the commissioner of administration. The report shall be submitted to each committee at the committee's office in the state capitol by certified mail with return receipt requested or by messenger who shall obtain a signature for receipt. The return receipt or the messenger's receipt shall be proof of receipt of the report by the committee.

D. Within thirty days after the report required in Subsection C of this Section is received by the committees, the committees shall meet in order to review the report. The committees may meet jointly or separately to conduct hearings on receipt of donated immovable and movable property. If the committees meet jointly, a quorum of each committee shall be required to take action within thirty days, and a motion shall receive the favorable vote of a majority of those present for each committee in order to be adopted. At the hearing, the committee or committees shall evaluate the terms and conditions of donation negotiated by the commissioner of administration, determine if the donation and the terms and conditions of the donation are acceptable or unacceptable, and review and evaluate whether or not it is in the best interest of the state to accept the offered donation.

E. If either committee determines that the donation or the terms and conditions of donation are unacceptable, it may disapprove the donation. Either committee may also recommend changes to the donation and to its terms and conditions, although such recommendations shall not be binding on either the donor or the commissioner. If either committee disapproves the donation, the committee so doing shall notify the commissioner of its decision in writing and shall include a summary of the determinations and recommendations made by the committee during the hearing. The commissioner may use those determinations and recommendations in his efforts to renegotiate the terms and conditions of donation. If there is a successful renegotiation of the terms and conditions of donation, the commissioner may again submit a report to the committees as required in Subsection C of this Section.

F. Upon approval by both committees or passage of sixty days during which time neither committee disapproves the donation, whichever occurs first, the commissioner may accept the donation and its terms and conditions on behalf of the state.

G. The division of administration shall adopt and promulgate rules and regulations in accordance with the Administrative Procedure Act, R.S. 49:950 et seq., to carry out the provisions of this Section. Notwithstanding provisions of the Administrative Procedure Act to the contrary, the rules and regulations shall be submitted to the House Committee on Natural Resources and Environment and the Senate Committee on Natural Resources for legislative oversight.

H. The division of administration shall submit to the House Committee on Natural Resources and Environment and the Senate Committee on Natural Resources an annual report detailing the amount of immovable property received by the state through donation, the estimated value of the property received through donation, and the agencies which received such property.

Acts 2003, No. 262, §1, eff. June 10, 2003; Acts 2008, No. 580, §5.

RS 41:171

To 176 Repealed by Acts 1960, No. 568, 2

PART II. PRE-EMPTION AND PRE-ENTRY RIGHTS

§171. §§171 to 176 Repealed by Acts 1960, No. 568, §2

RS 41:211

Repealed by Acts 1960, No. 568, 2

PART III. SWAMP, OVERFLOW AND SEA MARSH LANDS

§211. §§211, 212 Repealed by Acts 1960, No. 568, §2

RS 41:251

To 253 Repealed by Acts 1960, No. 568, 2

PART IV. INTERNAL IMPROVEMENT AND SWAMP INDEMNITY LANDS AND SCRIP

§251. §§251 to 253 Repealed by Acts 1960, No. 568, §2

RS 41:291

To 294 Repealed by Acts 1960, No. 568, 2

PART V. LAKE BOTTOMS AND ISLANDS

SUBPART A. LAKE BOTTOMS

§291. §§291 to 294 Repealed by Acts 1960, No. 568, §2

RS 41:331

To 337 Repealed by Acts 1960, No. 568, 2

SUBPART B. ISLANDS AND BEDS OF BODIES OF WATER

§331. §§331 to 337 Repealed by Acts 1960, No. 568, §2

RS 41:381

Refund of purchase price in event of invalid sale

PART VI. REFUNDS

§381. Refund of purchase price in event of invalid sale

Every person, or his legal representatives who is the purchaser from the state of a tract of land, which had actually and immediately been located by the state and which is or may be void by reason of a prior sale thereof or by any valid right of pre-emption, or for want of title thereto in the state, shall be entitled to a repayment of any sum of money paid for the tract of land, on making proof to the satisfaction of the Register of the State Land Office that the land was erroneously sold by the state. The register may draw a warrant on the State Auditor for the repayment of this money.

RS 41:382

Re-transfer of land to state and return of warrant

§382. Re-transfer of land to state and return of warrant

Before the money is refunded, the party applying must deposit a duly executed transfer to the state of the tract purchased, together with the warrant under which the selection or location was made.

RS 41:421

Recovery by state for illegal or excessive entry of swamp lands

PART VII. ILLEGAL AND FRAUDULENT ENTRIES

§421. Recovery by state for illegal or excessive entry of swamp lands

Whenever the governor is satisfied from information received, that swamp lands of the state, not subject to tidal overflow, have been illegally and fraudulently entered by private persons or corporations and sold by the state for a price less than one dollar and twenty five cents per acre, or for a price authorized by law, but in a quantity in excess of six hundred and forty acres, he may order the institution of proceedings for the recovery of all such lands in excess of six hundred and forty acres, for the value of timber taken therefrom, or for damage thereto and waste thereon.

RS 41:422

Certified abstracts

§422. Certified abstracts

The Register of the State Land Office, when requested to do so by the governor, shall prepare from the records of the state land office and deliver to the district attorney of the parish wherein the lands are located, certified abstracts of such lands as may be designated by the governor, as swamp lands illegally and fraudulently entered by private persons or corporations and sold by the state. The abstracts shall show the particulars of each sale or entry, giving the date, price per acre, number of acres entered and sold with full description of the lands by township, range, section or fraction of sections. The abstracts shall also include the name of the person entering or purchasing, and date and number of certificate or patent, if issued, with copy of application to purchase or enter and with copy of the affidavit and proof submitted therewith. The register may charge the state with the cost of the abstract.

RS 41:423

Proceedings

§423. Proceedings

On receipt of the abstract, the district attorney shall, without delay, institute suit against the claimants or possessors for the recovery of the lands, for the value of such timber as may have been taken therefrom, and for the damage to the lands or the timber thereon whether due to waste or otherwise; and he may sue out such injunctions, sequestrations, or other conservatory process as may be necessary to protect the interests of the state.

RS 41:424

Suits in name of state

§424. Suits in name of state

All suits or process shall be in the name of and for the use and benefit of the state, and shall be issued and served by the proper officials without advance of costs, or security therefor.

All suits shall be prosecuted to judgment and final execution; and in cases where suits have already been instituted the district attorney shall prosecute them to final judgment and execution.

RS 41:425

Compensation of officers and of district attorney

§425. Compensation of officers and of district attorney

The state shall make provision for the compensation of the officers of the court and the state land office for their services under this Part in those cases where judgment may be rendered adverse to the state. Where judgment is rendered in favor of the state the parties cast shall be liable for all costs of court. For his compensation the district attorney shall receive such an amount as may be fixed by the attorney general and the governor.

RS 41:426

Records and maps to show lands recovered

§426. Records and maps to show lands recovered

The lands recovered shall be placed upon the official records and maps of the state land office as lands belonging to the state, and copies of the final judgment decreeing them to be the property of the state shall be kept on file and of record in the office and shall so remain as muniments of title to the lands.

PART VIII. CONTEST OF ENTRIES

§461. Contest of entries

In all cases where lands belonging to the state are entered under any of the laws requiring their settlement and cultivation as a part of the consideration received or to be received by the state, and particularly where the entries were made under the homestead laws, the graduation laws, or the settlement and cultivation laws, any person or persons desiring to acquire title to them, or any part thereof, and who is otherwise lawfully qualified to acquire them, may contest the entry, and if successful may acquire title to the lands covered in the manner following:

(1) He shall file a written notice of contest in the state land office describing the entry by number, date, and the name of the enterers and the land by section, township and range, or other proper description, and setting forth the facts constituting the alleged invalidity of said entry.

(2) The notice shall be supported by the affidavit of the contestant and two witnesses.

(3) On filing the notice with the Register of the State Land Office on the payment of two dollars and fifty cents for each entry so contested to cover the cost thereof, except that of the services of notices of contest as hereafter provided.

(4) The Register shall issue his notices to the enterer, and shall deliver them to the contestant or his attorney of record.

(5) The notice shall substantially state the facts, the ground of contest, and that on a day to be therein fixed, the parties will be heard in person or by counsel, with such proof as either may adduce, under the principles and rules of evidence applicable and now in force in like contests in the land offices of the United States.

RS 41:462

Hearing by register

§462. Hearing by register

On the day fixed for the trial of the contest and in as expeditious a manner as may be consistent with justice the register shall hear the evidence and the arguments, and shall decide the entries, valid or invalid, and shall affirm or cancel them accordingly. The decision shall be final so far as the executive department is concerned, unless an appeal is taken under existing laws. If the entry is invalid and is cancelled, the register shall notify the parties to the contest, or their attorneys.

RS 41:463

Contestant's rights where entries are declared invalid

§463. Contestant's rights where entries are declared invalid

For a period of sixty days after an entry has been declared invalid and cancelled, the contestant shall have the sole right, exclusive of all other persons, to enter any or all of the lands under any of the laws then in force, in accordance with all the limitations, conditions and requirements of the laws as to quantity, price or acts of settlement and cultivation; provided that none of the provisions of this Part shall apply to any land for which the state has issued or may at the time of filing contest have issued a patent. The practice, forms and modes of proceeding under this Part shall conform so far as consistent herewith, and so far as locally applicable to the established practice, forms and modes of proceeding in like cases now in force in the General Land Office of the United States.

RS 41:464

Contestant's rights to lands not then subject to entry

§464. Contestant's rights to lands not then subject to entry

If, upon the termination in favor of any contestant of a contest brought under this Part, the land or any part thereof involved therein is not then lawfully subject to entry by the contestants, they shall in like manner have the exclusive right to require title thereto, as heretofore provided, within six months after the land becomes liable to legal disposition, of which fact the said register shall notify him or his attorney of record by mail or otherwise.

CHAPTER 5. HOMESTEADS

PART I. UNAPPROPRIATED PUBLIC LANDS

§501. Persons entitled to make entry; quantity of land

A. Every person who is the head of a family, or has reached the age of twenty-one years and is a citizen of this state may enter one quarter section or a less quantity of the unappropriated public lands of the state, to be located in a body in conformity with the legal subdivisions of the public lands; provided that no lands shall be subject to homestead entry or purchase that is more valuable for gas, oil or minerals.

B. Any person owning and residing on lands may enter, under the provisions of this Part, other lands lying contiguous to his land which shall not, with the land so already owned and occupied, exceed in the aggregate, one hundred and sixty acres.

C. No person who is the owner of more than one hundred and sixty acres of land in any state or territory shall acquire any rights under this Part.

RS 41:502

Affidavit

§502. Affidavit

A. Any person applying to enter land under the provisions of this Part shall first make and subscribe an affidavit:

(1) That he is the head of a family or has reached the age of twenty-one years and is a citizen of this state;

(2) That the application is made honestly and in good faith for the purpose of actual settlement and cultivation and to obtain a home for himself and not for speculation;

(3) That the application is made for his own use and benefit and not directly or indirectly for the use or benefit of any other person, corporation or syndicate, to give them the benefit of the land or any part thereof or the timber thereon.

B. Upon filing the affidavit with the Register of the State Land Office and the payment of ten dollars the applicant may enter the amount of land specified, and the register shall issue to the person his receipt therefor, which receipt shall be dated and numbered and shall describe the land so entered.

Amended by Acts 1960, No. 50, §1.

RS 41:503

Sale or incumbrance prior to issuance of patent

§503. Sale or incumbrance prior to issuance of patent

No person entering land under the provisions of this Part may sell, alienate or encumber the lands so entered prior to issuance of patent therefor except for school, church or cemetery purposes, or for right of way for railroads, telephone or telegraph lines, public roads, oil or gas pipe lines, or canals, ditches or conduits for irrigation or drainage through the lands.

RS 41:504

Conditions for issuance of patent

§504. Conditions for issuance of patent

No patent shall issue for any lands entered under the provisions of this Part until after the expiration of five years from the date of the entry. The person making the entry or in case of his death his heirs or devisees shall be entitled to a patent for the land so entered if, at the expiration of the five year period or at a time within two years thereafter he proves by his affidavit and the affidavits of two credible witnesses, taken separately, that he has resided upon and cultivated the land for the term of five years immediately succeeding the date of entry, that no part of the land has been alienated or encumbered, except as provided in R.S. 41:503 and that he has paid to the register of the state land office a fee of five dollars. In case of the death of a homesteader it shall not be necessary for his widow or heirs to prove actual residence upon the land after the date of death, but she shall show continuous cultivation and improvements for the full period of five years from date of entry. Provided that any entry made prior to 1888 and the land described therein has been assessed upon the tax rolls and the taxes thereon paid for a period of more than fifty years subsequent to the date of entry, shall be prima facie evidence that all the conditions and provisions of the law have been complied with and a patent shall issue covering the entry upon the payment of the fee herein provided.

Amended by Acts 1950, No. 428, §1.

RS 41:505

Final proof

§505. Final proof

A. Any person desiring to submit final proof under the provisions of R.S. 41:504 shall first file a written notice of his intention to make such proof with the Register of the State Land Office. The notice shall contain the date and number of the register's receipt, a description of the land and the names and postoffice addresses of four neighbors, two of whom must appear as witnesses, to make the proof.

B. The register shall then cause to be published for a period of thirty days in a newspaper to be by him designated as the paper published nearest to the land, a notice containing the date and number of the receipt, description of the land, names and addresses of the witnesses, the time and place and the name and official designation of the officer before whom proof is to be made.

C. The proof of publication shall be the affidavit of the publisher or foreman of the newspaper with a printed copy of the notice attached.

D. The applicant shall deposit with the register a fee of ten dollars to cover the cost of publication, or a receipt from the publisher that the fee has been paid to him in advance.

Amended by Acts 1960, No. 50, §2.

RS 41:506

Fees for oaths, affidavits and proofs

§506. Fees for oaths, affidavits and proofs

All oaths, affidavits or proofs required under this Part shall be made before the Register of the State Land Office or before any officer of the parish in which the land is situated who is authorized to administer oaths and who uses a seal. Officers, other than the register, may charge a fee of two dollars for preparing and attesting applications and affidavits for any entry under this Part and a fee of four dollars for preparing final proofs and attesting them.

RS 41:507

Disposition of fees

§507. Disposition of fees

The Register of the State Land Office may turn into the state treasury, and the state treasurer may receive, the fees received under the provisions of this Part.

RS 41:508

Liability for debts

§508. Liability for debts

No lands acquired under the provisions of this Part shall ever become liable for the satisfaction of any debt contracted prior to issuance of patent therefor.

RS 41:509

Reversion to state; preference rights of person filing charges

§509. Reversion to state; preference rights of person filing charges

If, at any time after filing of the affidavit required by R.S. 41:502, and before the issuance of patent therefor, it is proved to the satisfaction of the Register of the State Land Office, after due notice to the homesteader or his legal representatives, that the homesteader failed to establish residence on the land so entered for six months after entry, or has changed his residence therefrom for a period of six months at any time after filing his affidavit and before the expiration of the period of five years residence required by this Part, or that he swore falsely to any material fact in his affidavit or final proof, then, the land shall revert to the state. All appeals from the decisions of the register in such cases shall lie to the district court of the parish in which the lands are situated and shall be tried de novo. The person filing charges against an entryman under this Section, and prosecuting the case to a successful conclusion shall have a preference right of sixty days from final judgment in which to file his application for the land.

RS 41:510

Homestead by discharged veterans; deduction of service time

§510. Homestead by discharged veterans; deduction of service time

Any honorably discharged veteran of World War II may homestead land under the provisions of R.S. 41:501 through 509, and the time served in the armed service of the United States in time of war shall be deducted from the time required to perfect title; provided that no patent shall issue until the entryman has resided upon, improved and cultivated his homestead for a period of at least one year, and provided further that any such patent when issued shall expressly reserve all of the mineral rights in the lands so patented to the state of Louisiana, in pursuance of Article IV, Section 2 of the Constitution.*

Acts 1958, No. 444, §1.

*Reference is to 1921 Constitution; see, now, Const. Art. 9, §4.

RS 41:511

Death of homesteader while in service

§511. Death of homesteader while in service

In every case in which a homesteader under R.S. 41:501 through 509 was inducted into the armed services after his entry was allowed and died in service, his widow, if unmarried, or in case of her death or marriage, then his minor orphan children or his or their legal representatives, may proceed forthwith to make final proof upon the land so held by the deceased soldier and settler, and the death of such soldier while engaged in the service of the United States shall, in the administration of the homestead law, be construed to be equivalent to a performance of all requirements as to residence and cultivation for the full period of five years; and upon proof produced to the register of the land office by the widow, if unmarried, or in case of her death or marriage, then his minor orphan children or his or their legal representatives, that the applicant for patent is the widow, if unmarried, or in case of her death or marriage, his orphan children or his or their legal representatives, and that such soldier died while in the service of the United States as hereinbefore described, the patent for such land shall issue; provided that in such patent all mineral rights in the lands so patented shall be expressly reserved to the state of Louisiana, in pursuance of Article IV, Section 2 of the Constitution.*

Acts 1958, No. 444, §2.

*Reference is to 1921 Constitution; see, now, Const. Art. 9, §4.

RS 41:512

Scope and application of provisions

§512. Scope and application of provisions

The provisions of R.S. 41:510 through 511 shall apply to any homestead entries made by honorably discharged veterans of the Spanish-American War, World War I, World War II and the Korean Conflict, pursuant to the provisions of R.S. 41:501 through 509 made after the date of the discharge of such veterans and which may now be pending in the office of the register of state lands of the state of Louisiana; provided that all patents issued under the homestead entries aforesaid expressly reserve all mineral rights in the lands so patented to the state of Louisiana, in pursuance of Article IV, Section 2 of the Constitution.*

The terms of R.S. 41:510 through 511 shall be subject to the provisions of R.S. 41:98 and to the executive order issued by the governor under date of March 20, 1917, pursuant to Act 258 of 1912 and Act 38 of 1914.

Acts 1958, No. 444, §§3, 4.

*Reference is to 1921 Constitution; see, now, Const. Art. 9, §4.

RS 41:541

Homestead entry on tax adjudicated land

PART II. TAX ADJUDICATED LANDS

SUBPART A. IN GENERAL

§541. Homestead entry on tax adjudicated land

At any time after the lapse of three years from the adjudication of any land to the state for any unpaid taxes due thereon for any year subsequent to January 1st, 1880, where the land has not been redeemed from the tax adjudication and the state has not previously sold the land or contracted with reference thereto, every person who is the head of a family or has reached the age of twenty-one years and is a citizen of this state, may, under the provisions of this Subpart, make homestead entry of one-quarter section or less quantity of tax adjudicated land of the state, to be located in a body in conformity with the legal subdivisions of the public lands; provided that any patent which may be issued hereunder shall reserve to the state, in perpetuity, all of the oil, gas and other minerals in, on and under the lands so patented. No person who is the owner of as much as one hundred sixty acres of land in any state or territory, shall acquire any rights under this Subpart; provided that every person owning and residing on lands may enter, under the provisions hereof, such tax adjudicated lands lying contiguous to his lands which shall not, with the land so already owned and occupied by him, exceed in the aggregate one hundred sixty acres.

RS 41:542

Procedure

§542. Procedure

A. Any person applying to enter land under the provisions of this Subpart shall first make and subscribe an affidavit: (1) that he is the head of a family or has reached the age of twenty-one years and is a citizen of this state; (2) that the application is made honestly and in good faith for the purpose of actual settlement and cultivation and to obtain a home for himself and not for speculation; (3) that the application is made for his own use and benefit and not directly or indirectly for the use or benefit of any other person, corporation or syndicate, to give them the benefit of the land or any part thereof or the timber thereon.

B. Upon the filing of the affidavit and application with the Register of the State Land Office and the payment of ten dollars, from which amount the cost of publication provided for in this Section shall be paid, the Register of the State Land Office shall give notice in writing, to the person, firm or corporation in whose name the land was adjudicated to the state, by mailing the notice addressed to the person, firm or corporation in whose name the land was adjudicated to the state, at the post office address of the tax debtor as shown on the tax rolls for the year for which the adjudication was made. The notice shall state, in substance, that application has been made to homestead the land described in the application, and that unless the land is redeemed from the tax sale under which the state holds title to the land within thirty days from the date of the first publication of notice, as hereinafter provided, the application to enter the land will be granted and the land subjected to homestead entry by the applicant.

C. A copy of the notice shall be published in the official journal of the parish in which the land is located, once each week for a period of thirty days, and if there is no official journal published in that parish, publication shall be by posting the notice on the court house door of the parish for a period of thirty days. Weekly publication for four successive weeks shall be deemed publication as herein required.

D. If at the end of the thirty day period, redemption of the land from the tax sale has not been effected, the Register of the State Land Office shall give notice to the applicant, which notice shall be deemed to have been sufficiently given if mailed to the applicant at the post office address given in his application, that the lands so applied to be entered is then subject to and is held for his entry, to be completed within thirty days after the date of the mailing of this notice. If the applicant, within thirty days after the date of the mailing to him of the notice, pays to the Register of the State Land Office the amount of taxes, interest and costs due on the land for the year for which it was adjudicated to the state, which amount shall be paid out and distributed by the register as in cases where payment is made for the redemption of land adjudicated to the state for unpaid taxes, the applicant shall be permitted to make entry of the amount of land specified, and the Register of the State Land Office shall issue to the person his receipt for the amount paid, which receipt shall be dated and numbered and shall describe the land so entered.

E. If the applicant fails, during the period of thirty days after the date of the notice mailed to him during which the land is subject to entry, to make payment of the amount of

taxes, interest and costs due on the land applied to be entered for the year for which it was adjudicated to the state, his application shall stand rejected, and the land shall thereupon again become subject to redemption, as provided by law, or to homestead entry by another, under the provisions of this Subpart.

Amended by Acts 1960, No. 49, §1.

RS 41:543

Sale or incumbrance prior to issuance of patent

§543. Sale or incumbrance prior to issuance of patent

No person entering land under the provisions of this Subpart may sell, alienate or encumber the lands so entered prior to issuance of patent therefor, except for school, church, or cemetery purposes, or for right of way for railroads, telephone or telegraph lines, public roads, oil or gas pipe lines, or canals, ditches or conduits for irrigation or drainage through the lands.

RS 41:544

Conditions for issuance of patent

§544. Conditions for issuance of patent

No patent shall issue for any lands entered under the provisions of this Subpart until after the expiration of five years from the date of the entry. The person making the entry, or in case of his death, his heirs or devisees shall be entitled to a patent for the land so entered if, at the expiration of the five year period or at any time within two years thereafter he proves by his own affidavit and the affidavits of two credible witnesses, taken separately, that he has resided upon and cultivated the land for the term of five years immediately succeeding the date of entry, that no part of the land has been alienated or encumbered except as provided in R.S. 41:543, and he has paid to the register of the state land office a fee of five dollars. In case of the death of a homesteader, it shall not be necessary for his widow or heirs to prove actual residence upon the land after the date of death, but she shall show continuous cultivation and improvement for the full period of five years from the date of the entry.

RS 41:545

Final proof

§545. Final proof

Any person desiring to submit final proof under the provisions of R.S. 41:544 shall first file with the Register of the State Land Office a written notice of his intention to make proof, which notice shall contain the date and number of the register's receipt, a description of the land and the names and post office addresses of four neighbors, two of whom must appear as witnesses. The register shall then cause to be published for thirty days in a newspaper by him designated as the paper published nearest to the land, a notice containing the date and number of the receipt, description of the land, names and addresses of the witnesses and the time and place and name and official designation of the officers before whom proof is to be made. The proof of the publication shall be the affidavit of the publisher or foreman of the newspaper with a printed copy of the notice attached. The applicant shall deposit with the Register of the State Land Office a fee of ten dollars to cover costs of the publication, or a receipt from the publisher that the fee has been paid to him in advance.

Amended by Acts 1960, No. 49, §1.

RS 41:546

Fees for oaths, affidavits and proofs

§546. Fees for oaths, affidavits and proofs

All oaths, affidavits or proofs required under this Subpart shall be made before the Register of the State Land Office, or before any official of the parish in which the land is situated who is authorized to administer oaths and to use a seal. Officers other than the register may charge a fee of two dollars for preparing and attesting applications and affidavits for any entry under this Subpart, and a fee of four dollars for preparing final proof and attesting them.

RS 41:547

Disposition of fees

§547. Disposition of fees

The fees paid by the homesteader, except as may be otherwise provided in this Subpart shall be remitted by the Register of the State Land Office to the State Treasurer.

RS 41:548

Liability for debts

§548. Liability for debts

Lands acquired under the provisions of this Subpart shall never become liable for the satisfaction of any debt contracted prior to issuance of patent therefor.

RS 41:549

Reversion to state preference rights of person filing charges

§549. Reversion to state preference rights of person filing charges

If, at any time after filing of the affidavit required by R.S. 41:542, and before the issuance of patent therefor, it is proved after due notice to the homesteader or his legal representative, to the satisfaction of the Register of the State Land Office, that the homesteader failed to establish a residence on the land so entered for six months after entry, or changed his residence therefrom for a period of six months at any time after filing his affidavit and before the expiration of the period of five years' residence required by this Subpart, or swore falsely to any material fact in his affidavit or final proof, then the land shall revert to the state, and be held by it subject to redemption or homestead, as provided by this Subpart. All appeals from the decisions of the register in such cases shall lie to the district court of the parish in which the lands are situated and shall be tried de novo. The person filing charges against an entryman under this Section, and prosecuting them to a successful conclusion, shall have a preference right of sixty days from final judgment in which to file his application for the land.

RS 41:550

Register to hear proof

§550. Register to hear proof

The Register of the State Land Office shall receive and pass upon the proof of residence and cultivation as provided in this Subpart and the decision of the Register of the State Land Office as to whether the proof shows full compliance with the requirements hereof, shall be final subject to the right of the entryman, or in case of his death, of his legal representatives, to appeal from the decisions of the register to the district court of the parish in which the lands are situated where the case shall be tried de novo.

RS 41:551

Final certificate and patent

§551. Final certificate and patent

Upon a full and complete compliance with all of the requirements of this Subpart by the homesteader, or his legal representatives, the Register of the State Land Office shall issue a final certificate, certifying that the homesteader, or his legal representatives, are entitled to a patent for the land so entered, and a patent therefor shall be accordingly issued and signed by the governor and the register.

RS 41:552

Actions to set aside or annul homestead entry, prescription

§552. Actions to set aside or annul homestead entry, prescription

Any action brought by the State of Louisiana, private corporations, partnerships or persons, to set aside or annul a homestead entry of previously adjudicated lands or patent issued thereon under the provisions of Act 235 of 1938, now incorporated in Title 41, Sections 541 to 551, both inclusive, of the Louisiana Revised Statutes of 1950, where the sole reason for the attack upon such entry or upon such patent is that the land covered by the entry is not susceptible of serious and substantial cultivation, and where such entry was allowed or such patent issued prior to the passage of this Section, shall be prescribed by the lapse of six months from and after July 26, 1950.

Acts 1950, No. 354, §1.

RS 41:591

Rights of veterans of World War II and of the Korean conflict

SUBPART B. PERSONS IN ARMED FORCES

§591. Rights of veterans of World War II and of the Korean conflict

Any honorably discharged veteran of World War II or of the Korean conflict may homestead land under the provisions under Subpart A of this Part, and the time served in the armed service of the United States in time of war or conflict shall be deducted from the time required to perfect title; provided, that no patent shall issue until the entryman has resided upon, improved and cultivated his homestead for a period of at least one year. The period of time of the Korean conflict shall be that period from June 27, 1950 to July 26, 1953, inclusive, for the purposes of this Subpart.

Amended by Acts 1954, No. 10, §§1, 2.

RS 41:592

Widow and children of homesteader who dies in service

§592. Widow and children of homesteader who dies in service

Where a homesteader under the provisions of Subpart A of this Part was inducted into the armed services after his entry was allowed and died in service, his widow, if unmarried, or in case of her death or marriage, then his minor orphan children or his or their legal representatives, may proceed forthwith to make final proof upon the land so held by the deceased soldier and settler, and the death of the soldier while engaged in the service of the United States shall, in the administration of the homestead law, be equivalent to a performance of all requirements as to residence and cultivation for the full period of five years.

The patent shall issue upon proof produced to the Register of the State Land Office by the widow, if unmarried, or in case of her death or marriage, his minor orphan children or his or their legal representatives, that the applicant for patent is the soldier's widow, his orphan children or his or their legal representatives, and that the soldier died while in the service of the United States.

RS 41:593

Residence required of homesteader in armed forces

§593. Residence required of homesteader in armed forces

Induction into the military or naval services of the United States within six months after entry shall be considered as a compliance with the provisions of Subpart A of this Part in regard to the establishment of residence on lands entered under the provisions of that Subpart.

RS 41:594

Term of service as equivalent to residence

§594. Term of service as equivalent to residence

The term of service of any homesteader in the military or naval services of the United States shall be considered, as equivalent to and having the legal effect of residence on the property so entered during the entire term of his service, provided, however, that the homesteader shall within ninety days after his final discharge establish his actual residence on the property so homesteaded.

CHAPTER 6. SCHOOL LANDS

PART I. IN GENERAL

§631. Sale of land to school board for public school educational purposes

The Register of the State Land Office may sell, at the price stipulated by law, to any school board of this state any amount of land not less than five acres on which to erect a school house. The land must be within the school district and a portion of that land donated by Congress to this state either for the use of a seminary of learning or for the purpose of internal improvement.

The Register of the State Land Office also shall sell to any school board of the state, for public educational purposes, any tract of not less than five acres, of sixteenth section lands donated by Congress to this state for school purposes, provided such land is located within the parish wherein such school board exists and provided that such land has not been otherwise disposed of or alienated by the state. The only procedure which shall be required for the sale of such sixteenth section lands and the issuance of patent thereto by the Register of the State Land Office to the school board and its successors pursuant to this section shall be the delivery by the school board to the Register of its application for purchase of such land, a survey thereof by the parish surveyor or engineer, a duly authenticated copy of a resolution duly adopted by such school board authorizing such purchase and agreeing to utilize such lands for public educational purposes, and a tender of the purchase price. The price of such lands sold to school boards pursuant to this Section is hereby fixed at one dollar and twenty-five cents per acre. The Register of the State Land Office shall transmit to the State Treasurer any monies received from the sale of such lands pursuant to this Section, and the State Treasurer shall credit such funds to the township wherein the land is situated making such disposition of the funds as is provided by law. The Register of the State Land Office shall notify the state auditor and the state superintendent of education of the result of all such sales.

None of the provisions of this Section shall be applicable to school indemnity lands, nor to the leases of any public lands, nor to timber sales covering sixteenth sections, all of which are dealt with under other provisions of existing law; provided, however, that in the case of sales to school boards of sixteenth section lands or any portions thereof pursuant to this Section, the timber located on such land shall be included in the sale to the school board if it has not been previously alienated or disposed of according to law. None of the provisions of this Section shall be applicable to oil and gas or other minerals upon sixteenth section lands, which shall be dealt with under other provisions of existing law.

In the event any sixteenth section land purchased by a school board under this Section should no longer be used for the purpose of a school site, such school board is prohibited from selling said land to any third person or persons, but such land shall be re-conveyed to the state of Louisiana by such school board to be used for the purposes as are now provided by law.

Amended by Acts 1954, No. 86, §1.

RS 41:632

Boundaries of land sold

§632. Boundaries of land sold

Any land sold under R.S. 41:631 shall commence in the corner of a legal division or subdivision of sections and shall be parceled out as follows:

(1) If in a right angle it shall be run at an equal distance on two sides, bounded by the lines of the division to form a square including the number of acres sold.

(2) If in an acute angle, it shall be bounded by the division lines to such distance, and by lines in such other directions as the register may deem most equitable between the land sold and that retained.

The patents for land so sold shall set forth the number and of what parish and shall issue to the school board and its successors, for the use of their district schools.

RS 41:633

Reservation of school lands in townships without school sections

§633. Reservation of school lands in townships without school sections

The Register of the State Land Office shall ascertain in what townships in this state there are no reservations of school sections or where the reservation is less than contemplated by law by reason of conflicting claims or from any other cause. In such cases, he shall under the superintendence of the governor apply for and as soon as possible obtain a location of any land or part of land in lieu thereof.

RS 41:634

Issuance of scrip in certain cases

§634. Issuance of scrip in certain cases

When the locations can not be made, if deemed more advantageous to the state, the register, with the assent of the federal government, may issue scrip for the lands, which scrip shall not be sold for a less amount than one dollar and twenty-five cents per acre.

RS 41:635

Cancellation of school land warrants and refund of money when land unavailable

§635. Cancellation of school land warrants and refund of money when land unavailable

Whenever, the register finds that because of the donation by congress of all the overflowed and swamp lands to the state there are no public lands in the Southeastern Land District of this state on which may be located the school land warrants sold for the benefit of certain townships in the district, he shall receive and cancel all such warrants as may be presented for that purpose and pay to the legal possessors thereof or to their orders the full amount received by the state on account of the warrants. The money shall be taken from that fund in the treasury which was credited by the sale of the warrants.

RS 41:636

Price of seminary lands

§636. Price of seminary lands

The price of the seminary lands shall be one dollar and twenty-five cents per acre.

RS 41:637

Use of property for educational purposes; stipulation, abandonment and use as dedication

§637. Use of property for educational purposes; stipulation, abandonment and use as dedication

Wherever any real property has been acquired by any association, organization or non-profit corporation by virtue of a deed which contains a stipulation that such property is to be used for educational purposes and thereafter the use of said property is abandoned to any school board and is used by such school board for such purposes for a period in excess of ten years, such stipulation, abandonment and use shall constitute a dedication of such property to the public for such purposes and the right to administer and use such property for educational purposes shall be in the school board which has exercised the use of such property; provided that the provisions of this Section shall not apply to any property owned by an agency of the state, municipality or other public body.

Acts 1954, No. 572, §1.

RS 41:638

Dedication of property for public school purposes; administration

§638. Dedication of property for public school purposes; administration

Whenever any real property has been acquired by the state of Louisiana, any municipality, parish school board, or any other subdivision or agency of the state of Louisiana by virtue of a deed, act of sale, donation, or other form of transfer, which contains a stipulation that such property is to be used for public school or public educational purposes, said deed, act of sale, donation, or other form of transfer, shall constitute a dedication of such property to the public for such purposes and the school board in whose district the property lies shall have the right to administer and use the property for public school purposes.

Acts 1960, No. 527, §1.

RS 41:639

Sale or disposition of property with no right of reverter

§639. Sale or disposition of property with no right of reverter

Unless the deed, act of sale, donation, or other form of transfer by which said property is conveyed, contains specific provisions prohibiting the same, such school board may sell or dispose of any such property which is unused and unnecessary or is unsuitable for public school purposes, provided the mineral rights are reserved therein to the state of Louisiana and use the proceeds thereof to procure one or more new public school sites. In such event, the former owner, his heirs, successors and assigns shall have no claim by right of reverter to the property originally dedicated or to the proceeds thereof.

Acts 1960, No. 527, §2.

RS 41:640

Sixteenth section lands; adjustments; distribution of proceeds; lease and use

§640. Sixteenth section lands; adjustments; distribution of proceeds; lease and use

A. Where sixteenth section or indemnity lands granted by Congress for public school purposes have been erroneously sold by the state or paid by the state as fees for services rendered, such deficiencies shall be properly adjusted, as provided by the Constitution of 1879 and R.S. 41:641, and the amounts so determined shall be credited to the parish school boards of the parishes in which such townships are situated in proportion to the percentage of the townships lying in each said* parishes. The amounts so credited shall be treated as loans to the state on which the state shall pay interest at the rate of four percent per annum.

B. The parish school boards of parishes within which there lies a township or any portion of a township containing a sixteenth section or any portion of a sixteenth section shall be entitled to a portion of the proceeds derived from the sale of the sixteenth section or any portion thereof, including the sale of timber thereon and revenues arising from mineral leases, agricultural leases, contracts, royalties, and all other revenues arising from said sales, leases, and contracts heretofore made or which may hereafter be consummated. The proceeds and revenues thereof shall be credited to the parish school boards in which such townships are situated in proportion to the percentage of the townships lying in each parish. On the funds so credited to the respective parish school boards arising from the sources above mentioned the state shall pay interest at the rate of four percent per annum so long as said funds remain on deposit in the state treasury. However, any school board shall have authority to direct by resolution that the state treasurer shall return any funds on deposit to its credit in the state treasury or which may accrue to its credit from such sixteenth sections, and said parish school boards shall have the right to use the said funds in the acquisition, construction, and equipping of public school buildings and other school facilities.

C. The parish school boards of parishes within which there lies a township or any portion of a township containing a sixteenth section or any portion of a sixteenth section shall have the authority to lease, contract, or both, with any other governmental agency or department for the use of sixteenth section lands within the boundaries of their respective parishes. The proceeds and revenues thereof shall be credited to the parish school boards in which such townships are situated in proportion to the percentage of the sixteenth section lands lying in each parish.

Added by Acts 1975, No. 508, §1. Amended by Acts 1976, No. 328, §1; Acts 1983, No. 395, §1.

*In Subsection A, so in enrolled bill.

RS 41:641

Free school fund; seminary fund; agricultural and mechanical college fund; state indebtedness; interest

§641. Free school fund; seminary fund; agricultural and mechanical college fund; state indebtedness; interest

A. The debt due by the state to the free school fund arising from the sale of lands granted by Congress for school purposes may remain a perpetual loan to the state on which it shall pay to the several townships four percent per annum interest or the parish school board of any parish in which there lies a township or the major portion thereof containing a sixteenth section so sold shall have the right to use these entire proceeds in the acquisition, construction, and equipping of public school plant facilities, and the state shall no longer pay four percent per annum interest thereon.

B. The debt due by the state to the seminary fund is hereby declared to be one hundred thirty-six thousand dollars, being the proceeds of the sale of lands heretofore granted by the United States to this state for the use of a seminary of learning, and the state shall pay an annual interest of four percent on said amount.

C. The debt due by the state to the agricultural and mechanical college fund is hereby declared to be the sum of one hundred eighty-two thousand three hundred thirteen dollars and three cents, being the proceeds of the sale of lands and land scrip heretofore granted by the United States to this state for the purpose of a college for the benefit of agricultural and mechanical arts. The state shall pay an annual interest of five percent on the said amount.

D. The above funds shall be kept separate on the books of the treasurer of the state as a perpetual record of said loans.

Added by Acts 1975, No. 508, §1.

RS 41:642

Sixteenth section lands; erosion; title and revenues

§642. Sixteenth section lands; erosion; title and revenues

A.(1) The trustee title of the state of Louisiana to those sixteenth section or indemnity lands granted by congress to the state of Louisiana as trustee for the benefit of the school children of the township in which such lands are located, shall be deemed transferred to the state of Louisiana in its sovereign capacity when such lands become a part of the bed of any body of navigable water as a result of erosion, subsidence of the surface, action of a navigable stream, bay, lake, or the Gulf of Mexico, or other similar occurrence; however, except as provided for in Paragraph (2) of this Subsection, revenues generated by such former lands held in trust shall be credited to the account of the current school fund of the parish having an interest in the sixteenth section or indemnity school lands to ensure the purposes of the original grant, and in accordance with the procedures established herein.

(2)(a) In the event any such eroded or subsided lands are covered by an existing oil and gas lease or other contract granted by the state in its sovereign capacity, all proceeds from production and other revenues, generated after July 1, 2007, and attributable to the eroded lands, shall be credited to the account of the current school fund of the parish having an interest in the sixteenth section or indemnity lands.

(b) Notwithstanding the provisions of Subparagraph (a) of this Paragraph, in the event that sixteenth section lands are comprised entirely of state-owned water bottoms and no school indemnity lands were provided for the sixteenth section lands, all proceeds received by the state from production and other revenues generated after July 1, 2007, from any oil and gas lease or other contract granted by the state in its sovereign capacity attributable to the sixteenth section lands shall be credited, subject to an appropriation specifically for proceeds attributable to Fiscal Years 2007-2008, 2008-2009, and 2009-2010, to the account of the school fund of the parish in which the sixteenth section lands are located. Beginning in Fiscal Year 2010-2011 and thereafter, the proceeds shall be credited to the account of the current school fund of the parish in which the sixteenth section lands are located. The secretary of the Department of Conservation and Energy shall certify to the treasurer the amount of proceeds to be credited pursuant to this Subparagraph.

B. Proof of the extent of erosion or subsidence which may have occurred after the title to the sixteenth section land or indemnity lands vested in the state as trustee for the benefit of the school children of the townships in which the lands are located shall be made by the school board having an interest therein to the Department of Conservation and Energy and shall consist of a certified map or plat of survey prepared by a professional land surveyor qualified and currently licensed by the Louisiana Professional Engineering and Land Surveying Board, showing the exact extent of land claimed to be lost through erosion or subsidence and by evidence as may be required by the secretary showing the extent of the erosion or subsidence claimed.

Added by Acts 1982, No. 648, §1, eff. July 22, 1982; Acts 2003, No. 279, §6; Acts 2007, No. 158, §1, eff. July 1, 2007; Acts 2010, No. 971, §1; Acts 2023, No. 150, §15, eff. Jan. 10, 2024.

RS 41:643

Vermilion Parish; Sixteenth section land; distribution of mineral proceeds, and ownership of minerals and mineral revenues

§643. Vermilion Parish; Sixteenth section land; distribution of mineral proceeds, and ownership of minerals and mineral revenues

A. The state of Louisiana, the State Mineral and Energy Board may enter into and execute a compromise and settlement with the Vermilion Parish School Board regarding the ownership of certain mineral and mineral revenues together with the disposition of mineral revenues derived from a certain area alleged by the school board to be a "Sixteenth Section" located in Township 15 South, Range 1 West, in East White Lake, Vermilion Parish, Louisiana.

B. The mineral board shall have all of the power and authority necessary and incidental to entering into and executing such compromise and settlement, and such compromise and settlement is hereby specifically authorized to provide for the following:

(1) That any and all revenues arising out of or in connection with mineral leases covering such area in existence on May 30, 1989 shall be shared equally by the state and the school board, insofar as such revenues are attributable to the area covered by each lease. The school board and the mineral board are hereby authorized to enter into any letter or division order necessary to effectuate this Section, including specifically a division order portraying an equal net royalty interest in leases payable to the school board and mineral board.

(2) That upon the termination of all or any portion of mineral leases covering such area which are in existence on May 30, 1989, the mineral board may lease all or any portion of such area under such terms and conditions as may be approved by the mineral board, without regard to the minimum royalty provisions of R.S. 30:127(A), and that such state lessee may be required to acquire for the same consideration payable to the mineral board, a lease from the school board on the same acreage without regard to the minimum royalty provisions of R.S. 30:127(B).

Acts 1989, No. 474, §1, eff. June 30, 1989; Acts 2009, No. 196, §6, eff. July 1, 2009.

RS 41:671

Determining value of improvements and of the use of the land

PART II. IMPROVEMENTS BEFORE SURVEY

§671. Determining value of improvements and of the use of the land

When the sale of the sixteenth section is legally ordered, and it appears to the satisfaction of the parish treasurer that any person had settled and improved the section or any part thereof prior to the extension of the survey over it, the treasurer shall appoint one appraiser; the settler or his agent may appoint another; the two shall select a third; and the three, after being sworn, shall assess the improvements put upon the lands, and the value of the use of the land.

In all cases the assent of a majority of the legal voters within the township shall be given to the provisions of this Part which shall be taken at the same time that the votes are taken for the sale of the land.

RS 41:672

Settler to be paid value of improvements less value of the use of the land

§672. Settler to be paid value of improvements less value of the use of the land

The settler shall receive the value of his improvements out of the proceeds of the sale, except that the value of the use of the land shall be deducted from the value of the improvements. When the cash payment is not sufficient to pay for the improvements the parish treasurer shall cause the purchaser to execute his note for the balance due in favor of the settler, his or her heirs or assigns, with personal security to the satisfaction of the person entitled to receive the money, which shall be deducted from the amount of the first installments due on account of the purchase.

RS 41:673

Lease to pay for improvements where sale refused

§673. Lease to pay for improvements where sale refused

Whenever any person has settled and improved the sixteenth section, and the inhabitants of the township refuse to sell the section, as provided by law, then the parish treasurer shall cause the section to be leased, and the lease shall be given to the person who may purpose to take the land for the shortest time on paying the settler for the improvements.

RS 41:711

Election for sale of school lands

PART III. SALE OF SCHOOL LANDS

SUBPART A. IN GENERAL

§711. Election for sale of school lands

The parish treasurer shall take the sense of the inhabitants of the township with reference to whether or not any lands heretofore reserved and appropriated by congress for the use of schools shall be sold, and the proceeds invested as authorized by an act of congress, approved February the fifteenth, eighteen hundred and forty-three, entitled: "An Act to authorize the Legislatures of the States of Illinois, Arkansas, Louisiana and Tennessee, to sell the lands heretofore appropriated for the use of schools in those states."

Polls shall be opened and held in each township, after advertisement for thirty days at three of the most public places in the township and at the courthouse door, and the sense of the legal voters therein shall be taken within the usual hours, and in the usual manner of holding elections. The elections shall be held and votes received by a school board member or a justice of the peace. If a majority of the legal voters are in favor of selling the school lands therein, they may be sold, but not otherwise. The result of all elections shall be transmitted to the parish treasurer, and by him to the state superintendent of education.

RS 41:712

Election and sale of a sixteenth section divided by parish line

§712. Election and sale of a sixteenth section divided by parish line

When the sixteenth section of any township is divided by a parish line, the treasurer of the parish in which a greater portion of the section lies, shall take the sense of the people of the township, and shall sell the section as provided by law, as if the whole section lay in his parish; provided that the sale shall be advertised at the courthouses of both parishes as provided by law.

RS 41:713

Resurvey of obliterated or uncertain lines

§713. Resurvey of obliterated or uncertain lines

Before selling the school lands belonging to the state, the parish treasurer, or other persons whose duty it may become, to superintend the sales, shall cause a resurvey of the lines which from any cause may have become obliterated or uncertain; and for this purpose he may employ the parish surveyor, or on his default, any competent surveyor. The lines thus surveyed shall be marked in such manner as to enable those interested to make a thorough examination before sale, and all advertisements made for the sale of the lands shall contain a full description thereof, according to the original survey and that required by this Section. The expenses of making the survey shall be paid by the State Auditor out of the proceeds of the sale of the lands on the warrant of the parish treasurer.

RS 41:714

Manner, terms and conditions of sale

§714. Manner, terms and conditions of sale

A. If the majority of the voters in a township give their assent to the sale of the lands, the parish treasurer shall notify the State Auditor of the vote thus taken, and upon his order, the parish treasurer shall have the land sold before the courthouse door, by the sheriff, or an auctioneer to be employed by the treasurer. The sale shall be made after thirty days advertisement and after the land has been appraised by three sworn appraisers selected by the parish treasurer and recorder of the parish. The land shall be sold to the highest bidder, in quantities not less than forty acres, nor more than one hundred and sixty.

B. In no case shall the land be sold at a less sum than the appraised value, payable on a credit of ten years, as follows:

(1) Ten per cent in cash, and the balance in nine annual installments, the interest to be paid on the whole amount, annually, at the rate of eight per cent per annum.

(2) The notes shall be made payable to the State Auditor, secured by special mortgage on the land sold, and personal security, in solido, until final payment of the principal and interest.

C. If the purchaser neglects or refuses to pay any of the installments or interest at maturity, the mortgage shall be forthwith closed, and the parish treasurer shall advertise and sell the land as before provided for, and shall execute all acts of sale on behalf of the state, for any such lands sold.

D. The parish treasurer shall receive the cash payments and notes given for the purchase, which shall be made payable to the State Treasurer, and shall place them in the office of the State Auditor for collection.

E. All cash received, either for principal or interest, from the sales shall be transmitted by the parish treasurer to the State Treasurer, and any moneys thus received into the state treasury from sales shall bear interest at the rate of six per cent per annum, and be credited to the township to which the money belongs.

F. The result of all sales made by the parish treasurer shall be forthwith notified by him to the state superintendent of education. The parish treasurer may receive the whole amount bid for the lands, deducting the eight per cent interest which the credits would bear.

RS 41:715

Compensation of parish treasurer

§715. Compensation of parish treasurer

The parish treasurer may retain, out of the proceeds of the sales of sixteenth sections effected by him, a compensation of two and one-half per cent on the amount of the sales, which shall be deducted from the cash payment, and which shall be full compensation of his services.

RS 41:716

Lease of lands

§716. Lease of lands

A. Should a majority of the legal voters be against the sale of the lands, then the school board of the parish in which the lands are located shall secure them from injury and waste, shall prevent illegal possession or aggression of any kind and shall lease the land, or any part thereof, according to the provisions of the act of congress referred to in R.S. 41:711 as amended by Act of Congress, approved June 12th, 1884, and shall inform the state superintendent of education thereof.

B. The lease shall be made only after due notice has been given by advertisement, for at least thirty days, in the official journal of the parish, or in any paper published regularly in the parish containing the land to be leased, of the time and place when the land will be offered for lease to the highest bidder. In all cases ample security shall be required, not only for the punctual payment of the rent but for the protection of the lands from all kinds of waste and injury. The parish school board may reject any and all bids offered for the lease, if in its judgment the bids do not reach a just and fair value of the lease.

RS 41:717

Sale of timber; time allowable for removal

§717. Sale of timber; time allowable for removal

A. The parish school boards may sell the timber on sixteenth section school lands to the highest bidder for said timber, after public notice of the proposed timber sale has been given by advertisement for at least thirty days in the official journal of the parish. In the case of sixteenth sections located in townships which extend into two parishes, such timber sales shall be made by the joint action of the school boards of the two parishes, after public notice, as above provided, in the official journals of both parishes.

B. In all cases where a sale of timber is made under the provisions of this Subpart and deferred payments are allowed, the notes representing the deferred payments shall be made payable to the order of the State Auditor, and their punctual payment shall be secured by at least two good and solvent sureties who shall be liable in solido.

C. In all cases where a sale of timber is made under the provisions of this Subpart the purchaser thereof or his vendees, shall be allowed a period of not more than ten years in which to remove the timber.

Amended by Acts 1956, No. 374, §1.

RS 41:718

Proceeds of lease of land or sale of timber

§718. Proceeds of lease of land or sale of timber

A. In all cases of the lease of sixteenth section school lands, or of the sale of the timber thereon, the cash payment after deducting sufficient amount to cover the actual expenses incurred by the election and making the sale or lease, shall be credited to the account of the current school fund of the parish where the sixteenth section school lands are located. Notes representing deferred payments shall be placed in the hands of the parish school treasurer for collection, and when collected also credited to the current school fund of the parish, to be used for general school purposes.

B. The term "general school purposes" as used in the last sentence of the preceding part of this section shall include, but not be limited to, fencing, drainage, fire prevention, insect and pest eradication, reforestation and timber management of the sixteenth section from which the funds were derived.

Amended by Acts 1968, No. 537, §1.

RS 41:719

Disposition of proceeds of sale of land; interest

§719. Disposition of proceeds of sale of land; interest

All moneys received into the state treasury, and the interest accrued thereon from the sale of any sixteenth section of school lands or the school land warrants belonging to the various townships in the state, shall be placed to the credit of the township, and should the people of any township desire to receive for the use of the schools therein the annual interest payable by the state on funds deposited to their credit, or the annual proceeds of the loans, the parish treasurer shall, on the petition of five legal voters in any such township, order an election to be held in the township, as provided for the sale of township lands; and if a majority of any number of votes above seven are in favor of receiving annually the accruing interest it shall be paid to the treasurer of the parish for the use of the townships or districts; otherwise the interest shall be an accumulating fund to their credit until so called for.

RS 41:720

Annulment of sale by purchaser

§720. Annulment of sale by purchaser

In all cases of the sale of school lands known as sixteenth sections, where the purchase money has not been paid, the purchaser may annul the sale, upon application to the district court of the parish where the land is situated subject to the following conditions: (1) that the judgment of nullity shall be obtained at the cost of the applicant and contradictorily with the district attorney and the school board of the district; (2) that it shall appear upon the trial thereof that the value of the land has not been impaired by any act of the purchaser. The purchaser shall not be entitled to the repayment of any part of the purchase money paid at the time of his purchase.

RS 41:721

Collection of notes given for purchase price

§721. Collection of notes given for purchase price

The State Auditor shall forward for collection to the treasurer of the school board in their respective parishes throughout the state, all the notes given for the purchase price of sixteenth sections, or any part thereof, whenever any installment of the purchase price becomes due, and the treasurer of the parish school board shall receive and receipt for them.

RS 41:722

Treasurer's duties on receipt of notes due

§722. Treasurer's duties on receipt of notes due

The treasurer of the parish school board, on the receipt of the notes due and given for the sixteenth sections, shall immediately notify the principal and his sureties, in writing, of the amount of the notes, principal and interest due and unpaid; provided the lands for which the notes were given are still in the possession of the original purchaser. If the lands are in the possession of other parties, the possessor shall also be notified of all the demands, principal and interest, against the lands, and if all demands against them are not satisfied within thirty days from the notice, the treasurer of the parish school board shall turn over the notes to the district attorney for the district, or other attorney selected by the school board, for suit. The notice shall serve as a bar to prescription, which shall only begin to run from the service of the notice.

RS 41:723

Attorney's duties

§723. Attorney's duties

The attorney shall proceed without delay, by all necessary legal processes, and without depositing clerk's or sheriff's costs, or giving security therefor, to collect all such notes as may be turned over to him by said treasurer of the parish school board. If any of the conservatory writs should be found to be necessary in order to aid in the collection, it shall be lawful to issue the same, without giving bond as required in other cases.

RS 41:724

Disposition of moneys collected

§724. Disposition of moneys collected

The attorney shall receive ten per cent of all moneys collected by him on notes given for sixteenth sections, and after deducting the ten per cent he shall turn over the remainder to the treasurer of the school funds, for the parish in which the lands are situated. The treasurer shall transmit the moneys through the State Auditor, to the State Treasurer. Any moneys thus received into the state treasury from the collections, shall bear interest at the rate of four per cent per annum, and shall be credited to the township to which the moneys belong.

RS 41:725

Terrebonne Parish School Board; transfer of certain sixteenth section lands

§725. Terrebonne Parish School Board; transfer of certain sixteenth section lands

A. The Legislature of Louisiana hereby finds that as a result of the holding in Liner v. Terrebonne Parish School Board, 519 So.2d 777 (La. App. 1 Cir. 1987)(rehearing and writ denied in February and March of 1988), the North boundary of Section 16 of Township 20 South, Range 16 East now lies approximately two thousand feet North of where it previously was thought to lie. Many families constructed homes and resided for generations, in some cases, on the affected lands in Terrebonne Parish near Bayou Dularge which they thought in good faith to be theirs, paying taxes as required by state and local governments, only to learn that due to an ancient surveying error in the original government survey of 1838 their titles describe lands in Section 9 whereas their homes rest on Section 16 land. As a result of the inability of the families and the school board to reach a compromise, these families continue to live in homes they built but are subject to eviction and at least one family has been notified of the school board's intent to evict. While, due to the passage of time, these same families are blocked by prescription which has run against them, preventing them from seeking ownership of the lands in Section 9 which their titles specify they own.

B. Therefore, notwithstanding the provisions of this Chapter, or the provisions of Part II of Chapter 1 of Title 17, and pursuant to Section 4 of Article IX of the Constitution of Louisiana, the Terrebonne Parish School Board shall take all actions necessary for the transfer of title and ownership of such affected property in Section 16 near Bayou Dularge located in T20S-R16E in Terrebonne Parish to those persons who have possessed such property under good faith and just title for at least ten years or to those persons who have acquired from such possessors in good faith, provided that as just and sole compensation the mineral rights upon such lands shall be reserved to the Terrebonne Parish School Board.

Acts 1990, No. 209, §1; Acts 1992, No. 816, §1, eff. Nov. 5, 1992.

RS 41:726

Bienville Parish School Board; transfer of certain sixteenth section lands

§726. Bienville Parish School Board; transfer of certain sixteenth section lands

A. Notwithstanding any other law to the contrary, whenever the Bienville Parish School Board, on behalf of the state of Louisiana, determines that the sixteenth section lands located within Bienville Parish, and as more specifically described in any agreements entered into and documents executed by the Bienville Parish School Board, is no longer needed for school purposes and that the best interests of the Bienville Parish school system would be served by the sale of the property, the Bienville Parish School Board shall have authority to order the disposition of such sixteenth section lands at public auction or under sealed bids. The procedure for disposition of the sixteenth section lands shall be the same as for unused school lands under R.S. 41:892. The Bienville Parish School Board shall reserve to the state all of the mineral rights and minerals in accordance with law. Any sale of sixteenth section lands which occurs as authorized by this Subsection shall be executed by the state land office on behalf of the Bienville Parish School Board.

B. All proceeds from the sale, less expenses of the sale, shall be used for the support of the schools located in Bienville Parish in furtherance of the purpose of the dedication of the sixteenth section lands by the United States by acts of Congress of April 21, 1806, and March 3, 1811, to the territories of Orleans and Louisiana in anticipation of statehood.

Acts 2000, 1st Ex. Sess., No. 129, §1, eff. April 19, 2000.

RS 41:727

Vermilion Parish School Board; transfer of certain sixteenth section lands

§727. Vermilion Parish School Board; transfer of certain sixteenth section lands

A.(1) The legislature finds that as a result of the holding of the Louisiana Supreme Court in *Abshire v. Vermilion Parish School Board*, there are persons in Vermilion Parish who purchased sixteenth section lands in good faith, but because of the conveyance of less than full ownership in a 1909 property transaction, have only apparent title to such property; actual title remains with the school board. It is the intent of the Louisiana Legislature, as expressed by the enactment of this Section, that each person who holds apparent title to any portion of the tract described in Subsection B of this Section have conveyed and transferred unto him, his heirs, successors, and assigns, with all legal warranties and with full substitution and subrogation, ownership of and actual and complete title to any portion of said tract to which he holds apparent title.

(2) Such transfers shall be executed without an election and notwithstanding any provision of this Chapter or of Part II of Chapter 1 of Title 17 to the contrary.

B. The Vermilion Parish School Board is authorized to convey, transfer, assign, and deliver any interest, excluding mineral rights, the state or the school board may have to a certain tract or parcel of land located in Section Sixteen (16), Township Twelve (12) South, Range Two (2) East, Vermilion Parish, Louisiana, lying within the following boundaries: Beginning at a point on the South line of Parish Road Number P-9-23 (now Cheneau Road) along the North line of Section Sixteen (16), Township Twelve (12) South, Range Two (2) East on the East End of the existing Flume and running East in the South line of said P-9-23 (now Cheneau Road), a distance of 4,839.4 feet, to the East line of said Section 16; thence, running South, in the East line of said Section 16, a distance of 200 feet; thence West, parallel to the South line of said P-9-23 (now Cheneau Road) a distance of 4,839.4 feet; thence North, parallel to the East line of Section 16 a distance of 200 feet to the point of beginning; said tract containing 22.22 acres.

C. The school board, on behalf of the state of Louisiana, is hereby authorized to enter into such agreements, covenants, conditions, and stipulations and to execute such documents as are necessary to properly effectuate the delivery of complete title, excluding mineral rights, to the various portions of the property described in Subsection B of this Section, and as more specifically described in any such agreements entered into and documents executed by and between the school board and the apparent title holders of said property or their assigns, heirs, or legatees, in exchange for payment of consideration proportionate to the appraised value of the property in accordance with Article VII, Section 14 of the Constitution of Louisiana.

Acts 2005, No. 417, §1, eff. July 11, 2005.

RS 41:727.1

Vermilion Parish School Board; transfer of certain sixteenth section lands

§727.1. Vermilion Parish School Board; transfer of certain sixteenth section lands

A.(1) The Vermilion Parish School Board may sell, convey, transfer, assign, and deliver any interest, excluding mineral rights, the state or the school board has or may have to a certain tract or parcel of land containing 1.972 acres situated in the east half of Section Sixteen (16), Township Eleven (11) South, Range Three (3) East, Fourth Ward of Vermilion Parish, state of Louisiana, being more particularly described as follows:

Commencing at the northeast corner of Section 16, T11 S - R 3 E, thence proceeding S 00º 03' 10" W along the eastern boundary line of Section 16, a distance of 2643.14 feet to the point of beginning; thence continuing S 00º 03' 10" W along the eastern boundary line of Section 16, a distance of 946.00 feet to a point on the apparent eastern right-of-way line of Bella Road; thence proceeding N 37º 55' 50" W along said right-of-way line, a distance of 72.07 feet; thence proceeding N 45º 30' 47" W along said right-of-way line, a distance of 32.19 feet to a point; thence proceeding N 32º 55' 24" W along said right-of-way line, a distance of 40.45 feet to a point; thence proceeding N 12º 29' 35" W along said right-of-way line, a distance of 42.49 feet to a point; thence proceeding N 00º 15' 57" E along said right-of-way line, a distance of 791.06 feet to a point; thence proceeding N 89º 56' 17" E, a distance of 95.64 feet to the point of beginning; being bounded on the North by the Vermilion Parish School Board, on the south and west by the apparent right-of-way line of Bella Road and on the east by Bella Marie Trahan, et al., all as per plat by Richard J. Primeaux, dated October 15, 2007.

(2) The Vermilion Parish School Board may sell, convey, transfer, assign, and deliver any interest, excluding mineral rights, the state or the school board has or may have to a certain tract or parcel of land containing 3.942 acres situated in the southeast quarter of Section 16, T12S-R2E, Ninth Ward of Vermilion Parish, state of Louisiana, being more particularly described as follows:

Commencing and beginning at the southeast corner of Section 16, T12S-R2E; thence proceeding N 89º 48' 00" W along the southern boundary line of Section 16 a distance of 601.07 feet to a point; thence proceeding N 00º 29' 26" E a distance of 81.98 feet to a point on the centerline of a drainage ditch; thence proceeding S 74º 44' 13" E along the centerline of the drainage ditch a distance of 50.01 feet to a point; thence proceeding N 40º 18' 57" E along the centerline of the drainage ditch a distance of 370.83 feet to a point; thence proceeding N 69º 47' 45" E along the centerline of the drainage ditch a distance of 54.73 feet to a point; thence proceeding N 86º 51' 57" E along the centerline of the drainage ditch a distance of 168.91 feet to a point; thence proceeding S 88º 17' 50" E along the centerline of a drainage pipe a distance of 93.77 feet to a point on the eastern boundary line of Section 16; thence proceeding S 00º 14' 00" W along the eastern boundary line of Section 16 a distance of 379.02 feet to the point of beginning; being bounded on the north and west by the Vermilion Parish School Board, on the south by the southern boundary line of Section 16 and on the east by the eastern boundary line of Section 16, all as per Plat by Richard J. Primeaux dated May 14, 2009.

(3) The Vermilion Parish School Board may sell, convey, transfer, assign, and deliver any interest, excluding mineral rights, the state or the school board has or may have to a certain tract or parcel of land containing 5.106 acres situated in the northeast quarter of Section Sixteen (16), Township Eleven (11) South, Range Three (3) East, Fourth Ward of Vermilion Parish, state of Louisiana, being more particularly described as follows:

Commencing at the northeast corner of Section 16, T11 S - R 3 E, thence proceeding S 00˚ 03' 10" W along the eastern boundary line of Section 16, a distance of 159.92 feet to the point of beginning; thence continuing S 00˚ 03' 10" W along the eastern boundary line of Section 16, a

distance of 2,483.22 feet to a point; hence proceeding S 89˚ 56' 17" W, a distance of 95.64 feet to a point on the apparent eastern right-of-way line of Bella Road; thence proceeding N 00˚ 15' 57" E along said right-of-way line, a distance of 2339.29 feet to a point; thence proceeding N 01˚ 58' 35" E along said right-of-way line, a distance of 43.61 feet to a point; thence proceeding N 23˚ 31' 36" E along said right-of-way line, a distance of 38.71 feet to a point; thence proceeding N 44˚ 24' 35" E along said right-of-way line, a distance of 26.42 feet to a point; thence proceeding N 48˚ 14' 13" E along said right-of-way line, a distance of 69.21 feet to the point of beginning; being bounded on the north by the apparent south and southeastern right-of-way line of Bella Road, on the south by the Vermilion Parish School Board on the east by Loubert G. Trahan and on the west by the apparent eastern right-of-way line of Bella Road, all as per plat by Richard J. Primeaux, dated June 20, 2007.

(4) Such transfers shall be executed without an election and notwithstanding any provision of this Chapter or of Part II of Chapter 1 of Title 17 to the contrary.

B. The school board, on behalf of the state of Louisiana, is hereby authorized to enter into such agreements, covenants, conditions, and stipulations and to execute such documents as are necessary to properly effectuate the delivery of complete title, excluding mineral rights, to the properties described in Subsection A of this Section, and as more specifically described in any such agreements entered into and documents executed by and between the school board and the purchasers, in exchange for payment of consideration proportionate to the appraised value of the properties in accordance with Article VII, Section 14 of the Constitution of Louisiana.

C. The Vermilion Parish School Board shall deposit the proceeds of the sale of properties authorized by this Section into the Dr. Daniel R. Dartez Educational Public Trust.

Acts 2009, No. 294, §1, eff. July 1, 2009; Acts 2010, No. 598, §3, eff. June 25, 2010.

RS 41:728

St. Tammany Parish School Board; unused school lands; sell, exchange, disposition; proceeds

§728. St. Tammany Parish School Board; unused school lands; sell, exchange, disposition; proceeds

A. Notwithstanding any other law to the contrary, whenever the St. Tammany Parish School Board, on behalf of the state of Louisiana, determines that any unused school lands, including but not limited to sixteenth section lands, indemnity for school lands, or other immovable property located in St. Tammany Parish and as more specifically described in any agreements entered into and documents executed by the St. Tammany Parish School Board, are no longer needed for school purposes and that the best interests of the St. Tammany Parish school system would be served by the sale, exchange, or other disposition of the property, the St. Tammany Parish School Board shall have authority to order the disposition of such sixteenth section lands, indemnity for school lands, or other immovable property at public auction or under sealed bids, except that immovable property subject to the provisions of R.S. 17:87.6 shall be disposed of as provided for in that Section. The procedure for disposition of the sixteenth section lands and indemnity for school lands shall be the same as for unused lands as provided for in R.S. 41:892. The St. Tammany Parish School Board shall reserve to the state all of the mineral rights and minerals in accordance with law. Any sale of sixteenth section lands which occurs as authorized by this Subsection shall be executed by the state land office on behalf of the St. Tammany Parish School Board.

B. All proceeds from the sale, exchange, or other disposition, less expenses of the disposition, if any, shall be used for the support of the schools located in St. Tammany Parish in furtherance of the purpose of the dedication of the sixteenth section lands or indemnity for school lands as provided by law.

Acts 2006, No. 74, §1, eff. May 25, 2006.

RS 41:729

Cameron Parish School Board; sale or exchange of sixteenth section lands

§729. Cameron Parish School Board; sale or exchange of sixteenth section lands

A. Notwithstanding any other law to the contrary, if the Cameron Parish School Board, on behalf of the state of Louisiana, determines that any sixteenth section lands located within Cameron Parish are no longer needed for school purposes and that the best interest of the Cameron Parish school system would be served by the sale or exchange of the lands, the school board may authorize a sale or exchange on behalf of the state in accordance with the procedures set forth in this Section.

B. The school board shall obtain an appraisal of the lands being considered for sale or exchange from a certified, licensed appraiser, and the appraisal shall be available for public inspection.

C. The school board shall hold a public hearing to receive public comment concerning the sale or exchange of the sixteenth section lands. The school board shall provide notice of the public hearing and notice of its intent to consider the sale or exchange of sixteenth section lands by advertisement in the official journal of the parish on at least three separate days at least thirty days prior to the date of the hearing. The notice shall include a brief description of the sixteenth section lands to be sold or exchanged, as well as any lands being considered in exchange for the sixteenth section lands. The appraisal required by Subsection B of this Section shall be made available for public inspection at the hearing.

D. After the hearing and with due consideration of any public comments, if the board determines that the sixteenth section lands are not needed for school purposes and that a sale or exchange is in the best interest of the school system, the school board may vote to authorize a sale or exchange.

E. Upon authorization of the school board for the sale of sixteenth section lands, the president of the school board may proceed with a sale on behalf of the state in accordance with the procedures provided in R.S. 41:892. Upon authorization of the school board for an exchange of sixteenth section lands, the president of the school board may proceed on behalf of the state with an exchange of the lands for other lands in Cameron Parish of equal or greater value.

F. The authority conferred by this Section shall be in addition to the authority conferred by any other law. This Section shall be construed liberally for the accomplishment of its purpose, which is to provide a complete and additional method for the sale or exchange of unused sixteenth section lands by the Cameron Parish School Board.

Acts 2023, No. 58, §1.

RS 41:761

Sale of swamp or sea marsh lands

SUBPART B. SWAMP OR SEA MARSH LANDS

§761. Sale of swamp or sea marsh lands

Whenever a sixteenth section donated to the state by Congress for school purposes is located in a township not habitable by reason of the township being swamp or sea marsh, the school board may, upon the petition of the land owners owning in area more than one-half of the land in the township, order the sale of the sixteenth section by resolution or motion passed by a majority of the members of the board present and voting.

RS 41:762

Procedure

§762. Procedure

When a sale of a sixteenth section is ordered, the sale shall be made by the parish treasurer of the parish in which the sixteenth section is located, in person or by the sheriff or any auctioneer of the parish, designated by the treasurer. The sale shall be made only after it has been advertised for thirty days in a newspaper published in the parish where the property is located; or if no newspaper is published in the parish, then, by posting a written or printed notice for thirty days at or near the front door of the court house in the parish where the property is situated and at two other public places in the parish. On the day named in the advertisement, the section shall be sold as a whole or in lots of not less than forty acres, at the principal front door of the court house of the parish in which the property is situated, between the hours of eleven o'clock A.M. and four o'clock P.M., with appraisement, to the last and highest bidder, and without a prior survey of the property, and upon the following terms and conditions: (1) One-tenth or more in cash at the option of the purchaser, and the remainder, if any, in nine equal annual installments, bearing eight per cent interest per annum from date, interest payable annually. (2) The deeds shall contain the usual security clauses and a stipulation to pay ten per cent attorney's fees in the event the services of an attorney are secured for the purpose of collection.

RS 41:763

Deed; disposition of proceeds

§763. Deed; disposition of proceeds

A. The deed of the parish treasurer shall be full and complete evidence of the sale, shall convey a good and valid title to the property sold and shall have all the force and effect of a notarial act.

B. All monies or notes received under and by virtue of the sale shall be disposed of by the parish treasurer in the manner now required by law.

RS 41:801

Sale of lands received as indemnity for school lands

SUBPART C. SCHOOL INDEMNITY LANDS

§801. Sale of lands received as indemnity for school lands

All lands owned by, or which may hereafter inure to the state from the United States government as indemnity for school lands, shall be disposed of as provided in this Subpart.

RS 41:802

Advertisement

§802. Advertisement

The Register of the State Land Office shall cause to be advertised for sale at public auction, for thirty clear days, a list of the lands to be sold, which have not already been advertised, and the publication shall be made in a newspaper published in the parish where the land to be sold is situated. No land to be sold shall be advertised in any paper published outside of the parish where the land is situated.

RS 41:803

Sale at public auction; withdrawal

§803. Sale at public auction; withdrawal

The register shall adjudicate the lands at public auction to the last and highest bidder at his office and in case the land so offered for sale fails to bring at auction the price of five dollars per acre the land shall be withdrawn from sale by the register and cannot thereafter be sold except by another advertisement as required by R.S. 41:802, nor except to the last and highest bidder at public auction for a price not less than five dollars per acre.

Amended by Acts 1954, No. 270, §1.

RS 41:804

Patent not to issue until purchase price is paid

§804. Patent not to issue until purchase price is paid

The register shall not issue a patent to the purchaser of the land until he has paid into the hands of the state treasurer the purchase price of the lands.

RS 41:805

Disposition of purchase price

§805. Disposition of purchase price

Out of the purchase price paid, the State Treasurer shall pay the cost of advertisement and shall place the balance to the credit of the various school boards entitled to receive the money.

RS 41:806

Fees

§806. Fees

In addition to the purchase price paid for the lands, the purchaser shall pay to the register the same fees as in other cases where a patent is issued.

SUBPART D. PROCEEDS OF SALE

§841. Free school fund

A. The proceeds of all lands heretofore granted by the United States to this state for the use or support of schools, except the sixteenth section in the various townships of the states specially reserved by Congress for the use and benefit of the people therein; and of all lands granted or bequeathed to the state and not specially granted or bequeathed for any other purpose, which are disposed of by the state, and the ten percent of the net proceeds of the sales of the public land which have accrued and are to accrue to this state under the act of Congress, entitled "An Act to appropriate the proceeds of the public lands", and to grant preemption rights, approved September 4, 1841; and the proceeds of the estates of deceased persons, to which the state has or may become entitled by law, shall be held by the state as a loan, and shall be and remain a perpetual fund, to be called the Free School Fund, on which the state shall pay an annual interest of six percent. The interest, together with the interest of the trust fund deposited with this state by the United States, under the act of Congress approved the twenty-third of June, eighteen hundred and thirty-six, and the rents of all unsold lands, except that of the sixteenth sections, shall be appropriated for the support of public schools in this state; and donations of all kinds which are made for the support of schools, and such other means as the legislature may from time to time set apart for school purposes, shall form a part of the fund, and shall also be a loan on which the state shall pay an interest of six percent per annum.

B. The state treasurer shall apply annually, and shall receive from the federal government the ten percent of monies due to this state, and shall place the money, when received, to the credit of the proper fund.

Acts 1986, No. 821, §1.

RS 41:842

Investment in levee bonds

§842. Investment in levee bonds

In addition to the investments now authorized by law, the State Auditor and State Treasurer, with the approval of the governor, may invest in levee bonds of this state yielding not less than four per cent per annum interest net, the proceeds of the sale of sixteenth section school lands now on hand, or that may accumulate, in the state treasury.

RS 41:843

Registration of bonds

§843. Registration of bonds

The State Auditor and the State Treasurer shall keep a distinct book wherein to register all bonds which are acquired by investment of proceeds of the sales of sixteenth section school lands, and shall write or stamp in legible characters on the face of the bonds the words, "The property of the Free School Fund of Louisiana". The bonds when so stamped, shall lose their negotiable character.

RS 41:844

Interest due townships

§844. Interest due townships

The State Auditor shall ascertain the amount of capital that may be due the several townships from the proceeds of the sales of sixteenth sections, made since the first of January, 1880, and actually paid into the state treasury. The amount thus ascertained shall be the capital upon which interest shall be thereafter allowed and paid out of the interest collected on the said bonds to the townships, the sixteenth sections of which have been sold since the 1st of January, 1880, and the proceeds actually paid into the state treasury, and the proceeds so paid invested as required by law.

In calculating the interest due the several townships, no interest shall be allowed for fractions of the year during which the receipts have come into the treasury; but it shall commence at the beginning of the 1st of January of the next year.

The interest due upon the capital thus ascertained, and the interest due upon subsequent sales, shall be paid to the townships in the manner now provided for by law. The State Auditor shall furnish the State Treasurer and superintendent of public education with a statement of the amount due each township.

RS 41:881

School board presidents may issue correction deeds

SUBPART E. CORRECTION DEEDS

§881. School board presidents may issue correction deeds

The presidents of the school boards of the several parishes shall enter into and execute deeds correcting the description in various deeds to sixteenth sections or parts thereof where the original of the deed was executed prior to January 1, 1900, when the president of the school board has been authorized to execute the correction deed by a resolution of the school board of the parish in which the sixteenth section or part thereof is located.

RS 41:882

Resolution of the school board

§882. Resolution of the school board

The school boards of the several parishes may enact and adopt, either at a regular meeting or a special meeting called for the express purpose, a resolution authorizing and requesting the president of the school board to execute a correction deed correcting the description in deeds to sixteenth sections or parts thereof where the sixteenth section or part thereof lies in the parish of the school board, when it is shown to the satisfaction of a majority of the school board that the original deed was in fact erroneous and it was the intent of the parish treasurer to sell and the purchaser to acquire a tract or tracts other than or in addition to the tract described in the original deeds.

RS 41:883

Resolution when land is in more than one parish

§883. Resolution when land is in more than one parish

If the sixteenth section of any township is divided by a parish line, the school board for the parish in which the greater portion of the section lies may authorize the correction deed and the president of the school board in which the greater portion of the section lies shall execute the deed.

RS 41:884

Action to enforce issuance of correction deed

§884. Action to enforce issuance of correction deed

If any school board refuses to enact and adopt a resolution authorizing the execution by the president of the school board of correction deed pertaining to sixteenth sections or parts thereof in the parish of the school board, then any interested party may bring a suit or suits against the school board in the district court in and for the parish where the sixteenth section is located for the purpose of securing a judgment authorizing and directing the president of the school board of the parish to execute the correction deed.

RS 41:891

Sale of unused school lands

SUBPART F. OTHER UNUSED SCHOOL LANDS

§891. Sale of unused school lands

Whenever the school board of any parish or city determines that any school lands or other immovable property under its control are no longer needed for school purposes and that the best interest of the public school system would be served by the sale of such lands, the school board shall have authority to dispose of such lands at public auction, under sealed bids, by licensed real estate broker in accordance with the procedure set forth in this Subpart; provided that this Subpart shall not apply to the sale of sixteenth section lands, school indemnity lands, or any other school lands for the sale of which the law already has provided a procedure in Chapter 6 of Title 41 of the Louisiana Revised Statutes or elsewhere in the law.

Added by Acts 1962, No. 214, §1. Amended by Acts 1972, No. 291, §1; Acts 2017, No. 249, §2.

RS 41:892

Procedure; deed of sale

§892. Procedure; deed of sale

A. Whenever a sale of property described in R.S. 41:891 is ordered by the school board, the sale shall be made by the president of the school board in person, through an auctioneer designated by the school board, or through a licensed real estate broker. The school board may obtain appraisals from up to three Louisiana state-certified appraisers to ascertain the current value of the property. The appraisals shall be obtained within six months prior to the conducting of the sale.

B. The sale at public auction or under sealed bids shall be made only after advertisement on at least three separate days for at least thirty days prior to the date on which the land is to be offered for sale in the official journal of the parish in which the land is situated or, if no newspaper is published in the parish, then by posting a written or printed notice for thirty days at or near the front door of the court house in the parish in which the property is situated, at or near the front door of the school board office and at one other public place in the parish.

C. On the day named in the advertisement, the property shall be sold at public auction at the school board office, between the hours of eleven a.m. and four p.m., with appraisement, to the last and highest bidder, upon such terms and conditions as the school board shall determine. The deeds shall contain the usual security clauses and a stipulation to pay ten percent attorney fees in the event it becomes necessary to secure the services of an attorney for the purpose of collection. If the highest bid received is not equal to or greater than the minimum bid as provided in Subsection E of this Section, the sale shall be cancelled and no bid shall be accepted.

D. On the date named in the advertisement if the property is to be sold under sealed bids, the bids shall be opened in the offices of the school board at the hour designated in the advertisement. The property shall be sold to the highest bidder upon such terms and conditions as the school board shall determine. The deed shall contain the usual security clauses and a stipulation to pay ten percent attorney fees in the event it becomes necessary to secure the services of an attorney for the purpose of collection. The school board shall reserve the right to reject any and all bids, and all bids shall be rejected if the highest bid received is not equal to or greater than the minimum bid as provided in Subsection E of this Section.

E.(1) The first time a school board offers a particular property for sale pursuant to this Section, the minimum bid shall be eighty-five percent of the appraised value of the property.

(2) If the school board fails to sell the property because the maximum bid received was not equal to or greater than the minimum bid established in Paragraph (1) of this Subsection, the school board may make a second effort to sell the property following the procedures outlined in this Section. The minimum bid for a second effort to sell the same property shall be eighty percent of the appraised value.

(3) If the school board has twice failed to sell property because the maximum bid received was not equal to or greater than the minimum bid otherwise provided in this Subsection, there shall be no minimum bid at the third effort to sell the property, and the school board may sell the property to the highest bidder as otherwise provided by this Section.

F.(1) In lieu of public auction or sealed bids, and when it is in the best interest of the school board, the school board may contract under policies adopted by the school board for the services of a licensed real estate broker to conduct the sale of the property. Such policies shall include the qualifications for a licensed real estate broker and appraiser.

(2) The term of the contract shall not exceed six months. A minimum sale price and a time period within which the sale is to occur shall be specified by the school board as conditions of the contract. Payment shall not exceed five percent of the sale price and shall be contingent upon completion of the sale in accordance with the terms and conditions of the contract. The school board shall have the right to cancel the contract at any time for any reason prior to the sale and conduct the sale as otherwise provided by law.

(3) No member or immediate family, as defined in R.S. 42:1102, of the school board or legislature shall perform the services of appraiser or real estate broker authorized by this Section.

G. The deed of the president of the school board shall be full and complete evidence of the sale, shall convey a good and valid title to the property sold, and shall have the force and effect of a notarial act.

Added by Acts 1962, No. 214, §1. Amended by Acts 1972, No. 291, §1; Acts 2010, No. 526, §1, eff. June 24, 2010; Acts 2017, No. 249, §2.

RS 41:893

Jefferson Parish School Board; exchange of unused school land

§893. Jefferson Parish School Board; exchange of unused school land

A. Whenever the Jefferson Parish School Board determines that a parcel of its property adjacent to the L.W. Higgings High School is no longer needed for school purposes and that the best interest of the public school system would be served by the exchange of such land for other land of comparable value, the board may exchange such land for a parcel of land in Jefferson Parish owned by the West Bank Cathedral, in accordance with the procedure set forth in this Section.

B. The Jefferson Parish School Board shall hold a public hearing to receive public comment concerning the exchange of such lands. Prior to the public hearing, the board shall obtain an appraisal from a certified appraiser of the lands being considered for exchange and such appraisals shall be available for public inspection at the hearing.

C. The school board shall provide notice of the public hearing and notice of its intent to consider the exchange of land as well as a brief description of both pieces of land by advertisement in the official journal of the parish in which the land is situated on at least three separate days at least thirty days prior to the date on which the hearing is to be held.

D. After such hearing and after giving due consideration to any public comment, the board may, at its next regularly scheduled meeting, vote to authorize the advertised exchange, provided that the board determines that the exchange is for a valid purpose in the best interest of the school board and, that the lands to be exchanged are of comparable value. The president of the board shall proceed with the exchange of the lands in accordance with the law and upon authorization of the board.

Acts 1985, No. 544, §1.

RS 41:894

Grant Parish School Board; exchange of unused school land

§894. Grant Parish School Board; exchange of unused school land

A. Whenever the Grant Parish School Board determines that a parcel of its property found in Township 6 North, Range 2 West, Section 16 is no longer needed for school purposes and that the best interest of the public school system would be served by the exchange of such land for other land of comparable value, the board may exchange such land for other parcels of land in Grant Parish owned by the Forest Service of the U. S. Department of Agriculture in accordance with the procedure set forth in this Section.

B. The Grant Parish School Board shall hold a public hearing to receive public comment concerning the exchange of such lands. Prior to the public hearing, the board shall obtain an appraisal from a certified appraiser of the lands being considered for exchange and such appraisals shall be available for public inspection at the hearing.

C. The school board shall provide notice of the public hearing and notice of its intent to consider the exchange of land as well as a brief description of both pieces of land by advertisement in the official journal of the parish in which the land is situated on at least three separate days at least thirty days prior to the date on which the hearing is to be held.

D. After such hearing and after giving due consideration to any public comment, the board may, at a regularly scheduled meeting, vote to authorize the advertised exchange, provided that the board determines that the exchange is for a valid purpose in the best interest of the school board and that the lands to be exchanged are of comparable value. The president of the board shall proceed with the exchange of the lands in accordance with the law and upon authorization of the board.

Acts 1986, No. 462, §1.

RS 41:895

Vermilion Parish School Board; exchange of unused school land

§895. Vermilion Parish School Board; exchange of unused school land

A. Whenever the Vermilion Parish School Board determines that a parcel of its property in Vermilion Parish, including but not limited to sixteenth section land, is no longer needed for school purposes and that the best interest of the public school system would be served by the exchange of such land for other land of comparable value, the school board may exchange such land for other land in Vermilion Parish in accordance with the procedures set forth in this Section.

B. The Vermilion Parish School Board shall hold a public hearing to receive public comment concerning the exchange of such lands. Prior to the public hearing, the school board shall obtain an appraisal from a certified appraiser of the lands being considered for exchange and such appraisal shall be available for public inspection at the hearing.

C. The school board shall provide notice of the public hearing and notice of its intent to consider the exchange of land as well as a brief description of both parcels of land by advertisement in the official journal of the parish in which the land is situated on at least three separate days at least thirty days prior to the date on which the hearing is to be held.

D. After such hearing and after giving due consideration to any public comment, the school board may, at a regularly scheduled meeting, authorize the advertised exchange, provided that a majority of the elected membership of the school board determines that the exchange is for a valid purpose in the best interest of the school board and that the lands to be exchanged are of comparable value. The president of the school board shall thereafter proceed with the exchange of the lands in accordance with law and upon authorization of the school board.

E. The powers and rights conferred by this Section shall be in addition to the powers and rights conferred by any other general or special law. This Section does and shall be construed to provide a complete and additional method for the exchange of unused school lands, including but not limited to sixteenth section lands, by the school board. No proceeding notice or approval shall be required for the exchange of unused school land by the school board, except as provided herein. The provisions of this Section shall be liberally construed for the accomplishment of its purposes.

Acts 1991, No. 32, §1, eff. June 19, 1991.

RS 41:896

DeSoto Parish School Board; exchange of unused school lands with the town of Logansport

§896. DeSoto Parish School Board; exchange of unused school lands with the town of Logansport

A. Whenever the DeSoto Parish School Board determines that a parcel of its property found in the town of Logansport, situated in DeSoto Parish, is no longer needed for school purposes and that the best interest of the public school system would be served by the exchange of such land for other public land, the board may exchange such land for other land owned by the town of Logansport.

B. The DeSoto Parish School Board shall hold a public hearing to receive public comment concerning the exchange of such lands. Prior to the public hearing, the board shall obtain an appraisal from a certified appraiser of the lands being considered for exchange and such appraisals shall be available for public inspection at the hearing.

C. The school board shall provide notice of the public hearing and notice of its intent to consider the exchange of land as well as a brief description of both parcels of land by advertisement in the official journal of the parish in which the land is situated on at least two separate days at least thirty days prior to the date on which the hearing is to be held.

D. After such hearing and after giving due consideration to any public comment, the board may, at a regularly scheduled meeting, vote to authorize the advertised exchange, provided that the board determines that the exchange is for a valid purpose in the best interest of the school board. The president of the board shall proceed with the exchange of the lands in accordance with the law and upon authorization of the board.

E. Notwithstanding any other provision of law to the contrary, the governing authority for the town of Logansport is authorized to exchange the property described in Subsection A of this Section by complying with the procedures set forth in this Section, except that notice of the public hearing shall be published on at least two separate days at least thirty days prior to the date on which the hearing is to be held in a newspaper published in the town, or if there is no such newspaper, in a newspaper having a general circulation in the town.

F. The powers and rights conferred by this Section shall be in addition to the powers and rights conferred by any other general or special law. The provisions of this Section shall be liberally construed for the accomplishment of its purposes.

Acts 1993, No. 471, §1.

RS 41:897

Bossier Parish School Board; exchange of unused school land

§897. Bossier Parish School Board; exchange of unused school land

A. Whenever the Bossier Parish School Board determines that a parcel of its property in Bossier Parish, including but not limited to sixteenth section land, is no longer needed for school purposes and that the best interest of the public school system would be served by the exchange of such land for other land of comparable value, the school board may exchange such land for other land in Bossier Parish in accordance with the procedures set forth in this Section.

B. The Bossier Parish School Board shall hold a public hearing to receive public comment concerning the exchange of such lands. Prior to the public hearing, the school board shall obtain an appraisal from a certified appraiser of the lands being considered for exchange, and such appraisal shall be available for public inspection at the hearing.

C. The school board shall provide notice of the public hearing and notice of its intent to consider the exchange of land as well as a brief description of both parcels of land by advertisement in the official journal of the parish in which the land is situated on at least three separate days at least thirty days prior to the date on which the hearing is to be held.

D. After such hearing and after giving due consideration to any public comment, the school board may, at a regularly scheduled meeting, authorize the advertised exchange, provided that a majority of the elected membership of the school board determines that the exchange is for a valid purpose in the best interest of the school board and that the lands to be exchanged are of comparable value. The president of the school board shall thereafter proceed with the exchange of the lands in accordance with law and upon authorization of the school board.

E. The powers and rights conferred by this Section shall be in addition to the powers and rights conferred by any other general or special law. This Section does and shall be construed to provide a complete and additional method for the exchange of unused school lands, including but not limited to sixteenth section lands, by the school board. No proceeding notice or approval shall be required for the exchange of unused school land by the school board, except as provided herein. The provisions of this Section shall be liberally construed for the accomplishment of its purposes.

Acts 1997, No. 421, §1, eff. June 22, 1997.

RS 41:898

Morehouse Parish School Board; exchange of unused school land

§898. Morehouse Parish School Board; exchange of unused school land

A. Whenever the Morehouse Parish School Board determines that a parcel of its property in Morehouse Parish, including but not limited to sixteenth section land, is no longer needed for school purposes and that the best interest of the public school system would be served by the exchange of such land for other land of comparable value, the school board may exchange such land for other land in Morehouse Parish in accordance with the procedures set forth in this Section.

B. The Morehouse Parish School Board shall hold a public hearing to receive public comment concerning the exchange of such lands. Prior to the public hearing, the school board shall obtain an appraisal from a certified appraiser of the lands being considered for exchange, and such appraisal shall be available for public inspection at the hearing.

C. The school board shall provide notice of the public hearing and notice of its intent to consider the exchange of land as well as a brief description of both parcels of land by advertisement in the official journal of the parish in which the land is situated* on at least three separate days at least thirty days prior to the date on which the hearing is to be held.

D. After such hearing and after giving due consideration to any public comment, the school board may, at a regularly scheduled meeting, authorize the advertised exchange, provided that a majority of the elected membership of the school board determines that the exchange is for a valid purpose in the best interest of the school board and that the lands to be exchanged are of comparable value. The president of the school board shall thereafter proceed with the exchange of the lands in accordance with law and upon authorization of the school board.

E. The powers and rights conferred by this Section shall be in addition to the powers and rights conferred by any other general or special law. This Section does and shall be construed to provide a complete and additional method for the exchange of unused school lands, including but not limited to sixteenth section lands, by the school board. No proceeding, notice, or approval shall be required for the exchange of unused school land by the school board, except as provided herein. The provisions of this Section shall be liberally construed for the accomplishment of its purposes.

Acts 1998, 1st Ex. Sess., No. 30, §1, eff. April 24, 1998.

*As appears in enrolled bill.

RS 41:899

Red River Parish School Board; exchange of unused school land

§899. Red River Parish School Board; exchange of unused school land

A. Whenever the Red River Parish School Board determines that a parcel of its property in Red River Parish, including but not limited to sixteenth section land, is no longer needed for school purposes and that the best interest of the public school system would be served by the exchange of such land for other land of comparable value, the school board may exchange such land for other land in Red River Parish in accordance with the procedures set forth in this Section.

B. The Red River Parish School Board shall hold a public hearing to receive public comment concerning the exchange of such lands. Prior to the public hearing, the school board shall obtain an appraisal from a certified appraiser of the lands being considered for exchange, and such appraisal shall be available for public inspection at the hearing.

C. The school board shall provide notice of the public hearing and notice of its intent to consider the exchange of land as well as a brief description of both parcels of land by advertisement in the official journal of the school board on at least three separate days at least thirty days prior to the date on which the hearing is to be held.

D. After such hearing and after giving due consideration to any public comment, the school board may, at a regularly scheduled meeting, authorize the advertised exchange, provided that a majority of the elected membership of the school board determines that the exchange is for a valid purpose in the best interest of the school board and that the lands to be exchanged are of comparable value. The president of the school board shall thereafter proceed with the exchange of the lands in accordance with law and upon authorization of the school board.

E. The powers and rights conferred by this Section shall be in addition to the powers and rights conferred by any other general or special law. This Section does and shall be construed to provide a complete and additional method for the exchange of unused school lands, including but not limited to sixteenth section lands, by the school board. No proceeding notice or approval shall be required for the exchange of unused school land by the school board, except as provided herein. The provisions of this Section shall be liberally construed for the accomplishment of its purposes.

Acts 1999, No. 6, §1, eff. May 13, 1999.

RS 41:900

Rapides Parish School Board; exchange of unused school land

§900. Rapides Parish School Board; exchange of unused school land

A. Whenever the Rapides Parish School Board determines that a parcel of its property in Rapides Parish, including but not limited to sixteenth section land, is no longer needed for school purposes and that the best interest of the public school system would be served by the exchange of such land for other land of comparable value, the school board may exchange such land for other land in Rapides Parish in accordance with the procedures set forth in this Section.

B. The Rapides Parish School Board shall hold a public hearing to receive public comment concerning the exchange of such lands. Prior to the public hearing, the school board shall obtain an appraisal from a certified appraiser of the lands being considered for exchange, and such appraisal shall be available for public inspection at the hearing.

C. The school board shall provide notice of the public hearing and notice of its intent to consider the exchange of land as well as a brief description of both parcels of land by advertisement in the official journal of the parish on at least three separate days at least thirty days prior to the date on which the hearing is to be held.

D. After such hearing and after giving due consideration to any public comment, the school board may, at a regularly scheduled meeting, authorize the advertised exchange, provided that a majority of the elected membership of the school board determines that the exchange is for a valid purpose in the best interest of the school board and that the lands to be exchanged are of comparable value. The president of the school board shall thereafter proceed with the exchange of the lands in accordance with law and upon authorization of the school board.

E. The powers and rights conferred by this Section shall be in addition to the powers and rights conferred by any other general or special law. This Section does and shall be construed to provide a complete and additional method for the exchange of unused school lands including but not limited to sixteenth section lands by the school board. No proceeding notice or approval shall be required for the exchange of unused school land by the school board except as provided herein. The provisions of this Section shall be liberally construed for the accomplishment of its purposes.

F.(1) The Rapides Parish School Board may exchange immovable property it currently holds in full ownership for full ownership of the immovable property described in Paragraph (2) of this Subsection upon which the school board possesses a full surface use servitude. Such exchange shall be for property of equal value and shall be conducted in accordance with the procedures set forth in this Section.

(2) The property to which this specific grant of authority applies is: A tract of land in Section 27, T1S-R4W, described as commencing at a point on the South line of said section where the East line of the right of way for State Highway Number 151 crosses said section line and running thence N.31º40' East along the East line of said highway 14.08 chains; thence N.89º55' East 12.60 chains; thence South 0º7' East 12 chains, to a point on the South line of said Section 27; thence S.89º58' W. along said section line 20 chains to a point of beginning, containing 19.56 acres more or less.

Acts 2004, No. 410, §1, eff. June 24, 2004.

RS 41:901

Concordia Parish School Board; exchange of school lands; procedures; description

§901. Concordia Parish School Board; exchange of school lands; procedures; description

A. Notwithstanding any other law to the contrary, whenever the Concordia Parish School Board, on behalf of the state of Louisiana, determines, relative to any school lands including but not limited to sixteenth section lands, indemnity for school lands, or other immovable property located in Concordia Parish and as more specifically described in any agreements entered into and documents executed by the Concordia Parish School Board, that the best interest of the Concordia Parish school system would be served by the exchange of such land for other land of comparable value, the school board may exchange such land for other land in Concordia Parish in accordance with the procedures set forth in this Section.

B. The Concordia Parish School Board shall obtain an appraisal of the lands to be exchanged from a certified, licensed appraiser and such appraisal shall be available for public inspection.

C. In the case of exchanging land, the land to be received by the Concordia Parish School Board shall be of equal or greater value than the land that the Concordia Parish School Board is to relinquish or exchange.

D. The Concordia Parish School Board shall reserve to the state all of the mineral rights and minerals in accordance with law.

E. The provisions of this Section shall be applicable but shall not be limited to a tract of land located in the Fractional Section 7, T8N, R10E of Concordia Parish containing 130 acres, more or less.

Acts 2006, No. 20, §1, eff. May 4, 2006.

RS 41:902

Exchange, lease, sale of unused school land; emergency circumstances

§902. Exchange, lease, sale of unused school land; emergency circumstances

A. Notwithstanding the requirements of this Subpart regarding procedures for the transfer of unused school land, whenever any city, parish, or other local public school board which has, as the result of the occurrence of a hurricane which resulted in a declaration of a disaster by both the governor and the president of the United States, a student membership of ten to thirty percent less in May following the hurricane than it had during the October first membership count in the year before the year of the hurricane or the Recovery School District, as provided for in R.S. 17: 1990, has determined that school property exists that will not be used for providing educational services, the governing authority of such school board or such school district may exchange, lease, or sell such property directly, and without meeting the requirements of this Subpart or any other provision of law, to the governing authority of any independent secondary school which has operated a school approved by the State Board of Elementary and Secondary Education, pursuant to R.S. 17:11, for not less than twenty-five years prior to August 29, 2005, in an area subject to an emergency declaration of the governor as a result of devastation resulting from a hurricane and which is in need of property or facilities in which to locate a school because its prior school building was rendered uninhabitable by the hurricane and cannot be restored to a habitable condition prior to the beginning of the next semester following the hurricane. However, the Recovery School District shall not exercise such authority to sell, exchange, or lease any property or building unless it first offers such property or building without cost to the local public school board to which the property belonged prior to its being under the control of the school district and such local public school board refuses at a public meeting to accept the return of the property or building.

B. Property sold, leased, or exchanged under the authority of this Section shall be sold at a price or leased or exchanged based on a value that is determined by averaging the market value appraisals of three appraisers, one selected by the governing authority of the school system seeking to sell, lease, or exchange the property, one selected by the governing authority of the independent secondary school, and a third selected by the two appraisers selected by the school district and the independent secondary school. The costs of determining the value shall be borne by the independent secondary school.

C. Property sold or exchanged under the authority of this Section shall remain the property of the governing authority to which it was sold or exchanged by the school district regardless of the return of any school under the jurisdiction of the school district to the city, parish, or other local public school system from which it was originally transferred.

D. The authority granted in this Section may be exercised without compliance with any bidding requirements otherwise required by law. Any proceeds resulting from a lease or sale as authorized in this Section shall be directed to the city, parish, or other local public school board to which the property belonged, regardless of it being under the control of the Recovery School District.

Acts 2006, No. 455, §2, eff. June 15, 2006.

RS 41:903

Central Community School Board; exchange of unused school land

§903. Central Community School Board; exchange of unused school land

A. Whenever the Central Community School Board determines that a parcel of its property in the Central community school system, including but not limited to sixteenth section land, is no longer needed for school purposes and that the best interest of the school system would be served by the conveyance of such land in exchange for other land and consideration proportionate to the appraised value of the land being conveyed, the school board may convey such land in exchange for other land within the boundaries of the school system and other consideration in accordance with the procedures set forth in this Section. For purposes of this Section, "exchange" includes an exchange of land for other land and other consideration in accordance with Article VII, Section 14 of the Constitution of Louisiana.

B. The Central Community School Board shall hold a public hearing to receive public comment concerning the exchange of such lands. Prior to the public hearing, the school board shall obtain an appraisal from a certified appraiser of the lands being considered for exchange, and such appraisal shall be available for public inspection at the hearing.

C. The school board shall provide notice of the public hearing and notice of its intent to consider the exchange of land as well as a brief description of both parcels of land by advertisement in the official journal of the parish in which the land is situated on at least three separate days at least thirty days prior to the date on which the hearing is to be held.

D. After such hearing and after giving due consideration to any public comment, the school board may, at a regularly scheduled meeting, authorize the advertised exchange, provided that a majority of the elected membership of the school board determines that the exchange is for a valid purpose in the best interest of the school board and that the lands to be exchanged are of comparable value. The president of the school board shall thereafter proceed with the exchange of the lands in accordance with law and upon authorization of the school board.

E. The powers and rights conferred by this Section shall be in addition to the powers and rights conferred by any other general or special law, including but not limited to the provisions of R.S. 41:640. This Section does and shall be construed to provide a complete and additional method for the exchange of unused school lands, including but not limited to sixteenth section lands, by the school board. No proceeding, notice, or approval shall be required for the exchange of unused school land by the school board, except as provided in this Section. The provisions of this Section shall be liberally construed for the accomplishment of its purposes.

Acts 2008, No. 728, §1, eff. July 6, 2008.

RS 41:904

East Baton Rouge Parish School Board; Central Community School Board; transfer of certain sixteenth section lands

§904. East Baton Rouge Parish School Board; Central Community School Board; transfer of certain sixteenth section lands

A. The legislature hereby recognizes that the East Baton Rouge Parish School Board and the Central Community School Board entered into a Quitclaim, Transfer and Conveyance Deed and Waiver, Release, and Indemnity Agreement effective June 25, 2009, and filed and recorded in East Baton Rouge Parish Original: 167, Bundle: 12186, by which the East Baton Rouge Parish School Board, to the extent allowed by law, transferred, conveyed, assigned, quitclaimed, released and relinquished to the Central Community School Board any rights, title and interests, including but not limited to mineral rights and rights of management, administration, custodianship, control, and maintenance, that the East Baton Rouge Parish School Board had or may have had in under, and to that portion of sixteenth section land, Township 5 South, Range 2 East, through which Louisiana Highway 64 runs, in East Baton Rouge Parish commonly referred to as the "Indian Mound Tract".

B. Notwithstanding any other law to the contrary, the state of Louisiana hereby acknowledges, consents to, approves, ratifies and confirms the Quitclaim, Transfer and Conveyance Deed and Waiver, Release, and Indemnity Agreement filed and recorded in East Baton Rouge Parish Original: 167, Bundle: 12186. The state of Louisiana hereby further transfers, conveys, and assigns to the Central Community School Board all of its ownership rights, title and interest, including mineral rights, operation, management, administration, custodianship, and control of the property described in Subsection A of this Section subject to any servitudes, building restrictions, rights of way, mineral servitudes or leases, or any other matters, established by law or of record in the records of East Baton Rouge Parish.

C. The state of Louisiana hereby acknowledges and confirms that the Central Community School Board is and shall be entitled to all income derived from the Indian Mound Tract including but not limited to mineral rights and all mineral income, except that portion to which the Livingston Parish School Board is entitled. To the extent necessary, the state of Louisiana transfers and assigns all right, title and interest in and to any and all existing leases including but not limited to mineral leases and mineral contracts related to the Indian Mound Tract.

Acts 2010, No. 598, §2.

RS 41:905

Sale of unused school property by Orleans Parish School Board to public bodies

§905. Sale of unused school property by Orleans Parish School Board to public bodies

A. For purposes of this Section, and notwithstanding any provision of this Chapter to the contrary, unless the context clearly requires otherwise, the following terms shall mean:

(1) "Public body" shall mean the state of Louisiana or any department, agency, or instrumentality, or official thereof, any political subdivision of the state or any department, agency, instrumentality or official thereof, or any other unit of state or local government in the state.

(2) "School board" shall mean the Orleans Parish School Board.

(3) "School property" shall mean any school property or other immovable property under the control of the school board, including but not limited to sixteenth section lands and school indemnity lands.

B. Notwithstanding the requirements of this Chapter regarding the sale of school property, whenever the school board determines that school property is no longer needed for school purposes, including those purposes set forth in R.S. 17:3982(B), and that the best interests of the school system would be served by the sale of such property, the school board may sell such property, without meeting the requirements of this Chapter or any other provision of law, to a public body as provided in this Section. If the school board determines pursuant to this Section that any sixteenth section lands or indemnity school lands shall be sold, the sale shall be executed by the state land office on behalf of the school board.

C. The property sold under the authority of this Section shall be sold at a price that is not less than the appraised value of the property. The school board shall establish the appraised value by obtaining an appraisal of the property to be sold from a certified, licensed appraiser not more than six months prior to the date of the sale. The appraisal shall be available for public inspection. The cost of the appraisal shall be borne by the public body that purchases the property.

D. Notwithstanding any other provision of law to the contrary, proceeds from a sale as authorized by this Section shall be paid over to the school board and shall be used for the support of schools of the school system and, in the case of the sale of sixteenth section lands or indemnity school lands, for the purposes of the dedication of such lands as provided by law.

Acts 2011, No. 393, §1, eff. July 1, 2011.

RS 41:906

Union Parish School Board; exchange of unused school land

§906. Union Parish School Board; exchange of unused school land

A. Whenever the Union Parish School Board determines that a parcel of its property in Union Parish, including but not limited to sixteenth section land, is no longer needed for school purposes and that the best interest of the public school system would be served by the exchange of such land for other land of comparable value, the school board may exchange such land for other land in Union Parish in accordance with the procedures set forth in this Section.

B. The Union Parish School Board shall hold a public hearing to receive public comment concerning the exchange of school land. Prior to the public hearing, the school board shall obtain an appraisal from a certified appraiser of the land being considered for exchange, and such appraisal shall be available for public inspection at the hearing.

C. The school board shall provide notice of the public hearing and notice of its intent to consider the exchange of land as well as a brief description of both parcels of land by advertisement in the official journal of Union Parish on at least three separate days at least thirty days prior to the date on which the hearing is held.

D. After such hearing and after giving due consideration to any public comment, the school board may, at a regularly scheduled meeting, authorize the exchange of land provided that a majority of the elected membership of the school board determines that the exchange is for a valid purpose, is in the best interest of the school board, and that the lands to be exchanged are of comparable value.

E. The powers and rights conferred by this Section shall be in addition to the powers and rights conferred by any other general or special law. This Section does and shall be construed to provide a complete and additional method for the exchange of unused school land, including but not limited to sixteenth section land, by the school board. No proceeding, notice, or approval shall be required for the exchange of unused school land by the school board, except as provided in this Section. The provisions of this Section shall be liberally construed for the accomplishment of its purposes.

Acts 2022, No. 234, §1.

RS 41:907

West Baton Rouge Parish School Board; exchange of sixteenth section lands

§907. West Baton Rouge Parish School Board; exchange of sixteenth section lands

A. Notwithstanding any other law to the contrary, if the West Baton Rouge Parish School Board, on behalf of the state of Louisiana, determines that any school lands, including but not limited to sixteenth section lands, school indemnity lands, or other immovable property located in West Baton Rouge Parish and as more specifically described in any agreements entered into and documents executed by the West Baton Rouge Parish School Board, are no longer needed for school purposes and that the best interest of the West Baton Rouge Parish school system would be served by the exchange of such land for other land of at least comparable value, the school board may exchange such land for other land in West Baton Rouge Parish in accordance with the procedures set forth in this Section.

B. The West Baton Rouge Parish School Board shall obtain an appraisal of the lands to be exchanged from a certified, licensed appraiser, and such appraisal shall be available for public inspection.

C. The land to be received by the West Baton Rouge Parish School Board shall be of equal or greater value than the land that the West Baton Rouge Parish School Board is to relinquish or exchange.

D. The West Baton Rouge Parish School Board shall reserve to the state all of the mineral rights and minerals in accordance with law. The other party in an exchange may reserve its mineral rights and minerals subject to the terms of any agreement entered into with the school board.

E. The provisions of this Section shall be applicable to any Section 16 lands situated within West Baton Rouge Parish, including but not limited to exchanges of part or all of Section 16, Township 6 South, Range 11 East of West Baton Rouge Parish, less and except the Southwest corner of the Section 16 forming a tract approximately 600 feet fronting on Section Road and approximately 2,000 feet fronting on Rougon Road, and Section 16, Township 7 South, Range 12 East, commonly known as the "Leininger Tract".

Acts 2014, No. 28, §1.

RS 41:908

Ouachita Parish School Board; sale or exchange of school lands; procedures; description

§908. Ouachita Parish School Board; sale or exchange of school lands; procedures; description

A. Notwithstanding any other law to the contrary, if the Ouachita Parish School Board, on behalf of the state of Louisiana, determines that any school land, including but not limited to sixteenth section lands, school indemnity lands, or other immovable property located in Ouachita Parish and as more specifically described in any agreements entered into and documents executed by the Ouachita Parish School Board, is no longer needed for school purposes and that the best interest of the Ouachita Parish school system would be served by the sale or exchange of such land, the school board may sell its interest or exchange such land for other land in Ouachita Parish in accordance with the procedures set forth in this Section.

B. The Ouachita Parish School Board shall obtain an appraisal of the land to be sold or exchanged from a certified, licensed appraiser and such appraisal shall be available for public inspection.

C. If land is being exchanged, the land to be received by the Ouachita Parish School Board shall be of equal or greater value than the land that the Ouachita Parish School Board is to relinquish or exchange.

D. The Ouachita Parish School Board shall reserve to the state all of the mineral rights and minerals in accordance with law.

E. The provisions of this Section shall be applicable but shall not be limited to the sale or exchange of part or all of Section 16, Township 17 North, Range 5 East of Ouachita Parish, as well as any other sixteenth section land situated within Ouachita Parish.

Acts 2014, No. 84, §1, eff. May 16, 2014.

RS 41:921

Actions for recovery of title and damages for trespass

PART IV. ACTIONS INVOLVING SCHOOL LANDS

SUBPART A. ACTIONS BY THE STATE

§921. Actions for recovery of title and damages for trespass

The Attorney General may contract with and employ attorneys at law to sue for and recover from any person, firm or corporation, claiming under color of title, sixteenth sections known as school lands, title to which belongs to the State of Louisiana, and to sue for and recover damages for trespass upon sixteenth sections known as school lands except where the school boards have sold the timber thereon, whether the trespasser claims under color of title or not.

RS 41:922

Compensation of attorneys

§922. Compensation of attorneys

The compensation of the attorneys employed shall be fixed by contract between the attorneys employed, and the Attorney General, and shall be a contingent fee, conditioned upon recovery and shall not exceed thirty-three and one-third percent of the amount of damages or land sued for and recovered, or both, where land and damages are recovered.

RS 41:923

Suit in name of state

§923. Suit in name of state

In all cases suit shall be brought for and in the name of the State of Louisiana.

RS 41:924

Lands to which applicable

§924. Lands to which applicable

The authority given by this Subpart shall apply to all sixteenth sections donated by the Congress of the United States to the State of Louisiana in trust for public school purposes, and to which the state has never legally parted with the title.

RS 41:925

Disposition of proceeds

§925. Disposition of proceeds

All moneys recovered for the state shall, after deducting and paying the attorneys' fees, and all other lawful costs and charges, be paid into the state treasury, to be kept on the books of the State Auditor and the State Treasurer, to the credit of the township in which the land is situated, in the same manner as now provided by law for the proceeds of the sale of sixteenth sections.

RS 41:961

Actions for recovery of title and damages for trespass

SUBPART B. ACTIONS BY SCHOOL BOARDS

§961. Actions for recovery of title and damages for trespass

The school boards of the various parishes of the state may contract with and employ on the part of the State of Louisiana, attorneys at law, to recover for the state, damages for trespass to the sixteenth section known as school lands the title to which is still in the state. Each of the boards may make these contracts for the lands situated in its own parish and no others. The school boards may also sue for and recover the sixteenth section known as school lands.

RS 41:962

Compensation of attorneys

§962. Compensation of attorneys

The attorneys thus employed shall work in conjunction with the district attorney for the parish in which the land is situated. The compensation of the district attorneys shall remain as now fixed by law; but the compensation of the other attorneys employed shall be fixed by contract between the respective school boards and the attorneys employed, and shall in each case be a contingent fee, conditioned upon recovery. The fee shall in each case be a fixed percentage of the amount recovered, and shall in no case exceed twenty-five per cent of the amount recovered. If more than one attorney is employed for the same cause, the same fee shall be paid to the whole number of attorneys, as if only one had been employed.

RS 41:963

Suit in name of state; scope

§963. Suit in name of state; scope

Suit in all cases shall be brought in the name of the State of Louisiana, and the attorneys employed shall sue for the value of all timber cut and removed from any such lands, as well as any and all other legal damages caused by any trespass.

RS 41:964

Lands to which applicable

§964. Lands to which applicable

The authority given by this Subpart shall apply to all sixteenth sections donated by congress to this state in trust for public school purposes, and to which the state has never legally parted with the title. The suits herein authorized may be brought against those who claimed the right to cut and remove timber from any such lands, under color of title.

RS 41:965

Disposition of proceeds

§965. Disposition of proceeds

The amount recovered for the state shall, after deducting and paying the attorneys' fees and all other lawful costs and charges, be paid into the state treasury, to be kept on the books of the State Auditor and State Treasurer, to the credit of the township in which the land is situated, in the same manner as now provided by law for the proceeds of the sale of sixteenth sections.

RS 41:981

Lease of lands granted by congress for school purposes

PART V. LEASE OF SCHOOL LANDS

§981. Lease of lands granted by congress for school purposes

A. The school board of any parish or municipality in which land is located that was granted, appropriated or reserved by congress in trust to the state of Louisiana, for school purposes is authorized to lease such land, except portions thereof in use or needed for school purposes, to a parish or municipality through a corporate industrial development board organized under the provisions of Chapter 7 of Title 51 of the Louisiana Revised Statutes of 1950, as an instrumentality of the parish or municipality, subject to the approval of such lease by the Louisiana Board of Commerce and Industry.

B. The school board may enter into such leases by authority of a resolution adopted by the board, without approval of a vote of electors and without advertising or seeking bids. Provided, however, that the amount of the lease payment shall be equal to the fair market value of such Section 16 lands at the time of entering into the lease as determined by the industrial development board and fair market value redetermined every ten years for the purpose of adjusting rentals, set forth in R.S. 41:981A. The school board may not grant to such a lessee any right to develop or produce oil, gas or any other minerals on such land.

C. Every such lease shall provide for the reentry thereon by the school board for use for school purpose at any time upon reasonable notice to the lessee with respect to all or any part of the leased premises except such land upon which the lessee has constructed improvements as permitted by the lease or otherwise with the consent of the school board, together with a reasonable acreage surrounding the improvements adequate to permit the intended use of the improvement.

D. Except as otherwise agreed upon in the lease, the ownership of, removal of, compensation for and other matters relative to improvements placed upon the leased land shall be governed by Chapter 7 of Title 51 of the Louisiana Revised Statutes of 1950 and by the general laws of this state governing leases.

E. All revenues realized from a lease authorized by this section shall be paid to the school board and credited to the current school fund of the parish or municipality, as the case may be. In the event the township in which the sixteenth section is located lies in two or more parishes, the revenues realized from the lease shall be prorated on the basis of percentage of the township lying within each parish.

F. Except as otherwise provided in this section, a school board may enter a lease herein authorized upon such terms and conditions and for such consideration as the board shall determine.

G. The provisions of this section shall be in addition and supplemental to other powers and authority granted to school boards by other laws.

Added by Acts 1973, No. 161, §1.

RS 41:1001

Application for sale of timber on state lands

CHAPTER 7. TIMBER

PART I. TIMBER ON STATE LANDS

§1001. Application for sale of timber on state lands

Any person who desires to purchase any timber located on property under the jurisdiction of the state land office, shall file with the register of the state land office, an application to purchase giving the exact location, section, township and range, and the types of timber he desires to purchase. The applicant shall deposit with the register of the state land office, the sum of one hundred dollars as evidence of good faith. Should the applicant, at the sale of timber as provided for in this Part, fail to purchase the timber, then the money so deposited may be returned to him; provided that should no one at the sale bid up to the minimum price stipulated in this Part, then the money shall be retained to pay the expenses of the sale.

Acts 1978, No. 405, §1; Acts 2018, No. 242, §2.

RS 41:1002

Information to be secured as to quantity and value of timber

§1002. Information to be secured as to quantity and value of timber

On receipt of an application to have timber offered for sale, the register of the state land office shall request the assistant commissioner of the Department of Agriculture and Forestry, office of forestry to evaluate the current market value and quantity that could be harvested based on sound forestry practices. The register of the state land office may on his own initiative advertise for bids for sale of timber as provided in this Part.

Acts 1978, No. 405, §1; Acts 2018, No. 242, §2.

RS 41:1003

Advertisement

§1003. Advertisement

The register of the state land office shall cause to be published an advertisement in the official journal of the parish where the land is located setting forth the description of the land on which the timber to be sold is located, the type and quantity of timber, and the time, place, and terms of the sale. The advertisement shall be published for a period of not less than fifteen days and at least once a week during three consecutive weeks.

Acts 1978, No. 405, §1; Acts 2018, No. 242, §2.

RS 41:1004

Place; time; minimum price; proces verbal

§1004. Place; time; minimum price; proces verbal

A. The timber so advertised shall be sold to the highest bidder by the sheriff of the parish where the timber is located, at the time and place mentioned in the advertisement for the consideration of bids. All bids shall be submitted sealed and opened publicly by the sheriff. No bid shall be accepted by the sheriff after the time designated as the time for opening such bids. No bid shall be considered unless accompanied by a cashier's check, certified check, or bank money order in the exact amount of the bid submitted and made payable to the sheriff of the parish in which the sale is conducted. No bid shall be accepted if less than the minimum price established by the Department of Agriculture and Forestry, office of forestry. The sheriff conducting the sale shall deliver a proces verbal of the sale to the successful bidder.

B. Notwithstanding any other provision of law, when the register of the state land office determines that the disposition of timber by the sheriff is not in the best interest of the state, the register of the state land office may conduct a sale by utilizing sealed bids. No bid shall be accepted if less than the minimum price established by the Department of Agriculture and Forestry.

Acts 1978, No. 405, §1; Acts 2018, No. 156, §1; Acts 2018, No. 242, §2.

RS 41:1005

Proceeds

§1005. Proceeds

A. All monies derived from the sale of timber shall be forwarded to the state land office for deposit in the state treasury without delay, after the sheriff making the sale has deducted therefrom the expense of advertising and his commissions for making the sales. The commission shall be two percent of the amount bid and paid, provided that this commission shall not exceed one hundred dollars for one day's adjudication.

B. The sheriff in forwarding the money shall forward a statement certified by him as correct, showing the amount of bid, the expenditure for advertising and the amount withheld by him as commission; he shall at the same time forward to the register of the state land office a duplicate of his proces verbal of sale showing a correct description of the property sold with the recital of the acts performed by him in effecting the sale, the amount of the purchase price received, and the amount forwarded to the state land office.

Acts 1989, No. 511, §1; Acts 2018, No. 242, §2.

RS 41:1006

Removal of timber

§1006. Removal of timber

The adjudicatee of the timber sold pursuant to the provisions of this Part shall have the right of ingress and egress at any time for the purpose of removing the timber from the land; provided that the time stipulated to cut and remove the timber shall be fixed in the advertisement and in the act of sale by the register of the state land office as well as the type and size of trees to be cut. The term for removal of the timber shall not exceed one year unless proof is provided to the register of the state land office that the delay would result in unavoidable hardship. Upon such proof, the register of the state land office may grant an extension for up to one year provided consideration totaling ten percent of the actual amount of the sale is remitted to the state land office.

Acts 1978, No. 405, §1; Acts 2018, No. 242, §2.

RS 41:1007

Advertising rates

§1007. Advertising rates

The newspapers publishing the advertisements of sale provided for in this Part shall receive therefor not more than the legal rate for advertising.

Acts 1978, No. 405, §1.

RS 41:1008

Sale of timber on state lands where title in dispute: disposition of proceeds

§1008. Sale of timber on state lands where title in dispute: disposition of proceeds

Should the state land office advertise and sell timber on state lands, the title to which is in dispute, a provision may be made that the consideration to be paid the state by the adjudicatee of the timber sold pursuant to the provisions of this Part, shall be deposited in escrow with the state land office, to be held by that department pending the final determination of the validity of the title to the land or until the state land office and the grantee otherwise agree the payment should be made or released as provided for in the agreement.

Added by Acts 1978, No. 405, §1; Acts 2018, No. 242, §2.

RS 41:1009

Cutting or sale, or both, of cypress timber on state property; prohibition

§1009. Cutting or sale, or both, of cypress timber on state property; prohibition

The cutting or sale, or both, of standing cypress timber located on any property owned by the state of Louisiana is hereby prohibited pursuant to R.S. 3:4278.5.

Added by Acts 1980, No. 795, §1; Acts 2018, No. 242, §2; Acts 2021, No. 190, §2, eff. June 11, 2021.

RS 41:1041

Application for sale of timber on levee board lands

PART II. TIMBER ON LEVEE BOARD LANDS

§1041. Application for sale of timber on levee board lands

Any person who desires to purchase any timber located on property belonging to any levee board shall file with the secretary of the levee board an application to purchase giving the exact location, section, township and range, and the types of timber he desires to purchase. The applicant shall deposit with the secretary of the levee board the sum of one hundred dollars as evidence of good faith. Should the applicant, at the sale of timber as provided for in this Part, fail to purchase the timber, then the money so deposited may be returned to him; provided that should no one at the sale bid up to the minimum price stipulated in this Part, then the money shall be retained to pay the expenses of the sale.

Acts 1978, No. 405, §1.

RS 41:1042

Information to be secured as to quantity and value of timber

§1042. Information to be secured as to quantity and value of timber

On receipt of an application to have timber offered for sale, the secretary of the levee board shall request the assistant commissioner of the Department of Agriculture and Forestry, office of forestry to evaluate the current market value and quantity that could be harvested based on sound forestry practices. The levee board may on its own initiative advertise for bids for sale of timber as provided in this Part.

Acts 1978, No. 405, §1; Acts 2018, No. 242, §2.

RS 41:1043

Advertisement

§1043. Advertisement

The secretary of the levee board shall cause to be published an advertisement in the official journal of the parish wherein the land is located setting forth the description of the land on which the timber to be sold is located, the type and quantity of timber, and the time, place, and terms of the sale. The advertisement shall be published for a period of not less than fifteen days and at least once a week during three consecutive weeks.

Acts 1978, No. 405, §1.

RS 41:1044

Place; time; minimum price; proces verbal

§1044. Place; time; minimum price; proces verbal

The timber so advertised shall be sold to the highest bidder by the sheriff of the parish where the timber is located, at the time and place mentioned in the advertisement for the consideration of bids. All bids shall be submitted sealed and opened publicly by the sheriff. No bid shall be accepted by the sheriff after the time designated as the time for opening such bids. No bid shall be considered unless accompanied by a cashier's check, certified check, or bank money order in the exact amount of the bid submitted and made payable to the sheriff of the parish in which the sale is conducted. No bid shall be accepted if less than the minimum price established by the Department of Agriculture and Forestry, office of forestry. The sheriff conducting the sale shall deliver a proces verbal of the sale to the successful bidder.

Acts 1978, No. 405, §1; Acts 2018, No. 242, §2.

RS 41:1045

Proceeds

§1045. Proceeds

All monies derived from the sale of timber shall be forwarded to the levee board, without delay, after the sheriff making the sale has deducted therefrom the expense of advertising and his commissions for making the sales. The commission shall be two percent of the amount bid and paid, provided that this commission shall not exceed one hundred dollars for one day's adjudication. The sheriff in forwarding the money shall forward a statement certified by him as correct, showing the amount of bid, the expenditure for advertising and the amount withheld by him as commission; he shall at the same time forward to the secretary of the levee board a duplicate of his proces-verbal of sale wherein he shall give a correct description of the property sold with the recital of the acts performed by him in effecting the sale, the amount of the purchase price received, and the amount forwarded to the levee board.

Acts 1978, No. 405, §1.

RS 41:1046

Removal of timber

§1046. Removal of timber

The adjudicatee of the timber sold under the provisions of this Part shall have the right to ingress and egress at any time for the purpose of removing the timber from the land; provided that the time stipulated to cut and remove the timber shall be fixed in the advertisement and in the act of sale by the secretary of the levee board as well as the type and size of trees to be cut. The term for removal of the timber shall not exceed one year unless proof is provided to the secretary of the levee board that the delay would result in unavoidable hardship. Upon such proof, the secretary may grant an extension for up to one year provided consideration totaling ten percent of the actual amount of the sale is remitted to the levee board.

Acts 1978, No. 405, §1.

RS 41:1047

Advertising rates

§1047. Advertising rates

The newspapers publishing the advertisements of sale provided for in this Part shall receive therefor not more than the legal rate for advertising.

Added by Acts 1978, No. 405, §1.

RS 41:1048

Sale of timber on levee board lands where title in dispute; disposition of proceeds

§1048. Sale of timber on levee board lands where title in dispute; disposition of proceeds

Should a levee board advertise and sell timber on any lands, the title to which is in dispute, a provision may be made that the consideration to be paid the levee board by the adjudicatee of the timber sold under the provisions of this Part, shall be deposited in escrow with the levee board, to be held by that board pending the final determination of the validity of the title to the land or until the board and the grantee otherwise agree the payment should be made or released as provided for in the agreement.

Added by Acts 1978, No. 405, §1.

RS 41:1081

Application for sale of timber in Interagency Recreation Board land

PART III. TIMBER ON INTERAGENCY RECREATION BOARD LAND

§1081. Application for sale of timber in Interagency Recreation Board land

A. Any person who desires to purchase any timber located on property belonging to or under the jurisdiction or control of the Interagency Recreation Board in the Department of Public Safety and Corrections, hereinafter in this Part referred to as the board, including but not limited to property placed under the jurisdiction of the board pursuant to R.S. 40:2505, shall file with the secretary of the board an application to purchase giving the exact location, section, township, and range, and the types of timber he desires to purchase. The applicant shall deposit with the secretary of the board the sum of one hundred dollars as evidence of good faith.

B. Should the applicant, at the sale of timber as provided for in this Part, fail to purchase the timber, then the money so deposited may be returned to him provided that should no one at the sale bid up to the minimum price stipulated in this Part, then the money shall be retained to pay the expenses of the sale.

Acts 1984, No. 846, §2; Acts 1999, No. 1148, §3.

RS 41:1082

Information to be secured as to quantity and value of timber

§1082. Information to be secured as to quantity and value of timber

On receipt of an application to have timber offered for sale, the secretary of the board shall request the assistant commissioner of the Department of Agriculture and Forestry, office of forestry to evaluate the current market value and quantity that could be harvested based on sound forestry practices and the goals of the board. The board may on its own initiative advertise for bids for sale of timber as provided in this Part.

Acts 1984, No. 846, §2; Acts 2018, No. 242, §2.

RS 41:1083

Advertisement

§1083. Advertisement

The secretary of the board shall cause to be published an advertisement in the official journal of the parish wherein the land is located setting forth the description of the land on which the timber to be sold is located, the type and quantity of timber, and the time, place, conditions, and terms of the sale. The advertisement shall be published for a period of not less than fifteen days and at least once a week during three consecutive weeks.

Acts 1984, No. 846, §2.

RS 41:1084

Place; time; minimum price; proces verbal

§1084. Place; time; minimum price; proces verbal

The timber so advertised shall be sold to the highest bidder by the sheriff of the parish where the timber is located at the time and place mentioned in the advertisement for the consideration of bids. All bids shall be submitted sealed and opened publicly by the sheriff. No bids shall be accepted by the sheriff after the time designated as the time for opening such bids. No bid shall be considered unless accompanied by a cashier's check, certified check, or bank money order in the exact amount of the bid submitted and made payable to the sheriff of the parish in which the sale is conducted. No bid shall be accepted if less than the minimum price established by the Department of Agriculture and Forestry, office of forestry. The sheriff conducting the sale shall deliver a proces verbal of the sale to the successful bidder.

Acts 1984, No. 846, §2; Acts 2018, No. 242, §2.

RS 41:1085

Proceeds

§1085. Proceeds

All monies derived from the sale of the timber pursuant to the provisions of this Part shall be forwarded to the secretary of the Interagency Recreation Board for deposit in the state general fund after compliance with the provisions of Article VII, Section 9 of the Constitution of Louisiana with respect to the Bond Security and Redemption Fund, without delay, after the sheriff making the sale has deducted therefrom the expense of advertising and his commissions for making the sales. The commission shall be two percent of the amount bid and paid provided that this commission shall not exceed one hundred dollars for one day's adjudication. The sheriff in forwarding the money shall forward a statement certified by him as correct showing the amount of the bid, the expenditure for the advertising, and the amount withheld by him as commission. He shall at the same time forward to the secretary of the board a duplicate of his proces verbal of sale wherein he shall give a correct description of the property sold with the recital of the acts performed by him in effecting the sale, the amount of the purchase price received, and the amount forwarded to the board.

Acts 1984, No. 846, §2; Acts 2001, No. 1185, §5, eff. July 1, 2001.

RS 41:1086

Removal of timber

§1086. Removal of timber

A. The adjudicatee of the timber sold under the provisions of this Part shall have the right of ingress and egress at any time for the purpose of removing the timber from the land provided that the time stipulated to cut and remove the timber, the manner of removal, and other special conditions shall be fixed in the advertisement and in the act of sale by the secretary of the board, as well as the type and size of trees to be cut.

B. The term for removal of the timber shall not exceed one year unless proof is provided to the secretary of the board that the delay would result in unavoidable hardship. Upon such proof, the secretary of the board may grant an extension for up to one year provided consideration totaling ten percent of the actual amount of the sale is remitted to the board for deposit in the Interagency Recreation Board Fund.

Acts 1984, No. 846, §2.

RS 41:1087

Advertising rates

§1087. Advertising rates

The newspapers publishing the advertisements of sale provided for in this Part shall receive therefor not more than the legal rate of advertising.

Acts 1984, No. 846, §2.

RS 41:1088

Sale of timber on Interagency Recreation Board lands where title in dispute; disposition of proceeds

§1088. Sale of timber on Interagency Recreation Board lands where title in dispute; disposition of proceeds

Should the Interagency Recreation Board advertise and sell timber on any lands, the title to which is in dispute, a provision may be made that the consideration to be paid the board by the adjudicatee of the timber sold under the provisions of this Part, shall be deposited in escrow with the board, to be held by that board pending the final determination of the validity of the title to the land or until the Interagency Recreation Board and the grantee otherwise agree that payment should be made or released as provided for in the agreement.

Acts 1984, No. 846, §2.

RS 41:1089

Transfer of former Interagency Recreation Board land to Department of Public Safety and Corrections

§1089. Transfer of former Interagency Recreation Board land to Department of Public Safety and Corrections

Notwithstanding any provision of this Part or of any other law to the contrary, the supervision, management, and use of the surface of any state-owned lands in East Feliciana Parish previously transferred to the former Interagency Recreation Board, pursuant to authorization of Act No. 846 of the 1984 Regular Session, and subsequently transferred to the Louisiana Department of Health by Act No. 662 of the 1989 Regular Session of the Legislature shall be transferred to the Interagency Recreation Board and the board shall have and may exercise any powers, duties, and functions provided for it in this Chapter.

Acts 1989, No. 662, §6, eff. July 7, 1989; Acts 1999, No. 1148, §3.

RS 41:1111

Sale of timber on sixteenth section school lands

PART IV. TIMBER ON SIXTEENTH SECTION SCHOOL LANDS

§1111. Sale of timber on sixteenth section school lands

Parish school boards may sell timber on sixteenth section lands owned in townships wherein no qualified electors reside. Sales of the timber shall be made only to the highest bidder and after due advertisement in the official journal of the parish.

CHAPTER 8. DETERMINATION OF BOUNDARIES

§1131. Fixing of boundaries by mutual consent

Whenever there arises a controversy with respect to the boundary line between lands belonging to the state and contiguous and abutting lands belonging to another person, or boundary lines which have never been definitely ascertained, defined or fixed, the state and the party may proceed to the ascertainment, determination and fixing of the boundary by mutual consent, as set forth in this Chapter.

Amended by Acts 1976, No. 180, §1; Acts 1978, No. 645, §1, eff. July 13, 1978.

RS 41:1132

Formal agreement to be made

§1132. Formal agreement to be made

Whenever a settlement is amicably arrived at between the owner of the contiguous and abutting land, and the register of the state land office and is approved by the attorney general, the governor may enter into a contract with the owner in keeping with the proces verbal of the agreement of settlement, which shall be supplied by the owner and the register of the state land office. The agreement shall be executed and signed, in quadruplicate and in notarial form, by the governor, and by the owner, one copy to be filed with the Department of Transportation and Development, one with the register of the state land office, one copy to be recorded in the parish in which the land is situated, and one copy to be retained by the owner.

Acts 2018, No. 242, §2.

RS 41:1133

Submission of differences to commissioners

§1133. Submission of differences to commissioners

If an amicable agreement cannot be so arrived at, the differences in question shall be submitted to commissioners who shall be the attorney general and the chief engineer in the Department of Transportation and Development, representing the state, two persons named by the land owner and a fifth person who shall be selected by these first four named commissioners. A proces verbal of the findings of the commissioners shall be executed in quadruplicate originals, one copy to be filed with the Department of Transportation and Development, one with the register of the state land office, one copy to be recorded in the parish in which the land is situated, and one copy to be furnished the owner of the contiguous or abutting land.

Acts 2018, No. 242, §2.

RS 41:1134

Powers of commissioners

§1134. Powers of commissioners

The commissioners shall have powers of amicable compounders, and shall have the right to subpoena witnesses and documents, and to punish for failure to appear or present the documents, in the same manner as is now provided in such cases before courts, under existing laws.

RS 41:1135

Costs

§1135. Costs

In the settlement of a controversy under the provisions of R.S. 41:1133 and 41:1134, all costs incident to the settlement shall be paid out of the general fund of the State of Louisiana.

RS 41:1136

Official determination of boundary

§1136. Official determination of boundary

The agreement entered into under the provisions of R.S. 41:1132 or the proces verbal of the findings of the commission under the provisions of R.S. 41:1133, shall constitute the official survey or boundary between the properties in question, and copies thereof, certified to by the clerk of court from the records of his office, or by the Register of the State Land Office from the records of his office, shall be admissible in evidence in any of the courts of this state, and shall be conclusive evidence of the correctness of the boundaries, and the finality of the issue, unless the agreement or commission's findings be set aside in a direct action, on the ground of fraud or gross error. If a party owning the abutting or contiguous lands desires to implead the state in a suit having in view the conversion of the decree of the commission into a judgment of the court, then service on the attorney general shall be deemed service on the State of Louisiana, and authority is herein and hereby given to so implead the state in all suits having in view the conversion of the decree of the commission into a judgment of the court.

CHAPTER 9. ROADS AND RIGHTS OF WAY

§1171. Roads established by parochial authorities over state lands

All public roads heretofore traced out and established by the parochial authorities of the respective parishes over lands belonging to the state are recognized as such, and the parochial authorities of all the parishes of the state may establish public roads not exceeding one hundred feet in width on the public lands of this state.

RS 41:1172

Patents and titles subject to rights of way

§1172. Patents and titles subject to rights of way

All patents and titles from the state shall issue subject to such right, servitude, ways, and franchise, as provided for in R.S. 41:1171.

RS 41:1173

Granting of rights of way to corporations or individuals

§1173. Granting of rights of way to corporations or individuals

The governor and the Register of the State Land Office may grant rights of way across and through any public lands belonging to the state to any individual or corporation doing business in this state, provided that adequate consideration is paid the state by the grantee of the right.

RS 41:1174

Disputed title; deposit of consideration in escrow

§1174. Disputed title; deposit of consideration in escrow

Should the governor and the Register of the State Land Office grant rights-of-way across and through any public lands, the title to which is in dispute, they may provide that the consideration to be paid the state by the grantee of the right shall be deposited in escrow with the Register of the State Land Office, to be held by that officer pending the final determination of the validity of the title to the land or until the governor and Register of the State Land Office and the grantee otherwise agree the payment should be made or released as provided for in the agreement.

Added by Acts 1964, No. 29, §1.

CHAPTER 10. LEASES OF PUBLIC LANDS

PART I. LEASES FOR GENERAL PURPOSES

§1211. Lessor defined

For the purposes of this Part, the term "lessor" shall refer to and include the Register of the State Land Office, the commissioner of conservation, and any and all other branches, departments or agencies of the state, or any school district, levee district, drainage district, municipal or parochial subdivision of this state, or any penal or charitable institution, or state university or college, or other unit or institution, deriving its authority and powers from the sovereignty of the state.

RS 41:1212

Lands which may be leased; purposes; leases of sixteenth section lands for agricultural purposes; negotiation of surface leases of school lands; negotiation of leases by certain public benefit corporations; negotiation of leases for administering buildings designated as historic landmarks

§1212. Lands which may be leased; purposes; leases of sixteenth section lands for agricultural purposes; negotiation of surface leases of school lands; negotiation of leases by certain public benefit corporations; negotiation of leases for administering buildings designated as historic landmarks

A. Any lessor may, through its governing authority, lease for trapping, grazing, hunting, agricultural, and any other legitimate purposes, including, except in the parishes of Livingston, Tangipahoa, St. Helena, St. Tammany, and Washington, removal from the land of subterranean water, or other such substances, other than for oil, gas, or other mineral purposes and development, any lands of which the lessor has title, custody, or possession, and the lessor may at its option lease the land on a share basis in accordance with such terms and conditions as the governing authority deems to be to the best interest of the lessor.

B.(1) Whenever the school boards in Vermilion, West Baton Rouge, Cameron, Calcasieu, Acadia, and Concordia Parishes lease any sixteenth section lands of which they have title, custody, or possession on a share basis for the agricultural purpose of planting, cultivating, growing, and harvesting any agricultural crop, they shall not be required to advertise for and receive bids as hereinafter provided for in this Part for other leases.

(2) They are hereby authorized to enter into leases and to renegotiate present leases to include such terms and conditions which allow the leasing of those lands for hunting; however, the lease or sublease shall contain provisions which require a portion of the rentals to be paid directly to the school board in consideration of the privilege of hunting on school board lands. The portion of the rentals to be paid directly to the school board shall be an amount agreed upon by the school board and the original lessee.

(3) Any other provision of the law to the contrary notwithstanding, the rentals or other income derived from any such leases shall not be considered as general fund receipts to the school board so as to reduce or otherwise affect the share such school board receives from funds appropriated to the state public school fund for distribution to it on a per educable basis.

C. Whenever the school board in St. Martin Parish leases any sixteenth section lands of which it has title, custody or possession on a share basis for the agricultural purpose of planting, cultivating, growing and harvesting any agricultural crop, it shall not be required to advertise for and receive bids as hereinafter provided for in this part for other leases.

D. The school board of the parish of Lafayette or the school board within any parish with a population of not less than forty-two thousand nor more than forty-five thousand persons according to the latest federal decennial census is authorized to negotiate for the surface lease of any lands to which it has title, custody or possession to any person, firm, corporation or other legal entity without the necessity of advertising for and receiving bids.

E. The school board of Evangeline Parish is authorized to lease any sixteenth section lands of which it has title, custody or possession to any person, firm, corporation or other legal entity without the necessity of advertising for and receiving bids.

F. Whenever the school board in Acadia Parish negotiates for the surface lease of any sixteenth section lands of which it has title, custody or possession or any other lands of which it has title, custody or possession, on a share basis for the agricultural purpose of planting, cultivating, growing and harvesting any agricultural crop, it shall not be required to advertise for and receive bids as

hereinafter provided for in this Part for other leases. Any other provision of the law to the contrary notwithstanding, the rentals or other income derived from the lease of sixteenth section lands shall not be considered as general fund receipts to the school board so as to reduce or otherwise affect the share such school board receives from funds appropriated to the state public school funds for distribution to it on a per educable basis. The leases may be made on either a cash or share basis.

G. A public benefit corporation that meets the requirements of R.S. 41:1215(B) shall not be required to advertise for and receive bids as hereinafter provided for in this Part for other leases. Such leases entered into shall comply with the provisions of R.S. 41:1215(C), and shall be subject to the provisions of R.S. 41:1215(B) through (F).

H. In parishes with populations in excess of four hundred seventy-five thousand and in municipalities which were founded prior to 1750, whenever any public board or commission formed by a political subdivision of the state administers a building owned by it or by the political subdivision which created it, which building is located in an historic district and designated an historic landmark, such board or commission shall not be required to advertise for and receive bids for leases of such buildings as provided for in this Part for other leases. However, such leases shall be negotiated for and executed according to the terms and conditions as follows:

(1) Such board or commission, in making its decision in the negotiation of each lease shall determine:

(a) The financial qualifications of the applicants.

(b) The compatibility of the proposed lease with the historic integrity, structure and safety of the property.

(c) The impact of the proposed lease on the historic character of the neighborhood in which the properties are located.

(d) The fair market rental price based upon other comparable properties.

(2) Such leases shall provide for a fair and equitable return of revenue to the board based upon the fair market rental price.

I. Notwithstanding any provision of law to the contrary, the town of Berwick is authorized to negotiate for and to lease any lands to which it has title, or of which it has custody or possession, to any person, firm, corporation, or other legal entity without the necessity of advertising for and receiving bids. Any such lease entered into shall provide for a fair and equitable return of revenue to the town of Berwick.

J. The provisions of this Chapter shall not apply to the lease of space in buildings or improvements located on land to which a parish or municipality has title to any person, firm, corporation, or other legal entity, when such space is located in a building designated as a community center or used for the benefit of area residents if, as part of the conditions of such lease, the person, firm, corporation, or other legal entity is required to provide health or social services to the area residents at a reduced rate or free of charge.

K. The school board of Bienville Parish is authorized to lease any sixteenth section lands of which it has title, custody, or possession to any person, firm, corporation, or other legal entity without the necessity of advertising for and receiving bids. All proceeds from the lease, less expenses, shall be used for the support of the schools located in Bienville Parish in furtherance of the purpose of the dedication of the sixteenth section lands by the United States by acts of Congress of April 21, 1806, and March 3, 1811, to the territories of Orleans and Louisiana in anticipation of statehood. The Bienville Parish School Board shall reserve to the state all of the mineral rights and minerals in accordance with law.

L. The Natchitoches Parish School Board, without the necessity of advertising for and receiving bids, is authorized to lease to Waterworks District No. 2 of Natchitoches Parish for ten thousand dollars one acre of land in Section 16, Township 8 North, Range 7 West in Natchitoches Parish for a term of ninety-nine years for the purpose of drilling a well to obtain water to be distributed to the customers of the waterworks district and to grant to such district a right-of-way up to thirty feet wide from Louisiana Highway No. 478 to the leased property on which the well is located provided each of the following conditions is met:

(1) Waterworks District No. 2 of Natchitoches Parish enters into the necessary agreements with the Natchitoches Parish School Board to hold the school board harmless from all losses or damages resulting from the acts or omissions, or both, of Waterworks District No. 2 and to indemnify the school board against all such losses or damages resulting from such acts or omissions, or both, of the district.

(2) Waterworks District No. 2 of Natchitoches Parish enters into the necessary agreements with the Natchitoches Parish School Board to restore to its pre-lease condition at the expense of the waterworks district any property located outside the boundaries of the leased property that is damaged by the waterworks district or by others acting on behalf of the district.

Amended by Acts 1964, No. 319, §1; 1968, No. 384, §1; Acts 1974, No. 179, §1; Acts 1974, No. 569, §§1, 2; Acts 1975, No. 428, §1; Acts 1975, No. 717, §1; Acts 1976, No. 693, §1; Acts 1977, No. 460, §§1, 2; Acts 1981, No. 622, §1; Acts 1983, No. 509, §1, eff. July 7, 1983; Acts 1983, No. 706, §1; Acts 1984, No. 510, §1; Acts 1991, No. 289, §13; Acts 1991, No. 899, §1; Acts 1993, No. 742, §1, eff. June 22, 1993; Acts 1999, No. 353, §1; Acts 2000, 1st Ex. Sess., No. 129, §1, eff. April 19, 2000; Acts 2003, No. 389, §1; Acts 2006, No. 306, §1, eff. June 8, 2006; Acts 2011, 1st Ex. Sess., No. 37, §1; Acts 2012, No. 785, §1, eff. June 13, 2012; Acts 2016, No. 516, §1, eff. June 16, 2016.

RS 41:1213

Application for lease

§1213. Application for lease

Any person desiring to lease any land as set forth in this Part shall present to the lessor a written application, together with a cash deposit of twenty-five dollars, which shall be returned to the applicant if he makes an unsuccessful bid, after a sum sufficient to pay the advertising costs has been deducted. The application shall set forth the name and address of the applicant, a reasonably definite description of the location and amount of land which the applicant desires to lease, and the purposes for which the lands are to be leased. Where such purposes include the placement of structures, obstacles, fill, or any other materials upon state lands, the application must be accompanied by legible copies of maps, plans, specifications, and such other information or data as may be required by the register of the state land office. The applicant shall ask that the application be registered and that the land described in the application be leased to him pursuant to the provision of this Part. The lessor shall register the application and shall order an inquiry to determine whether the lands applied for are leaseable for such purposes.

Acts 1983, No. 46, §1; Acts 1983, No. 706, §1; Acts 2018, No. 242, §2.

RS 41:1214

Advertisement and bids

§1214. Advertisement and bids

A. If the lessor determines that the lands in question may be leased, the lessor, except as may be provided to the contrary in Title 30, Title 31, Title 56, and other provisions of Title 41 of the Louisiana Revised Statutes of 1950, relative to fisheries, wildlife, and timber, shall publish an advertisement in the official journal of the parish where the land is located setting forth a description of the land to be leased, the time when bids therefor will be received, and a short summary of the terms, conditions, and purposes of the lease to be executed. If the lands are situated in two or more parishes, the advertisement shall appear in the official journals of all parishes in which the lands are located. The advertisement shall be published for a period of not less than fifteen days and at least once a week during three consecutive weeks. The lessor may also send notices to those whom it may think would be interested in submitting bids for the leases.

B. The lessor may on its own initiative advertise for bids for any lease as provided herein but without application therefor. The applications and bids provided for in this Part shall be secret, sealed applications and bids. Each bid shall be either hand-delivered by the bidder, or his agent, in which instance the deliverer shall receive a written receipt, or such bid shall be sent by registered or certified mail with a return receipt requested, or shall be submitted electronically as provided in Subsection E of this Section. No lessor shall accept or take any bids, including receiving any hand-delivered bids, on days which are recognized as holidays by the United States Postal Service.

C. The advertisements in accordance with this Section shall constitute judicial advertisements and legal notices within the contemplation of Chapter 5 of Title 43 of the Louisiana Revised Statutes.

D. Each person who submits a bid shall deposit with the bid an amount equal to ten percent of the bid but not less than seventy-five dollars. The deposit shall be in the form of a certified check or a money order.

E.(1) Lessors shall provide a uniform and secure electronic interactive system as an additional bidding option for the submittal of bids for lease requiring competitive bidding. Any lessor providing such system shall follow the standards for the receipt of electronic bids adopted by the office of the governor, the division of administration, and the office of technology services as provided for in LAC 4:XV.701. Any special condition or requirement for the submission shall be specified in the advertisement for bids required by this Section.

(2) Lessors that are currently without available high-speed internet access shall be exempt from the provisions of this Subsection until such time that high- speed internet access becomes available.

(3) Any parish with a police jury form of government and a population of less than twenty thousand people shall be exempt from the provisions of this Subsection.

(4) Any governmental subdivision with a population of less than ten thousand people shall be exempt from the provisions of this Subsection.

(5) Any other lessor which is unable to comply with the electronic bidding provisions of this Subsection without securing and expending additional funding shall be exempt from the requirements of this Subsection.

(6) Lessors shall have the option to require that all bids be submitted electronically for any competitive bid let out for public bid.

(7) Lessors shall include all information regarding the advertisement of bids described in Subsection A of this Section.

Acts 1972, No. 150, §1; Acts 1984, No. 807, §1; Acts 1990, No. 945, §1; Acts 2017, No. 308, §1.

RS 41:1215

Opening of bids; execution of leases; exceptions; public benefit corporations; negotiated lease to nonprofit organizations

§1215. Opening of bids; execution of leases; exceptions; public benefit corporations; negotiated lease to nonprofit organizations

A.(1) At the date and hour mentioned in the advertisement for the consideration of bids, the bids shall be publicly opened by the lessor at its office. The lessor shall accept only the highest bid submitted to it by a person or persons who meet all the conditions of this Part except in the case where the lessor is a public benefit corporation as authorized and defined in Subsection B of this Section. The lessor shall have the right to reject all bids.

(2) Successful bidders shall pay for their leases by a certified check. In all other respects, the lessor may execute any lease granted under such terms and conditions as it deems proper or as otherwise provided in this Part.

(3) All leases signed by the lessor shall be executed in triplicate and shall be disposed of as follows: one copy shall be furnished to the lessee; one copy shall be recorded in the conveyance records of the parish or parishes in which the land lies; and one copy shall be retained in the records of the lessor.

B. For the purposes of this Part, a "public benefit corporation" is defined to be a nonprofit corporation formed pursuant to the general nonprofit corporation law of the state of Louisiana, except those formed pursuant to specific constitutional or statutory authority, by a political subdivision of the state of Louisiana through its chief executive officer for the purposes of owning, leasing, developing, and operating properties owned or leased by the political subdivision or by the public benefit corporation, including but not limited to planning, renovating, constructing, leasing, subleasing, managing, improving, operating, and promoting the properties, which activity is declared to constitute a public purpose, and which shall meet each of the following requirements:

(1) The corporation must not be organized for profit except to the extent of retiring indebtedness.

(2) The corporate income must not inure to any private person except for salaries and other operating expenses.

(3) The political subdivisions must have a beneficial interest in the corporation.

(4) Nonprofit corporations which meet the requirements of a public benefit corporation as set forth herein and which own, lease, sublease, or control immovable property shall not be required to advertise for and receive bids as provided for in this Part, provided that any lease or sublease entered into by and between such nonprofit corporation and a third party be approved by the governing body of such political subdivision on behalf of which the corporation exercises its powers. Such leases or subleases shall be negotiated and let by the public benefit corporation in accordance with fair and reasonable criteria established and applied by the public benefit corporation relating to a balance of factors including but not limited to rent, highest return of revenue and benefits to the political subdivision, financial stability, architectural design, development and management of operational plan, uniqueness of operation, and stimulating other industrial or commercial activity within the political subdivision or the state.

(5) In the event that any person or other entity be unsuccessful in the bid for the lease or sublease of immovable property owned, leased or controlled by a public benefit corporation such person or other entity may, not later than thirty days following the occurrence of such event, appeal to

the district court in which the political subdivision is located for such relief as may be provided by law. If no appeal is taken within said thirty day period, any such claim shall be prescribed.

(6) The corporation must be approved by the political subdivision creating it and any specific obligations issued or made by the corporation must also be approved by said political subdivision.

(7) All leases or subleases executed by a public benefit corporation under the provisions of this Part shall be for a period not exceeding thirty years and shall provide for a rental payable in cash monthly, quarterly, or annually, at the discretion of the lessor.

(8) Notwithstanding the provisions of Paragraph (7) of this Subsection and R.S. 41:1217, any lease or sublease executed by a public benefit corporation under the provisions of this Part, in the city of New Orleans, shall be for a period not exceeding ninety-nine years and shall provide for a monthly rental payable in cash.

(9) Notwithstanding the provisions of Paragraph (7) of this Subsection and R.S. 41:1217, any lease or sublease executed by a public benefit corporation under the provisions of this Part in Jefferson Parish shall be for a period not exceeding ninety-nine years and shall provide for a rental payable in cash in a lump sum or installments, at the discretion of the lessor.

(10) Notwithstanding the provisions of Paragraph (7) of this Subsection and R.S. 41:1217, any lease or sublease executed by a public benefit corporation under the provisions of this Part in Plaquemines Parish shall be for a period not exceeding ninety-nine years and shall provide for a rental payable in cash in a lump sum or installments, at the discretion of the lessor.

C. Notwithstanding any other provision of law to the contrary, in the event that a state property designated as nonessential in accordance with R.S. 41:140 has been offered unsuccessfully for lease or sale through public bid due either to lack of receipt of bids or to rejection of all bids received, the commissioner of administration is authorized to negotiate the lease of such property to any nonprofit organization qualified as a tax exempt organization under Section 501(c)(3) of the Internal Revenue Code of 1954 and organized for a public purpose. Such negotiated lease shall provide that the lessee assumes responsibility for proper maintenance and upkeep of the property for the term of the lease and provide that the state shall be held harmless for any liability arising, in tort or otherwise, from the lease of the property or any use thereof. A notice stating the amount of the lease, the property to be leased and the date, time, and place of the execution of the proposed lease shall be published in the official state journal at least twice within a fifteen-day period before such execution date with the last publication at least seven days prior to the proposed execution date. Publication of the notice shall be the responsibility of the proposed nonprofit lessor.

D.(1) In the event that any person or other entity challenges, seeks to nullify, or seeks to enjoin a lease or sublease of immovable property owned, leased or controlled by a public benefit corporation, including but not limited to any person or entity that was unsuccessful in being selected for the lease or sublease, such person or other entity may appeal to or file suit in the district court in which the political subdivision is located for such relief as may be provided by law, only by following the procedure set forth in this Section.

(2) In the case of an appeal or suit by a person or entity that was unsuccessful in being selected for the lease or sublease, such appeal or suit must be filed not later than thirty days following the occurrence of such event. In the case of a suit or appeal by any other person or entity, such appeal or suit must be filed not later than thirty days following the selection of the lessee or sublessee. If no appeal is taken or suit is filed within the thirty-day period, any such claim shall be prescribed.

(3)(a) Any person or entity that files a suit or appeal pursuant to Paragraphs (1) and (2) of this Subsection for a temporary restraining order or preliminary injunction of a lease or sublease of

immovable property owned or controlled by a public benefit corporation shall be required to furnish security, if necessary, as required by Code of Civil Procedure Article 3601 et seq.

(b) Any person or entity that files a suit or appeal pursuant to Paragraphs (1) and (2) of this Subsection to challenge, nullify, or enjoin a lease or sublease of immovable property owned, leased, or controlled by a public benefit corporation shall receive a trial on the merits in the district court within sixty days of the filing of the suit and shall be given preference over all other matters on the court's calendar. The district court shall render a final judgment not more than twenty days after the conclusion of the trial.

(c) An appeal may be taken within ten days of the rendition of the final judgment of the district court and shall be returnable to the appropriate appellate court not more than thirty days from the rendition of the final judgment. The appeal shall be heard with the greatest possible expedition and no later than thirty days from the return day of the appeal. The appellate court shall render its ruling on the merits within sixty days of the return day of the appeal.

E. All leases or subleases executed by a public benefit corporation under the provisions of this Part shall be for a period not exceeding thirty years and shall provide for a rental payable in cash in a lump sum or installments, at the discretion of the lessor.

F. Notwithstanding the provisions of Subsection E of this Section and R.S. 41:1217, any lease or sublease executed by a public benefit corporation under the provisions of this Part, in the city of New Orleans, shall be for a period not exceeding ninety-nine years and shall provide for a rental payable in cash in a lump sum or installments, at the discretion of the lessor.

G. Notwithstanding the provisions of Subsection E of this Section and R.S. 41:1217, any lease or sublease executed by a public benefit corporation under the provisions of this Part in Jefferson Parish shall be for a period not exceeding ninety-nine years and shall provide for a rental payable in cash in a lump sum or installments, at the discretion of the lessor.

Acts 1967, No. 33, §2; Acts 1976, No. 693, §1; Acts 1984, No. 807, §1; Acts 1989, 2nd Ex. Sess., No. 3, §1, eff. July 14, 1989; Acts 1990, No. 737, §1, eff. July 24, 1990; Acts 1991, No. 289, §13; Acts 1991, No. 899, §1; Acts 2011, 1st Ex. Sess., No. 37, §1; Acts 2014, No. 236, §1; Acts 2016, No. 516, §1, eff. June 16, 2016; Acts 2023, No. 190, §1; Acts 2025, No. 331, §2.

RS 41:1215.1

Advertising costs

§1215.1. Advertising costs

In the event the applicant is not the highest bidder, his deposit of seventy-five dollars shall be returned to him by the lessor and the advertising costs shall be charged to the highest bidder. If the highest bidder should refuse to pay the advertising costs, then the lease shall pass to the next highest bidder who will pay said costs. In the event no bids are submitted, the deposit shall be returned to the applicant, after a sum sufficient to pay the advertising costs has been deducted therefrom.

Acts 1983, No. 46, §1.

RS 41:1215.2

New Orleans Convention Center; sale, lease, conveyance, transfer, or exchange of real property by the city of New Orleans

§1215.2. New Orleans Convention Center; sale, lease, conveyance, transfer, or exchange of real property by the city of New Orleans

A. Notwithstanding any law to the contrary, the city of New Orleans is hereby authorized to enter into agreements of sale, lease, conveyance, transfer, exchange, option, or other transaction relating to real property, or any interest therein which it may deem necessary to carry out the desired expansion of the New Orleans Convention Center, including the sale, conveyance, mortgage, lease, sublease, transfer, option, exchange, or other transaction with respect to property owned now or acquired during the effective period of this Section by the city of New Orleans, which property is described as that portion of ground bounded by the existing Convention Center, the Mississippi River, the right of way of the Greater New Orleans Bridge and Convention Center Boulevard and that square of ground bounded by Poydras Street, South Peters Street, Canal Street and Jeanne d'Arc Place, solely in order to accomplish the expansion of the New Orleans Convention Center, with any public or private entity, including cooperative economic endeavors. Notwithstanding the provisions of R.S. 41:1211 et seq., and R.S. 38:2211 et seq., with respect to the purchase, sale, or lease of property or construction or development by public entities, the city of New Orleans may negotiate all such agreements without compliance with such laws, with respect to the above described properties and Squares numbers 9A, 10A, 11A, 12A, 15B, 16B, 17B, 18B, 19B, 28, 29, 30, 32, 41, 42, 44, 45, 73, 74, 75, 76, 77, 78, 96, 97, 98, 100, 101, 99, 102, 103, and 104 in the area bounded by the Mississippi River, the right of way of the Greater New Orleans Bridge, Annunciation Street, and Race Street, but only insofar as concerns those squares or portions of squares which belong to an entity doing business as a common carrier or an entity which is owned by, under the control of or is a subsidiary of an entity doing business as a common carrier.

B. The provisions of this Section shall govern only those agreements and transactions for which the primary documents are completed and executed within three years after July 5, 1987.

C. Notwithstanding any law to the contrary, and specifically notwithstanding the provisions of R.S. 31:149 and R.S. 41:1338(A) and (B), any land, property, or rights acquired by the city of New Orleans and/or the New Orleans Exhibition Hall Authority pursuant to this Section for the purpose of the expansion of the New Orleans Convention Center, may be sold to a third party for the said purpose of expansion without prior offer to sell to the original vendor or his successors in title, provided that any such property was acquired from another public entity, any other entity the principal business of which is that of a common carrier or an entity which is owned or controlled by, is a subsidiary of or is related to a common carrier.

Acts 1987, No. 308, §1, eff. July 5, 1987.

RS 41:1215.3

Lease of certain state property; Fort Pike to the Rigolets Marina Inc.

§1215.3. Lease of certain state property; Fort Pike to the Rigolets Marina Inc.

Notwithstanding any other provision of law to the contrary, the secretary of the Department of Culture, Recreation and Tourism and the commissioner of administration are hereby authorized and empowered to enter into a lease of all or any portion of the state owned property north of Highway 90 at Fort Pike to the Rigolets Marina Inc. The lease shall provide for the uses of the property, and the lease shall be subject to approval by the federal government. The compensation received by the state shall be at least five percent of the appraised value of the property to be paid biannually to the state.

Acts 2010, No. 678, §1.

RS 41:1215.4

Lamar-Dixon Expo Center; lease

§1215.4. Lamar-Dixon Expo Center; lease

Notwithstanding any other provision of law to the contrary, the governing authority of Ascension Parish is hereby authorized and empowered to enter into a lease of all or any portion of the Lamar-Dixon Expo Center located in Ascension Parish at 9039 St. Landry Road in Gonzales, Louisiana. The lease shall provide for the uses of the property and the lease shall be subject to approval by the governing authority of Ascension Parish.

Acts 2025, No. 329, §1.

RS 41:1216

Restrictions of area, number, and transfer of leases; subleases

§1216. Restrictions of area, number, and transfer of leases; subleases

A. In order to allow the individual lessee to lease lands from the state in preference to syndicated landholders or corporations, no lease shall cover a larger area than six hundred forty acres of public land, which area must be contiguous. No lessee may own more than one such lease at one time. All leases made under the terms of this Part shall be heritable, but may not be mortgaged, pledged, hypothecated, subjected to seizure and sale, subleased, transferred, or assigned, except as provided in Subsection B of this Section.

B. Subject to the prior written approval of the lessor, as defined in R.S. 41:1211, or its successor in office, all leases made under the terms of this Part may be subleased, transferred, or assigned by the original lessee, his sublessees, heirs, or assigns, and likewise may be mortgaged, pledged, hypothecated, or subjected to seizure and sale. The lessor is authorized to permit such transfers of leases upon such terms and conditions as it may deem proper, provided that said sublessees, transferees, assignees, mortgagees, or pledgees are entitled to the same rights and privileges as were granted by the lessor to the original lessee and specifically those granted to the original lessee under the provisions of R.S. 41:1222(A). The lessor is directed to collect a fee of ten dollars for the privilege of permitting such transfers, said fee to be paid into the general fund of the state.

Amended by Acts 1970, No. 58, §1; Acts 1981, No. 330, §1.

RS 41:1217

Term and rental; port authorities excepted

§1217. Term and rental; port authorities excepted

A.(1) Any lease executed under the provisions of this Part shall be for a period not exceeding ten years and shall provide for consideration to be paid as a cash rental of not less than one dollar per acre, which shall be payable in cash annually and in advance, or if the land is leased for agricultural purposes of planting, growing, cultivating, and harvesting any agricultural crop, the consideration shall be so paid in cash or on a share basis at the option of the lessor.

(2) A lease granted under this Section may be extended as follows:

(a) Any person who leases such land and who adds or contracts for permanent improvements to be constructed or placed on or made to the land in the amount of not less than two thousand dollars nor more than ten thousand dollars upon written notification to the lessor and upon a proper showing that such improvements have in fact been made or contracted for may lease such lands for an additional period of not more than ten years with the payment of rentals to be made as provided in this Section.

(b)(i) Any person who leases such land and who within the original or any additional term of the lease adds or contracts permanent improvements to be constructed, placed, or made upon the land in the amount of ten thousand dollars or more, upon written notification to the lessor and upon a proper showing that such improvements have in fact been made or contracted for, may, at the discretion of the lessor, lease such land for an additional ten-year period or any part thereof for each ten thousand dollars worth of improvements or additions made or contracted onto the land not to exceed a maximum term of twenty additional years from the end of the then current lease period.

(ii) When the value of the improvements to be constructed, placed, or made upon the land exceeds one hundred fifty thousand dollars, or where the lessee agrees to prepay the last two annual rental payments of the lease plus a cash bonus in an amount equal to the current year's lease rental or the sum of fifty thousand dollars, whichever be the greater, the lease may be extended for thirty additional years from the end of the then current lease period.

(iii) When the lease has been extended to forty years under this Subparagraph, the lessee shall be allowed to extend the lease for additional ten-year periods as long as the qualifying permanent improvements remain intact, or, in the event of fire, storm, or other acts of God, are reconstructed by the end of the ten-year term and as long as the lessee continues to meet all other conditions of the lease.

(c) Any lessee who makes improvements onto the land leased shall be allowed a period of at least ninety days to remove such improvements after the termination of his lease.

(3) Notwithstanding any other provision of this Section to the contrary and only if the lessee is compliant with the terms of the lease agreement, any lease on state land located between the guide levees of the Atchafalaya Basin may, at the discretion of the lessor, be extended for up to four additional ten-year periods without the lessee being required to add or contract for permanent improvements to be constructed or placed on or made to the land.

B. The failure of the tenant to pay the rent punctually or before the date upon which the rental falls due, shall ipso facto and without demand or putting in default terminate and cancel the lease. In such event the lessor, through the attorney general of Louisiana, may take such legal steps as are necessary and appropriate under the law to cancel the lease from the records of the parish in which the land is located, to evict the tenant or tenants refusing to leave the grounds leased and to recover monies due the lessor for past due rentals and damages for lost rentals occasioned by the tenants. Improvements

placed on the property leased shall be subject to seizure and sale by the lessor, through the attorney general, in order to satisfy the lessor's claim for monies and/or damages owed by delinquent tenants.

C. The provisions of this Section shall not apply to port authorities of this state.

D. Whenever a school board has entered into a lease of sixteenth section school lands for agricultural purposes for a term of less than ten years, the lessor and the lessee, by mutual agreement, may extend the lease for a term not to exceed ten years from the original date of the lease being extended. All extensions shall be under the same terms and conditions as the lease being extended.

E. Any contract entered into for the lease of state lands for any purpose shall require that access by the public to public waterways through the state lands covered by the lease shall be maintained and preserved for the public by the lessee. The provisions of this Section shall not prohibit the secretary of the agency having control over the property from restricting access to public waterways if he determines that a danger to the public welfare exists. The provisions of this Section shall not apply in cases involving title disputes.

Amended by Acts 1962, No. 341, §1; Acts 1966, No. 478, §1; Acts 1967, No. 33, §4; Acts 1970, No. 58, §2; Acts 1972, No. 496, §1; Acts 1976, No. 223, §1, eff. July 27, 1976; Acts 1981, No. 261, §1; Acts 1983, No. 424, §1; Acts 1984, No. 521, §1; Acts 1999, No. 375, §1; Acts 1999, No. 1142, §2; Acts 2003, No. 887, §2; Acts 2014, No. 510, §1.

RS 41:1217.1

Renewal of lease; highest bid option

§1217.1. Renewal of lease; highest bid option

A. Any contract entered into for the lease of state lands for any purpose shall require that access by the public to public waterways through the state lands covered by the lease shall be maintained and preserved for the public by the lessee. The provisions of this Section shall not prohibit the commissioner of administration or the secretary of the department having control over the property from restricting access to public waterways if he determines that a danger to the public welfare exists. The provisions of this Section shall not apply in cases involving title disputes.

B. Notwithstanding any provision of law to the contrary, if the commissioner or secretary determines there exists a public need to maintain the most recent lessee of record, his heirs, or assignees, the commissioner or secretary may offer the most recent lessee of record, his heirs, or assignees, if he made a bid, the option to match the highest bid in order to continue to lease the state lands. The provisions of this Subsection shall apply to lessees who held a lease with another party, which lease was subsequently transferred to the state. The provisions of this Subsection shall not apply to oyster leases, alligator leases, or oil and gas leases entered into by the Department of Wildlife and Fisheries, or to any lease entered into by the State Mineral and Energy Board.

C. The commissioner shall promulgate rules and regulations providing for uniform criteria to assess the management of leased property.

Acts 2008, No. 570, §1; Acts 2009, No. 196, §6, eff. July 1, 2009; Acts 2011, No. 335, §1, eff. June 23, 2011.

RS 41:1218

Locating and fixing limits of lands

§1218. Locating and fixing limits of lands

All lessees shall stake off and mark the leased lands by such stakes or monuments as may be necessary to accurately locate and fix the limits of the lands embraced in each lease, and shall further cause the area of the leased land, and the name of the lessee to be shown by such signs as may be determined by the lessor.

RS 41:1219

Supervision of leases

§1219. Supervision of leases

The lessor shall have full supervision of leases to see that the terms and stipulations thereof are complied with and may take any appropriate action, and may file any suit to protect the interest of the lessor, or to annul any lease.

The lessor may include in each lease, such stipulations as may be proper for the development of the lands, which are not inconsistent with the provisions of this Part.

RS 41:1220

Trespass

§1220. Trespass

It shall be unlawful for anyone to knowingly trespass upon the leased lands, and thereon to trap, hunt, graze stock or engage in other agricultural pursuits, except as provided in this Part.

RS 41:1221

Penalties for violation

§1221. Penalties for violation

Any person violating any of the provisions of this Part shall be fined not more than five hundred dollars and not less than twenty-five dollars or be imprisoned for not less than ten days or more than ninety days, or both. In the case of a violation of this Part by any corporation, the corporation shall be subject to a fine, and the executive officer of the corporation shall be subject to fine and imprisonment as the representative of the corporation, as provided for individuals in this section.

RS 41:1222

Surface leases on state lands

§1222. Surface leases on state lands

A. The Registrar of the State Land Office, acting for and on behalf of the state of Louisiana, may execute surface leases for any of the purposes enumerated in R.S. 41:1212 of not more than two acres on any lands, including water bottoms, under his jurisdiction. All such leases shall be for a cash consideration and under such terms and conditions as the Registrar of the State Land Office deems to be most beneficial to the state of Louisiana. Leases of this type shall be granted only when the individual seeking to acquire such a lease has, prior to January 1, 1985, in good faith, constructed permanent improvements in the amount of not less than ten thousand dollars on said lands and is the owner or lessee of said improvements.

B. Each lease granted under the authority of this Section shall be for a term not to exceed ten years. The secretary shall have the right to renew any such lease in accordance with the provisions of R.S. 41:1217.

C. Any lease granted under authority of this section shall be subordinate to any lease hereafter made of the lands for oil, gas or other mineral development, and any lease granted shall be subject to termination at any time if it is determined that the land covered by the lease is required for use by the state.

Added by Acts 1966, No. 196, §1. Amended by Acts 1967, No. 33, §5; Acts 1983, No. 460, §1; Acts 2001, No. 1061, §1.

RS 41:1223

Ratification and confirmation of leases in municipalities of five hundred thousand

§1223. Ratification and confirmation of leases in municipalities of five hundred thousand

All contracts of lease previously entered into by the governing authority of a municipality having a population of five hundred thousand or more on the effective date of this Section for lands, surface rights, water rights, air rights, and/or other facilities and other rights or property owned or leased by such a municipality for use and occupancy as a boat slip and/or boat house and/or any other facility related to boating are hereby ratified and confirmed and shall be given the same force and effect as if such contracts of lease had been made and executed pursuant to the provisions of R.S. 41:1211 through R.S. 41:1222, both inclusive, and the provisions of R.S. 41:1501 through R.S. 41:1505, both inclusive, notwithstanding anything in this Part and this Chapter or any other law to the contrary.

Added by Acts 1978, No. 150, §1, eff. June 29, 1978.

RS 41:1224

Leases without advertisement or bids

§1224. Leases without advertisement or bids

Notwithstanding any other provision of this Part to the contrary, in Orleans Parish or Jefferson Parish, the requirements for public bid and advertisement shall not apply to any lease of land of less than ten thousand square feet in size to which the lessor has title, custody, or possession, when the lease is between the lessor and the owner of the adjacent land.

Acts 1993, No. 372, §1, eff. June 3, 1993; Acts 2011, 1st Ex. Sess., No. 37, §1.

RS 41:1224.1

Exceptions to advertisement and bidding requirements

§1224.1. Exceptions to advertisement and bidding requirements

The provisions of this Chapter do not apply to the lease or sublease of boat slips of the Bucktown Marina that are owned and operated by the governing authority of Jefferson Parish pursuant to a lease between the state and the parish, provided that all boat slips in the marina shall be leased on a first-come, first-served basis for fair market value as determined by an appraiser and that the rates for and availability of such slips shall be published in the official journal of the parish.

Acts 2014, No. 156, §1, eff. May 22, 2014.

RS 41:1224.2

Exceptions to advertisement and bidding requirements

§1224.2. Exceptions to advertisement and bidding requirements

The provisions of this Chapter do not apply to leases, sales, exchanges, cooperative endeavor agreements, joint use agreements, and similar or related agreements by any governmental body involving any of the property authorized to be transferred to the city of Lafayette by Act No. 385 of the 2009 Regular Session of the Legislature, any parcels adjacent to such property, and any parcels made adjacent as a result of a transaction authorized by this Section. A property alienated pursuant to this Section shall not be subject to any deed restrictions required by Act No. 385 of the 2009 Regular Session of the Legislature.

Acts 2014, No. 645, §1, eff. June 12, 2014.

RS 41:1225

Oyster leases; grants of; ratification of existing leases

§1225. Oyster leases; grants of; ratification of existing leases

A. Notwithstanding any provisions of law to the contrary, and specifically notwithstanding the provisions of this Chapter, Title 30 of the Louisiana Revised Statutes of 1950, and Title 31 of the Louisiana Revised Statutes of 1950, the Department of Wildlife and Fisheries is authorized to grant leases on state-owned waterbottoms for oyster cultivation, bedding, and harvesting, and matters relating thereto, as provided in Subpart D of Part VII of Chapter 1 of Title 56 of the Louisiana Revised Statutes of 1950.

B. All leases on state-owned waterbottoms granted by the Department of Wildlife and Fisheries, pursuant to the provisions of Subpart D of Part VII of Chapter 1 of Title 56 of the Louisiana Revised Statutes of 1950, and presently within the original term or any extensions thereof, are ratified and continued in force under the original terms and conditions, and any extensions thereof.

Acts 1990, No. 975, §1, eff. July 25, 1990.

RS 41:1261

Repealed by Acts 1995, No. 88, 3, eff. June 12, 1995.

PART II. LEASES WITH RIGHT TO ERECT STORAGE AND TRANSPORTATION FACILITIES

§1261. Repealed by Acts 1995, No. 88, §3, eff. June 12, 1995.

RS 41:1262

Repealed by Acts 1995, No. 88, 3, eff. June 12, 1995.

§1262. Repealed by Acts 1995, No. 88, §3, eff. June 12, 1995.

RS 41:1263

Repealed by Acts 1995, No. 88, 3, eff. June 12, 1995.

§1263. Repealed by Acts 1995, No. 88, §3, eff. June 12, 1995.

RS 41:1264

Repealed by Acts 1995, No. 88, 3, eff. June 12, 1995.

§1264. Repealed by Acts 1995, No. 88, §3, eff. June 12, 1995.

RS 41:1265

Repealed by Acts 1995, No. 88, 3, eff. June 12, 1995.

§1265. Repealed by Acts 1995, No. 88, §3, eff. June 12, 1995.

RS 41:1266

Repealed by Acts 1995, No. 88, 3, eff. June 12, 1995.

§1266. Repealed by Acts 1995, No. 88, §3, eff. June 12, 1995.

RS 41:1267

Repealed by Acts 1995, No. 88, 3, eff. June 12, 1995.

§1267. Repealed by Acts 1995, No. 88, §3, eff. June 12, 1995.

RS 41:1268

Repealed by Acts 1995, No. 88, 3, eff. June 12, 1995.

§1268. Repealed by Acts 1995, No. 88, §3, eff. June 12, 1995.

RS 41:1269

Repealed by Acts 1995, No. 88, 3, eff. June 12, 1995.

§1269. Repealed by Acts 1995, No. 88, §3, eff. June 12, 1995.

RS 41:1291

Authority to lease to or from other political subdivisions, the state, or the United States

PART III. LEASES BY POLITICAL SUBDIVISIONS

AND STATE AGENCIES

§1291. Authority to lease to or from other political subdivisions, the state, or the United States

Any political subdivision or agency of the state of Louisiana is hereby authorized, without advertisement for bids, to lease for any legitimate purpose including, except in the parishes of Livingston, Tangipahoa, St. Helena, St. Tammany, and Washington, removal of subterranean water, or other such substances, other than for oil, gas or other mineral purposes and development, to or from any other political subdivision, the state of Louisiana or any agency thereof, or the United States of America or any agency thereof, any public lands and improvements thereon of which it has title, custody, and possession, provided that the lessor shall reserve all mineral rights to said land.

Acts 1983, No. 706, §1.

RS 41:1292

Form and contents of lease; maximum period; use of property

§1292. Form and contents of lease; maximum period; use of property

Such lease shall be in writing and shall contain a reasonably definite description of the property leased, the purposes for which the property is leased, the rental to be paid, the term or duration of such lease, and such other stipulations and conditions as may be initially agreed upon. When such purposes include the placement of structures, obstacles, fill, or any other materials upon state lands, the application must be accompanied by legible copies of maps, plans, specifications, and such other information and data as may be required by the Secretary. In no instance shall the period of such lease exceed ninety-nine years and the property leased shall continue to be used for public purposes.

Acts 1983, No. 706, §1.

RS 41:1293

Execution of lease in triplicate, disposition of copies

§1293. Execution of lease in triplicate, disposition of copies

Any such lease shall be executed in triplicate, and shall be disposed of as follows: one copy shall be furnished to the lessee; one copy shall be recorded in the conveyance records of the parish in which the land lies; and one copy shall be retained in the records of the lessor.

Acts 1954, No. 571, §3. Amended by Acts 1954, No. 712, §3.

RS 41:1294

Proceedings contemplated by Part exclusive

§1294. Proceedings contemplated by Part exclusive

No proceedings in respect to the authorization and execution of any such lease shall be necessary except such as are contemplated by this Part.

Acts 1954, No. 571, §4. Amended by Acts 1954, No. 712, §4.

CHAPTER 11. MISCELLANEOUS TITLE

VALIDATING PROVISIONS

§1321. Sales made before 1914 validated

All sales of sixteenth section school lands in the State made prior to the first day of January, 1914, are ratified and confirmed notwithstanding informalities in the sales subject to the following conditions:

(1) The parish treasurer or other officer making the sale executed a deed to the purchaser which deed, or the record thereof, shall be full proof that such sales were made in compliance with all the requirements and provisions of laws existing at the time the sales were made;

(2) Where the deed recites that the transfer or sale was made for a cash consideration, the recital shall be full proof that the entire consideration was properly paid;

(3) Where the deed recites that the sale was made for part cash and the balance on terms of credit, the recital shall be full proof that the cash portion of the purchase price was properly paid, and if the mortgage records of the parish wherein the property is situated show a cancellation of the mortgage securing the credit portion of the purchase price, the cancellation shall be full proof that the credit portion of the purchase price has been paid;

(4) If the mortgage records of the parish wherein the property is situated do not show a cancellation of the mortgage securing the credit portion of the purchase price, and no action or suit has been brought and prosecuted to a conclusion to foreclose the mortgage securing the credit portion of the purchase price or to have the sale rescinded, annulled or set aside, it shall be presumed that the credit portion of the purchase price has been fully paid.

All informalities and defects in the sales, subject to the above provisos, are cured.

RS 41:1322

Sixteenth section sales made prior to 1900; act of 1934

§1322. Sixteenth section sales made prior to 1900; act of 1934

Sales of all sixteenth section school lands in the state made prior to the first day of January, 1900, are ratified and confirmed, notwithstanding informalities in the sales relative to appraisement and offering the lands in lots of forty acres, where it is affirmatively shown that the purchase price of the lands has actually been paid into the state treasury, provided that the parish treasurer or other officer making the sale, filed his proces verbal and made a deed to the purchaser, who actually went into possession of the property in issue.

The purchaser or his transferees may pay into the state treasury any part of the purchase price, as to which it may not be reasonably possible to affirmatively show payment and then he may receive the full benefit of this Section.

RS 41:1323

Sixteenth section sales made prior to 1900; act of 1942

§1323. Sixteenth section sales made prior to 1900; act of 1942

All sales of sixteenth section school lands in the state, made prior to the first day of January, 1900, are ratified and confirmed, notwithstanding informalities in the sales relative to appraisement and offering the lands in lots of forty acres, and other informalities, subject to the following provisions:

(1) That the parish treasurer or other officer making the sale made a deed to the purchaser;

(2) That the filing of a deed by the parish treasurer reciting that an election was held in favor of the sale and that other formalities were complied with, or that he made the sale in obedience to an order to him directed from the auditor of public accounts, shall be proof that all formalities and prerequisites to the sale were complied with;

(3) That where the deed recites that the transfer was made for a cash consideration, receipt of which is acknowledged, or where the sale was made for ten per cent cash and balance on terms of credit, and the mortgage records of the parish wherein the property is situated show a regular cancellation of the mortgage, the purchaser or his transferees may receive the full benefit of this Section;

(4) That the purchaser or his transferees, if the sale was made on terms of cash and credit as hereinabove recited, and the mortgage was not cancelled, may pay into the state treasury that part of the credit portion of the purchase price as to which payment cannot be affirmatively shown, and then he may receive the full benefit of this Section.

RS 41:1323.1

Sixteenth section sales made prior to 1930; Act of 1946

§1323.1. Sixteenth section sales made prior to 1930; Act of 1946

A. Sales of the sixteenth section school lands in the state of Louisiana made prior to the first day of January, 1930, are hereby ratified and confirmed, notwithstanding any informalities in the said sales relative to holding elections to authorize said sales, appraisements, and offering the said lands in lots of forty acres, regardless of whether any such sale was made by the treasurer of the parish in which any such sixteenth section was located or made by the treasurer of any other parish, where either of the following conditions are met:

(1) It is affirmatively shown by the records of the offices of Auditor, or superintendent of education, or Register of the State Land Office, or their successors, that such lands were offered for sale and sold, whether the execution of a deed therefor can be proved or not.

(2) The conveyance and mortgage records of that parish show no evidence that the lands are claimed by the school board and that school board has filed an affidavit stating that it only claims lands shown in the affidavit and said lands not stated in the affidavit shall be declared to have been offered for sale and sold by the school board and such sale shall be ratified and confirmed, whether the execution of a deed or an actual transfer can be proved or not.

B. All defects and informalities in such sales, subject to the above conditions are hereby cured and such sales are hereby ratified as the complete divestiture of title from the state of Louisiana.

Acts 1946, No. 323, §§1, 2. Amended by Acts 1976, No. 409, §1.

RS 41:1323.2

Sixteenth section sales made prior to 1921; Act of 1956

§1323.2. Sixteenth section sales made prior to 1921; Act of 1956

A. Sales of the sixteenth section school lands in the State of Louisiana made prior to the first day of July, 1921, are hereby ratified and confirmed, notwithstanding any informalities in the said sales relative to holding elections to authorize said sales, appraisements, and offering the said lands in lots of forty acres, and any other informalities, regardless of whether any such sale was made by the treasurer of the parish in which any such sixteenth section was located or made by the treasurer of any other parish, where it is affirmatively shown by the records of the offices of State Auditor, or State Superintendent of Education or Register of State Land Office, that such lands were offered for sale and sold, whether the execution of a deed therefor can be proved or not.

B. All defects and informalities in such sales, subject to the above proviso are hereby cured and such sales if indicated by the records of the offices above referred to are hereby ratified as complete divestiture of title from the State of Louisiana.

Acts 1956, No. 580, §§1, 2.

RS 41:1323.3

Sixteenth section sales made through July 1, 1956; Act of 1964

§1323.3. Sixteenth section sales made through July 1, 1956; Act of 1964

A. All sales of sixteenth section school lands in the State of Louisiana made through the first day of July, 1956, are hereby ratified and confirmed notwithstanding informalities in said sales; provided that the parish treasurer or other officer making the sale executed a deed to the purchaser which deed, or the record thereof, shall be full proof that such sales were made in compliance with all the requirements and provisions of laws existing at the time such sales were made; and providing further that where the deed recites that the transfer or sale was made for a cash consideration, such recital shall be full proof that the entire consideration was properly paid; and where the deed recites that the sale was made for part cash and the balance on terms of credit, said recital shall be full proof that the cash portion of the purchase price was properly paid, and if the mortgage records of the parish wherein the property is situated show a cancellation of the mortgage securing the credit portion of the purchase price, such cancellation shall be full proof that the credit portion of the purchase price has been paid; and provided further that if the mortgage records of the parish wherein the property is situated do not show a cancellation of the mortgage securing the credit portion of the purchase price, and no action or suit has been brought and prosecuted to a conclusion to foreclose the mortgage securing the credit portion of the purchase price or to have the sale rescinded, annulled or set aside, it shall be presumed that the credit portion of the purchase price has been fully paid.

B. All informalities and defects in such sales, subject to the above provisions, are hereby cured.

Acts 1960, No. 264, §§1, 2. Amended by Acts 1964, No. 184, §1.

RS 41:1323.4

Sales, transfers or exchanges of public property by cities, towns, villages and police juries prior to twelve o'clock, noon, July 28, 1948

§1323.4. Sales, transfers or exchanges of public property by cities, towns, villages and police juries prior to twelve o'clock, noon, July 28, 1948

All sales, transfers or exchanges of public property made by cities, towns, villages and police juries made prior to twelve o'clock, noon, July 28, 1948 are hereby validated, ratified and confirmed unto the original purchasers or transferees and their successors in title, notwithstanding any informalities provided there was a valid consideration therefor.

Added by Acts 1962, No. 205, §1.

RS 41:1323.5

Sales of irregular and fractional sixteenth section lands made prior to 1860

§1323.5. Sales of irregular and fractional sixteenth section lands made prior to 1860

A. Sales of irregular and fractional sixteenth section lands in the state of Louisiana made prior to the first day of January, 1860, are hereby ratified and confirmed. Notwithstanding any informalities in these sales relating to the holding of elections to authorize said sales, appraisements, and offering the said lands in lots of forty acres, whether or not the sales were made by the treasurer of the parish in which any such sixteenth section was located, or made by the treasurer of any other parish, or whether selected under a warrant sold by the register of the land office and/or treasurer and receiver of the land office of the state of Louisiana, where the following conditions are met:

(1) It is affirmatively shown by the records of the offices of legislative auditor, superintendent of education, register of the state land office, or state treasurer, or their predecessors or successors, that such lands were sold whether or not the execution of a deed therefor can be proved.

(2) It is affirmatively shown by the records of the state land office, auditor, superintendent of education or state treasurer that the purchase price of the lands has actually been paid into the State Treasury of Louisiana.

(3) The records reflect that the purchasers of such lands or their successors in title, have paid the taxes assessed against the property.

B. All defects and informalities in such sales are hereby ratified as the complete divestiture of title from the state of Louisiana, or of the school board of the parish in which the land is located.

Added by Acts 1978, No. 463, §1.

RS 41:1323.6

Ratification and confirmation of leases of certain school lands

§1323.6. Ratification and confirmation of leases of certain school lands

All contracts of leases of school lands, including but not limited to school indemnity lands and sixteenth section lands, by a school board within a parish with a population of not less than forty-two thousand nor more than forty-five thousand persons according to the latest federal decennial census that were entered into prior to January 4, 2012, for a term of not more than five years, are hereby ratified and confirmed and shall have the same force and effect as if the contracts of lease had been made and executed pursuant to the provisions of Part I of Chapter 10 of Title 41 of the Louisiana Revised Statutes of 1950, provided that the school board receives consideration proportionate to at least the fair market value for the leases.

Acts 2012, No. 785, §1, eff. June 13, 2012.

RS 41:1324

Confirmation of certain sales and locations

§1324. Confirmation of certain sales and locations

All sales and locations of public lands made by this state from the first of January, 1861, to the fourteenth of October, 1864, which are shown by the records of the register's office, are confirmed, and patents shall, on demand, be issued in the name of the purchaser, and be delivered to the party surrendering the proof of entry or location, or on making, to the satisfaction of the register, proof of loss.

RS 41:1325

Certain redemptions in New Orleans confirmed

§1325. Certain redemptions in New Orleans confirmed

All redemptions heretofore effected of property adjudicated to the state under Act 1 of 1935, third extra session, for non-payment of taxes due to the city of New Orleans, and which redemptions have heretofore been made by either the Register of State Land Office or officials of the city of New Orleans, same are hereby ratified and validated as from the dates on which such redemptions were so effected.

RS 41:1326

Confirmation of certificates of redemption under 1934, 1935, 1936 and 1938 acts

§1326. Confirmation of certificates of redemption under 1934, 1935, 1936 and 1938 acts

All certificates of redemption of property issued by the State Land Office under Acts 1934, No. 161; Acts 1935, Fourth Ex. Sess., No. 14; Acts 1936, No. 183; Acts 1938, No. 47, and the cancellation of taxes made by authority thereof, are ratified, validated and confirmed unless attacked within six months from July 31, 1940.

RS 41:1327

Confirmation of sales to drainage district

§1327. Confirmation of sales to drainage district

The title to all lands located in the Jefferson and Plaquemines Drainage District which were purchased by the Jefferson and Plaquemines Drainage District at tax sales made by the sheriffs and ex-officio tax collectors for the parish of Plaquemines or the parish of Jefferson, for delinquent taxes due the state, parish of Jefferson or parish of Plaquemines, and any and all political subdivisions of the state or parishes, where the sales were made prior to January 1, 1931, are ratified, quieted and confirmed as legal and valid.

RS 41:1328

Tax title by prescription

§1328. Tax title by prescription

A. Any person holding, or claiming immovable property under a deed made by a sheriff, or a tax collector, or other state or parish officer, which has been on record for more than ten years, and is, or purports to be, founded on a forfeiture for taxes theretofore had or made, or conveys or purports to convey an interest or title in such property acquired or pretended to have been acquired by the state, under a tax forfeiture, whether any such forfeiture actually took place or not, shall after the expiration of three years from July 7, 1904 be held and deemed to be the absolute owner of the property described in such deed, provided, they or their authors shall have paid, or do pay all taxes assessed against said property for such period of thirteen years. No court in this state shall thereafter entertain any suit to cancel or in any wise affect the title of any person or corporation claiming by, through or under such deed.

B. The provisions of Subsection A of this Section shall not apply whenever the original owner of the property was, on July 7, 1904, in the actual physical adverse possession of the property, nor, when such original owner has paid the taxes assessed against such property for any one year within ten years prior to July 7, 1904, or, within three years thereafter, has instituted a proceeding to cancel such tax deed or forfeiture as a cloud upon his title.

RS 41:1329

Prescription on suit to quiet title of state

§1329. Prescription on suit to quiet title of state

In all cases where a final judgment of a competent court has been heretofore rendered cancelling or annulling a sale made to the State of Louisiana in the enforcement of state taxes, and such legal proceedings for cancellation or annulment have been had contradictorily with the collector of state taxes of the parish in which the property is situated, the State of Louisiana must bring suit to be decreed the owner of such property under such tax sale within three months from and after the promulgation of Act 172 of 1914, otherwise that such action shall be prescribed.

RS 41:1330

Sale to drainage district

§1330. Sale to drainage district

If in the enforcement of the collection of the acreage tax or forced contributions assessed against the lands within a drainage or subdrainage district, it becomes necessary to sell the property for payment of the acreage tax or forced contribution due thereon, and the entire property thus offered fails to sell for an amount sufficient to pay such acreage tax or forced contributions, together with the state and other taxes assessed thereon, the sheriff of the parish in which the property is situated shall adjudicate the land to the State of Louisiana. When such adjudication is made, the register of the state land office shall immediately take possession of the land, in the name of the state, and as soon as the three-year period expires in which the property can be redeemed, offer the said land at public sale in accordance with existing laws. In the event no sale is made of said property, he shall offer the land to the drainage district, provided that the register of the state land office shall have the right to sell such property to the Jefferson and Plaquemines Drainage District for not less than all taxes or forced contributions thereon, together with interest and penalties, or, for such minimum price as may be fixed by law, governing the sale of property adjudicated to the State of Louisiana for delinquent taxes. Any conveyance made by the Register of the State Land Office to the Jefferson and Plaquemines Drainage District of such property, after the period of redemption has expired, to-wit: three years from the date of the recording of the act of adjudication to the State of Louisiana, the conveyance shall be a good and valid title of the property to the Jefferson and Plaquemines Drainage District, or to the purchaser, as the case may be, and all prescriptive statutes enacted in favor of the sales shall apply with equal force to any tax adjudication under this Section. Whenever a sale of property is made by the register of the state land office, under this act, to either the Jefferson and Plaquemines Drainage District or to any individual or corporation who may purchase the property it shall be conveyed free and clear of all liens and encumbrances recorded against the property.

RS 41:1331

Confirmation of sale to Jefferson and Plaquemines Drainage District

§1331. Confirmation of sale to Jefferson and Plaquemines Drainage District

Where the Jefferson and Plaquemines Drainage District has acquired property located in the drainage district, at tax sale made by the sheriffs and ex-officio tax collectors of either the Parishes of Jefferson and Plaquemines, respectively, and the three-year period within which the property may be redeemed shall have expired, all rights, title and interest in and to the property are ratified and confirmed unto the Jefferson and Plaquemines Drainage District. The drainage district shall have the right to subdivide said land thus purchased, and any other lands which it may acquire, into lots, parcels, plats or tracts, best suited to the sale and disposition of the land.

RS 41:1332

Manner of sale by district

§1332. Manner of sale by district

If the property purchased by the Jefferson and Plaquemines Drainage District as provided in R.S. 41:1330, shall in turn be sold by it as a whole, the property shall not be sold for less than the amount of all taxes, interest, costs and penalties due the state, parish and other political subdivisions of the parish in which the land is situated, which taxes, interest, costs and penalties shall be collected for a period of three years preceding the year of the sale. If the sale is made of parcels, lots, plats or tracts taken from an entire tract, the property shall not be sold for less than a pro-rata of the amount of all taxes, interest, penalties and costs due the state, parish and other political subdivisions of the parish in which the land is situated, the pro-rata to be figured on a pro-rata of the assessment as it applies to the whole property. These taxes shall be likewise collected for a period of three years preceding the date of the sale.

RS 41:1333

Title of purchaser from district

§1333. Title of purchaser from district

In the sale of property by the Jefferson and Plaquemines Drainage District acquired by it at delinquent tax sale or from the register of the state land office, title to said property shall be free and clear of all liens or encumbrances of any kind or character.

RS 41:1334

Lease, mortgage or use of property purchased by district

§1334. Lease, mortgage or use of property purchased by district

The Jefferson and Plaquemines Drainage District may rent, lease or use said property purchased by it, as provided in R.S. 41:1330, as it may deem fit, and may grant rights-of-way over and on the property and dig thereon canals, ditches and drains, and construct public works. Taxes collected on other lands in the district not acquired by said Jefferson and Plaquemines Drainage District for non-payment of taxes, shall not be used for the purpose of constructing public works, canals, ditches, drains, or other purposes on said property. The Jefferson and Plaquemines Drainage District shall have the power and authority to mortgage or otherwise hypothecate and encumber all or any portion of the property acquired by it as provided by R.S. 41:1330 for the purpose of obtaining funds to construct and maintain drainage and pumping facilities, access roads and other public works within the district.

Amended by Acts 1950, No. 316, §12; 1966, Ex. Sess., No. 18, §1.

RS 41:1335

Land exchanges by director of highways

§1335. Land exchanges by director of highways

All land exchanges or any contracts for the exchange of land heretofore made by the director of highways as head of the department of highways of the State of Louisiana, be and the same are hereby confirmed and ratified, and authority to complete all such executory contracts be and the same is hereby especially given the said director of highways.

Acts 1950, No. 207, §1.

RS 41:1336

Sales of land by register of state land office to department of highways

§1336. Sales of land by register of state land office to department of highways

All sales of land heretofore made by or on the order of the register of the state land office of the State of Louisiana to the department of highways of the State of Louisiana including, but not by way of limitation, those covering a part of the shore, bank, bed or bottom of a lake, stream or any body of water be and they are hereby confirmed and ratified.

Acts 1950, No. 208, §1.

RS 41:1337

Sales of land by Louisiana tuberculosis commission prior to July 27, 1932

§1337. Sales of land by Louisiana tuberculosis commission prior to July 27, 1932

All sales of lands made prior to July 27, 1932, by the Louisiana tuberculosis commission created by Act 161 of the Louisiana legislature for the year 1912, are hereby ratified and confirmed, notwithstanding any defects therein, and the purchasers thereof are hereby quieted in their possession and declared to have acquired a valid and legal title thereto, except that as to such sales effected on and after June 18, 1921, but prior to July 27, 1932, the mineral rights in and to the lands thus sold are declared to have been reserved to the state of Louisiana, notwithstanding that no specific reservation was made in the acts of sale.

Acts 1958, No. 335, §1.

RS 41:1338

Transfers of property acquired by the state or political subdivision; exemptions

§1338. Transfers of property acquired by the state or political subdivision; exemptions

A.(1) Notwithstanding any other provision of law to the contrary and except as otherwise provided in this Section, whenever any property, other than highway rights-of-way, is acquired by a state agency or the state, or any political subdivision thereof from any person of the United States or the state of Louisiana, then the state, state agency, political subdivision, or any other state or local agency subsequently acquiring said property which thereafter desires to transfer said property to a third person, first shall offer to sell whatever rights it acquired, at the fair market value, back to the original grantor, donor, or vendor, or his successors in title, unless the act of sale, donation, or other contractual agreement by which the property was acquired otherwise stipulates.

(2) The provisions of this Subsection shall not apply to the following:

(a) The sale or any transfer of any property acquired by a reservoir district created by the state.

(b) Property acquired or transferred by the governing authority of the city of Shreveport or the governing authority of Caddo Parish.

(c) The sale of property adjudicated to the state for nonpayment of taxes in tax years 1880 through 1973.

B. Notwithstanding any law to the contrary, and specifically notwithstanding the provisions of the second unnumbered paragraph of R.S. 31:149, and Subsection A of this Section, any land, property, or rights acquired by any port commission of the state, any industrial development corporation, industrial development board, or any other political entity of the state created for the purpose of promoting the creation, development, or expansion of commerce and industry within the state of Louisiana, when acquired by such port commission, industrial development corporation, industrial development board, or other political entity of the state by means other than a judgment or order of expropriation and acquired for the creation, development, or expansion of commerce and industry within the state of Louisiana may be sold to a third party for the creation, development, or expansion of commerce and industry within the state of Louisiana without prior offer to sell to the original grantor, donor, or vendor or his successors in title. This Subsection B of this Section is remedial and shall apply to any rights created by Act No. 371 of the 1980 Regular Session.*

C.(1) Notwithstanding any other provisions of law to the contrary, for any parish school board, any land, property, or rights acquired by any school board of the state by other than a judgment or order of expropriation when acquired for the purposes of promoting education, training, or teaching, may be sold to a third party without prior offer to sell to the original grantor, donor, vendor, or his successors in title. The sale to a third party shall be for a price of not less than fair market value.

(2)(a) When the land, property, or rights acquired by any school board have been acquired by judgment or order of expropriation, the offer to sell the property at fair market value to the original grantor, donor, vendor, or his successors in title shall be made in writing and by certified mail to the address provided by any such grantor, donor, vendor, or his successors in title who has delivered to the school board proof of such status and a written request that such offer to sell be first made to him. This offer shall include a copy of an appraisal of fair market value signed by a qualified appraiser.

(b) The offer to sell to the original grantor, donor, vendor, or his successors in title shall also be made by publication of notice of intent to sell the property once a week for three consecutive weeks in the official journal of the school board with the first publication to appear not less than thirty days prior to any sale of the property.

(c) Only those grantors, donors, vendors, or their successors in title who make written request as provided herein or who request to purchase the property in accordance with the terms of the published notice shall be eligible to purchase the property at fair market value.

(d) Should the school board propose to sell as a unit contiguous properties acquired by the school board in more than one act of transfer, any of the original grantors, donors, vendors, or their successors in title of any portion of the contiguous properties must purchase the entire property to be sold by the school board if they desire to purchase any portion of the property to be sold.

D. Notwithstanding any law to the contrary, and specifically notwithstanding the provisions of R.S. 31:149(E) and Subsection A of this Section, any land, property, or rights acquired by the former Department of Public Works in connection with the construction or maintenance of the Sabine River Diversion Canal System and related facilities in Calcasieu Parish located in Section 24, Township 9 South, Range 10 West or Sections 19, 20, 21, 28, or 29, Township 9 South, Range 9 West, Southwestern District of Louisiana, all in Calcasieu Parish, which property was transferred to the Department of Transportation and Development and thereafter transferred to the Sabine River Authority, may be sold or otherwise transferred to a third party for the creation, development, or expansion of commerce and industry within the state of Louisiana without prior offer to sell to the original grantor, donor, or vendor or his successors in title. The provisions of this Subsection shall apply retroactively and shall apply to any rights created by Title 31 of the Louisiana Revised Statutes of 1950, the Louisiana Mineral Code.

Added by Acts 1980, No. 371, §2. Amended by Acts 1982, No. 816, §1; Acts 1983, No. 577, §1; Acts 1984, No. 499, §1, eff. July 6, 1984; Acts 1984, No. 338, §1; Acts 2001, No. 523, §1; Acts 2002, 1st Ex. Sess., No. 64, §§1, 2, eff. April 18, 2002; Acts 2010, No. 282, §1; Acts 2013, No. 91, §2, eff. June 4, 2013.

*Acts 1980, No. 371, §1, Regular Session, amended and reenacted R.S. 31:149, and §2 enacted R.S. 41:1338.

CHAPTER 12. IMPROVEMENTS FOR RECREATIONAL PURPOSES

§1501. Lease of lakes, bays and coves

The register of the State Land Office, with the concurrence and approval of the governor, is hereby authorized and empowered to lease on behalf of the state any portion or part of any meandered state-owned lake, bay, cove or the bed and bottom thereof or state-owned lands reclaimed therefrom to any governing authority of a parish or municipality or any combination thereof, the Louisiana Wildlife and Fisheries Commission, the State Parks and Recreation Commission, and the Louisiana State Department of Highways for use primarily for public recreational purposes; provided, however, that said leases may only be entered into with the aforementioned municipal and parish governing authorities or any combination thereof, when the geographical territory encompassed by said governing authorities is directly adjacent to the lake, bay, cove or any part thereof or the bed and bottom thereof or lands reclaimed therefrom. In the case of leases to the State Parks and Recreation Commission, the State Wildlife and Fisheries Commission, and/or the State Department of Highways, said leases may be granted on a statewide basis subject to all conditions and requirements as provided for under the provisions of this Chapter. Subject to the approval of the register of the State Land Office, and with the concurrence of the attorney general, the political body who has been granted a lease under the provisions of this Chapter may place improvements in and on the leased property, and after obtaining approval of the register may assign or sublease such lease; provided, however, that any political body subleasing or assigning its lease as herein authorized shall supervise its sublessee or assign to insure that the terms and conditions of the original lease are observed, and provided, further, such assignment or sublease shall be only to the highest responsible bidder after advertisement in accordance with R.S. 41:1213 through 1215.1.

Any lease made by the register of the State Land Office pursuant to the provisions of this chapter shall be on behalf of the state of Louisiana except that, as to any lake, bay, cove and the bed and bottom thereof and land reclaimed therefrom, or part thereof, not under the jurisdiction and control of the state of Louisiana, the lease shall be made on behalf of the political body or entity having such jurisdiction and control and only at its request.

Acts 1960, No. 583, §1. Amended by Acts 1968, No. 626, §1; Acts 1970, No. 596, §1; Acts 1972, No. 376, §1.

RS 41:1502

Specifications

§1502. Specifications

Any lease granted pursuant to the provisions of this Chapter shall specify the improvements which may be placed in and on the property, and shall prohibit use of the property exclusively by private groups or organizations, and shall contain such other terms and conditions as the register of the State Land Office may determine. No lease or leases granted pursuant to the provisions of this Chapter shall individually or collectively cover an area greater than ten percent of the area of the entire bed of the lake, bay, cove or bed and bottom thereof. In addition, no lease as authorized to be granted under the provisions hereof, shall be granted for a term in excess of twenty-five years; provided, however, said lease may contain an option to renew for an additional term of not to exceed twenty-five years, but only in the event the lessee thereof has placed and maintained on said leased properties substantial improvements which in the opinion of the register of the State Land Office warrants the extension of the term of said lease.

Acts 1960, No. 583, §2. Amended by Acts 1968, No. 626, §1; Acts 1970, No. 596, §1.

RS 41:1503

Approval of Lease

§1503. Approval of Lease

No lease may be made under the provisions of this Chapter unless same shall have been approved by the governing authority of the parish or parishes or other political subdivision in which the property covered by the lease is located and by any other state or federal agency affected thereby.

Acts 1960, No. 583, §3. Amended by Acts 1968, No. 626, §1; Acts 1970, No. 596, §1.

RS 41:1504

Subject to prior and future alienations and wildlife laws and regulations

§1504. Subject to prior and future alienations and wildlife laws and regulations

Any lease granted pursuant to the provisions of this Chapter shall be subordinate to prior servitudes and leases and to any future oil, gas and mineral lease and shall be subject to the laws of the state concerning wildlife and to the rules, regulations and orders authorized by such laws. Without the consent of the lessee, the state or agency having authority may grant servitudes and other leases affecting the leased property which do not interfere unreasonably and permanently with the use of the property by the lessee.

Acts 1960, No. 583, §4. Amended by Acts 1968, No. 626, §1; Acts 1970, No. 596, §1.

RS 41:1505

Cancellation of lease

§1505. Cancellation of lease

The register of the State Land Office shall have the power to cancel any lease issued under the provisions of this Chapter for violation of the purposes, terms, or conditions of such lease.

Acts 1960, No. 583, §5. Amended by Acts 1968, No. 626, §1; Acts 1970, No. 596, §1.

RS 41:1506

Ratification and confirmation of leases in municipalities of five hundred thousand

§1506. Ratification and confirmation of leases in municipalities of five hundred thousand

All contracts of lease previously entered into by the governing authority of a municipality having a population of five hundred thousand or more on the effective date of this Section for lands, surface rights, water rights, air rights, and/or other facilities and other rights or property owned or leased by such a municipality for use and occupancy as a boat slip and/or boat house and/or other facility related to boating are hereby ratified and confirmed and shall be given the same force and effect as if such contracts of lease had been made and executed pursuant to the provisions of R.S. 41:1211 through R.S. 41:1222, both inclusive, and the provisions of R.S. 41:1501 through R.S. 41:1505, both inclusive, notwithstanding anything in this Part and this Chapter or any other law to the contrary.

Added by Acts 1978, No. 150, §2, eff. June 29, 1978.

CHAPTER 13. ARCHAEOLOGICAL RESOURCES

§1601. Declaration of public policy

It is hereby declared to be the public policy of the state of Louisiana to protect and preserve prehistoric and historic properties, artifacts, treasure troves, and objects of antiquity which have historical value or which are of interest to the public, including but not limited to abandoned prehistoric or historic settlements, sites, properties, sunken or abandoned ships, or other objects, or any part thereof relating to the history, government, and culture of the state.

Acts 1989, No. 291, §1.

RS 41:1602

Louisiana Archaeological Survey and Antiquities Commission

§1602. Louisiana Archaeological Survey and Antiquities Commission

A. There is hereby created the Louisiana Archaeological Survey and Antiquities Commission which shall be referred to as the "commission" for the purposes of this Chapter. The purpose of the commission shall be to promote the goals and objectives of the Department of Culture, Recreation and Tourism and to act in an advisory capacity to that department and its secretary in their administration of this Chapter and in matters relating to antiquities, archaeology, and other cultural resources.

B.(1) The commission shall be composed of eleven members. The person designated as state archaeologist and one representative each from the Department of Culture, Recreation and Tourism; the Department of Conservation and Energy; and the Governor's Commission on Indian Affairs shall be ex officio voting members of the commission. The governor shall appoint seven members to the commission from a list of two nominees submitted to him by the ex officio members for each appointment the governor is to make, provided that at least one appointment shall be a member of the Louisiana Archaeological Society.

(2) The nominees shall be lay or professional archaeologists from throughout the state who possess such degree of training and experience as, in the opinion of the ex officio members, makes them exceptionally responsive to the scientific, social, aesthetic, and cultural needs of the public in the protection and preservation of the cultural resources of the state. Appointed members shall be confirmed by the Senate and shall serve terms concurrent with that of the governor making the appointment.

C. The seat of an appointed member which becomes vacant during the term of his appointment shall be filled by the governor from a list of two nominees submitted to him by the remaining members of the commission. The nominees shall possess the same qualifications as the other appointed members. The seat of any appointed member who shall miss three consecutive duly called meetings of the commission shall be deemed vacant and the vacancy shall be filled in the above described manner.

D. The members of the commission may be paid a per diem of fifty dollars for each day spent in attendance at meetings of the commission or on necessary business of the commission assigned by the commission and shall be reimbursed for reasonable and necessary expenses incurred in the performance of their duties.

E. The commission shall elect one of its members as chairman and shall provide for its internal organization in a manner designed to best implement and accomplish its duties.

F. The commission shall meet at least four times a year to consider and vote on matters which come before it. Special meetings shall be held on the call of the chairman or on request of a majority of the members. Any six members of the commission shall constitute a quorum for the transaction of any and all business at any regular or special meeting. In the absence of the chairman, the remaining members may appoint a temporary chairman having all the powers of the absent chairman.

Acts 1989, No. 291, §1; Acts 2023, No. 150, §15, eff. Jan. 10, 2024.

RS 41:1603

Division of archaeology; state archaeologist

§1603. Division of archaeology; state archaeologist

A. There is hereby created the division of archaeology, which shall be referred to as the "division" for purposes of this Chapter. The division shall be located within the office of cultural development of the Department of Culture, Recreation and Tourism.

B. There is hereby created the position of state archaeologist. The state archaeologist shall hold, at a minimum, a master's degree in anthropology or a related field with a concentration in archaeology and shall have demonstrated exceptional ability and interest in the protection and preservation of archaeological treasures for the benefit of the citizens of this state. The state archaeologist shall function as director of the division.

Acts 1989, No. 291, §1; Acts 2012, No. 589, §1.

RS 41:1604

Responsibilities of the division

§1604. Responsibilities of the division

The division shall initiate and promulgate a program in archaeology, which shall include but not be limited to the activities delineated in this Section. In carrying out this responsibility, the division shall:

(1) Promulgate reasonable rules and regulations concerning the recovery and study of historic and prehistoric archaeological remains which in any way relate to the inhabitants, prehistory, history, government, or culture, in, on, or under any of the lands belonging to the state of Louisiana, including the tidelands, submerged lands, and the bed of the sea within the jurisdiction of the state of Louisiana. These remains shall include but shall not be limited to:

(a) All prehistoric and historic American Indian or aboriginal campsites, dwellings, habitation sites, burial grounds, and archaeological sites of every character;

(b) All historic sites, objects, and buildings;

(c) All sunken or abandoned ships and wrecks of the sea or rivers, or any part of the content thereof;

(d) All treasure embedded in the earth or underwater; and

(e) All maps, records, documents, books, artifacts, and implements of culture which relate to such archaeological remains.

(2) Maintain the state archaeological site files, including but not limited to site records, field notes, maps, photographs, and reports.

(3) Function as legal custodian for all archaeological artifacts and objects of antiquity which have been recovered from state lands or donated from private lands, except those donated to the Louisiana State Museum or the office of state parks. The repository of all artifacts under the control of the division shall take into consideration the public nature and research value of these objects and insure that they are accessible to maximum public exhibit consistent with their preservation.

(4) Implement a program of activities that will make available to the public information about the historic and prehistoric resources of the state. This shall include but shall not be limited to press releases, newsletters, booklets, exhibits, audio-visual programs, and teaching materials.

(5) Serve as the archaeological advisory source for all state agencies by assisting them in evaluating any potential impact of their projects on archaeological resources.

(6) Administer those portions of the National Historic Preservation Act relative to archaeology.

(7) Advise the secretary of the Department of Culture, Recreation and Tourism and the state historic preservation officer on matters affecting archaeology.

(8) Administer an archaeological grants program.

(9) Implement for the state the Abandoned Shipwreck Act.

Acts 1989, No. 291, §1.

RS 41:1605

Archaeological finds on state land; state property

§1605. Archaeological finds on state land; state property

A. All sunken or abandoned pre-twentieth century ships and wrecks of the sea and any part of the contents thereof and all archaeological treasure located in, on or under the surface of lands belonging to the state of Louisiana, including its tidelands, submerged lands and beds of its rivers, and the sea within the jurisdiction of this state are hereby declared to be the sole property of the state of Louisiana, under the administration and protection of the secretary of the Department of Culture, Recreation and Tourism, hereinafter in this Chapter referred to as the "secretary".

B. It shall be unlawful for any agency, political subdivision, group, or person to take, alter, damage, destroy, or excavate on state-owned lands as herein described without first obtaining a permit or contract from the secretary. Permits shall be issued for purely scientific and educational projects and only when all recovered materials are to remain the property of the state and when there is to be no compensation to the permittee based on the value of the recovered remains. Contracts shall be entered into for recovery of materials when compensation is to be made to the contract holder based on the value of the recovered remains.

Acts 1989, No. 291, §1.

RS 41:1606

Permits for recovery

§1606. Permits for recovery

The secretary, with the advice of the division, may issue a permit to any governmental agency, political subdivision, group, or person for the recovery of archaeological materials, treasure, sunken or abandoned ships and wrecks of the sea, or parts thereof or their contents, which are determined to be located on state-owned lands, or on private land if the written consent of the owner thereof is first obtained. All such permits shall specifically provide for the location, nature of, and time period for such operations and shall only be issued to qualified entities after the development of a research design. The division shall advise the secretary on the issuance of any such permit.

Acts 1989, No. 291, §1.

RS 41:1607

Contracts for recovery

§1607. Contracts for recovery

A. The secretary, with the advice of the division, may enter into a contract with any governmental agency, political subdivision, group, or person for the recovery of archaeological materials, treasure, sunken or abandoned ships and wrecks of the sea, or parts thereof or their contents, which are determined to be located on state-owned lands, or on private land if the written consent of the owner thereof is first obtained. Such contracts shall be approved by the attorney general and may provide for fair compensation to the salvager, and owner of the private land where applicable, in terms of a percentage of the reasonable cash value of the objects recovered or at the discretion of the secretary, with the advice of the division, of a fair share of the objects recovered.

B. The amount constituting a fair share shall be determined by the secretary, taking into consideration the circumstances of each operation, and the reasonable cash value may be determined by contractual agreement after appraisal by qualified experts or by representatives of the contracting parties. Each contract shall provide for the termination of any right of the salvager thereunder upon the violation of any of the terms thereof. Superior title to all objects recovered from state lands shall be retained by the state of Louisiana unless and until released by the secretary.

Acts 1989, No. 291, §1.

RS 41:1608

Grants and fees

§1608. Grants and fees

A. The division shall be authorized to accept gifts, grants, devices, and bequests of money, securities, or property.

B. The division shall be authorized to assess fees for technical services which it provides to public or private entities or persons, which fees shall be based upon the cost of operation of the division, including but not limited to its curation of artifacts, development and publication of technical materials, and conduct of workshops and seminars. Such fees shall be assessed pursuant to rules and regulations adopted in accordance with the Administrative Procedure Act; the division may also provide in such rules for exemptions from or reductions in such fees for certain entities or persons.

Acts 1989, No. 291, §1.

RS 41:1609

Access to information

§1609. Access to information

Records of the division which specify the specific location of archaeological sites, including but not limited to the state archaeological site files, shall not be public information. Access to such records shall be restricted to individuals who have a legitimate research or management need as determined by the division.

Acts 1989, No. 291, §1.

RS 41:1610

Prohibited excavations

§1610. Prohibited excavations

A. No person, not being the owner thereof, shall without the consent of the owner enter or attempt to enter upon the lands of another and intentionally injure, disfigure, remove, excavate, damage, take, dig into, or destroy any sites or artifacts addressed by R.S. 41:1604(1).

B.(1) No person may excavate, remove, damage, or otherwise alter or deface or attempt to excavate, remove, damage, or otherwise alter or deface any archaeological resource located on state lands unless such activity is approved by the agency with ownership responsibilities over the lands and is authorized under a permit issued pursuant to R.S. 41:1606.

(2) No person may sell, purchase, exchange, transport, or receive or offer to sell, purchase, or exchange any archaeological resource if such resource was excavated or removed from state lands in violation of Paragraph (1) of this Subsection.

(3) Any person who knowingly violates or counsels, procures, solicits, or employs any other person to violate any prohibition contained in Paragraph (1) or (2) of this Subsection shall, upon conviction, be fined not more than ten thousand dollars or imprisoned not more than one year, or both. However, if the commercial value of the archaeological resources involved and the cost of restoration and repair of such resources exceeds the sum of five hundred dollars, such person shall be fined not more than twenty thousand dollars or imprisoned not more than two years, or both. In the case of a second or subsequent violation, upon conviction, such person shall be fined not more than one hundred thousand dollars, or imprisoned not more than five years, or both.

(4) All archaeological resources collected, transferred, or sold in violation of this Subsection shall be forfeited to the state.

(5) All vehicles and equipment of any person that were used in connection with the violation of this Subsection may be forfeited to the state.

(6) Nothing contained in this Subsection shall apply to any person with respect to any archaeological resource that was in the lawful possession of such person prior to June 26, 2001.

(7) For the purpose of this Subsection, "archaeological resource" shall mean any material remains of past human life or activities that are of archaeological interest which shall include but not be limited to pottery, basketry, bottles, weapon projectiles, tools, structures or portions of structures, human skeletal remains, Civil War artifacts, or any portion or piece of the foregoing items.

Acts 1989, No. 291, §1; Acts 2001, No. 938, §1, eff. June 26, 2001.

RS 41:1611

Public cooperation; private lands

§1611. Public cooperation; private lands

Every individual is encouraged, prior to knowingly disfiguring, removing, excavating, damaging, taking, digging into, or destroying any prehistoric or historic archaeological site, American Indian or aboriginal campsites, mounds, artifacts, burials, ruins, historic structures, or other archaeological remains located in or under any private lands within this state, to notify the division at least ninety days in advance and to allow professional supervision of same by the division or its agents.

Acts 1989, No. 291, §1.

RS 41:1612

Injunctive relief

§1612. Injunctive relief

A. In addition to and without limiting the other powers of the attorney general, and without altering or waiving any criminal penalty fixed by this Chapter, the attorney general shall have the authority to bring an action in the name of the state in any court of competent jurisdiction for restraining orders and injunctive relief to restrain and enjoin violations or threatened violations of this Chapter and for the return of items taken in violation of the provisions hereof. The venue of such action shall lie either in the parish of East Baton Rouge or in the parish in which the activity sought to be restrained is alleged to be taking place or from which the items were taken.

B. Any citizen of Louisiana may bring an action in any court of competent jurisdiction for a restraining order and injunctive relief to restrain and enjoin violations or threatened violations of this Chapter and for the return of items taken in violation of the provisions hereof. The venue of such an action shall lie in the parish in which the activity sought to be restrained is alleged to be taking place or from which the items were taken.

Acts 1989, No. 291, §1.

RS 41:1613

State cooperation

§1613. State cooperation

The chief administrative officers of all state agencies are authorized and directed to cooperate with and assist the division, the secretary, and the attorney general in carrying out the purposes and intent of this Chapter. All state and local law enforcement agencies and officers are authorized and directed to assist in enforcing this Chapter and in carrying out the intent hereof.

Acts 1989, No. 291, §1.

RS 41:1614

Penalties

§1614. Penalties

Any person violating any of the provisions of this Chapter shall be guilty of a misdemeanor and upon conviction shall be punished by a fine of not more than five hundred dollars or imprisonment for not more than thirty days, or by both. Each day of continued violation shall constitute a distinct and separate offense.

Acts 1989, No. 291, §1.

RS 41:1615

Repealed by Acts 2021, No. 114, §17, eff. July 1, 2022.

§1615. Repealed by Acts 2021, No. 114, §17, eff. July 1, 2022.

RS 41:1701

Declaration of policy; public trust

CHAPTER 14. STATE WATER BOTTOM MANAGEMENT

§1701. Declaration of policy; public trust

The beds and bottoms of all navigable waters and the banks or shores of bays, arms of the sea, the Gulf of Mexico, and navigable lakes belong to the state of Louisiana, and the policy of this state is hereby declared to be that these lands and water bottoms, hereinafter referred to as "public lands", shall be protected, administered, and conserved to best ensure full public navigation, fishery, recreation, and other interests. Unregulated encroachments upon these properties may result in injury and interference with the public use and enjoyment and may create hazards to the health, safety, and welfare of the citizens of this state. To provide for the orderly protection and management of these state-owned properties and serve the best interests of all citizens, the lands and water bottoms, except those excluded and exempted and as otherwise provided by this Chapter, or as otherwise provided by law, shall be under the management of the division of administration, hereinafter referred to as the "division". The state land office, hereinafter referred to as the "office", shall be responsible for the control, permitting, and leasing of encroachments upon public lands, in accordance with this Chapter and the laws of Louisiana and the United States.

Added by Acts 1978, No. 645, §2, eff. July 13, 1978; Acts 2001, No. 919, §1; Acts 2018, No. 242, §2.

RS 41:1701.1

State Land Office; powers, duties, functions, and responsibilities

§1701.1. State Land Office; powers, duties, functions, and responsibilities

A. The duties of the State Land Office shall be under the administration of a public lands administrator and a deputy public lands administrator who shall be responsible for performing the functions set forth in this Chapter unless otherwise specified.

B. The State Land Office shall be composed of four sections as follows:

(1) The administrative section, which shall be responsible for the administration, control, and operation of the functions and programs of the office.

(2) The land and water bottom section, which shall be responsible for management of the programs within the statutory responsibility and authority of the State Land Office relating to the beds and bottoms of navigable waters and the banks or shores of the bays, arms of the sea, the Gulf of Mexico, and navigable lakes which belong to the state of Louisiana, and those over which the state has acquired the right to navigate by conventional agreement or otherwise, which shall be protected, administered, and conserved to best ensure full public navigation, fishery, recreation, and other interests.

(3) The historical records section, which shall be responsible for the maintaining of records and plats of state and federal land sold; maintaining a state land and building inventory system; and maintaining tax adjudication documents.

(4) The titles and surveys section, which shall be responsible for the determination of titles and surveys pertaining to state lands and water bottoms using the records of the office and its field assets in such determinations.

C. Subject to the approval of the commissioner of administration, the governor, the attorney general, the Department of Wildlife and Fisheries, and the Department of Conservation and Energy, the State Land Office shall develop and promulgate a comprehensive state master plan for the administration of state lands and water bottoms and shall ensure that all public lands and water bottoms are protected, administered, and conserved in a manner consistent with the constitution.

D. The State Land Office shall identify all public lands and water bottoms within the state and develop and maintain a current master list of those lands and water bottoms. All state agencies, including but not limited to Department of Culture, Recreation and Tourism, the Department of Conservation and Energy, the Office of Coastal Protection and Restoration, the Department of Wildlife and Fisheries, the Department of Transportation and Development, the Louisiana Geological Survey, the state's colleges and universities, all levee boards, drainage boards, parish governing authorities, and any districts created under the jurisdiction of levee boards, drainage boards, or parish governing authorities, shall cooperate with the State Land Office in developing the master list.

E. The State Land Office is hereby authorized to conduct meetings, hold public hearings, and appoint advisory committees to assist the office in its duties. In accordance with law, the office may accept gifts, donations, and bequests which may assist the office in the performance of its duties.

F. The State Land Office shall have the authority to develop and promulgate necessary rules and regulations in accordance with the Administrative Procedure Act.

G. None of the duties and responsibilities or organization of the State Land Office as provided in this Section shall supersede or modify the authority granted to any other state agency.

Acts 2001, No. 919, §1; Acts 2010, No. 734, §5; Acts 2023, No. 150, §15, eff. Jan. 10, 2024.

RS 41:1702

Reclamation of lands lost through erosion, compaction, subsidence, and sea level rise; land acquisition for certain coastal projects; requirements

§1702. Reclamation of lands lost through erosion, compaction, subsidence, and sea level rise; land acquisition for certain coastal projects; requirements

A. To best insure the public interests sought to be protected by the trust, the lands encompassed therein shall not be alienated except as provided in this Section. This Section shall not prevent the leasing of state lands or water bottoms for mineral or other purposes.

B.(1) Pursuant to the authority of Article IX, Section 3 of the Constitution of Louisiana, owners of land contiguous to and abutting navigable waters, bays, arms of the sea, the Gulf of Mexico, and navigable lakes belonging to the state shall have the right to reclaim or recover land, including all oil, gas, and mineral rights, except as otherwise provided in Subsection E of this Section, lost through erosion, compaction, subsidence, or sea level rise occurring on and after July 1, 1921, in accordance with the procedures set forth in this Title for the fixing of boundaries by mutual consent and, also, those procedures applicable to contested boundaries.

(2) In either case applicants seeking to reclaim or recover such submerged land shall additionally comply with the provisions of Subsections C and D of this Section.

(3) As to owners of land formerly or presently contiguous to and abutting the coast of the Gulf of Mexico, as that coast is defined in the decree of the United States Supreme Court dated June 16, 1975, in United States v. State of Louisiana, No. 9 Original (Tidelands Case) lands lost by erosion, compaction, subsidence, or sea level rise on the landward side of said coastline may be the subject of reclamation hereunder, whether or not the erosion occurred before July 1, 1921, and reclamation may be authorized out to that coastline.

C. Application for the reclamation or recovery of land lost through erosion, compaction, subsidence, or sea level rise shall be made to the State Land Office, pursuant to Paragraph (D)(1) of this Section, on forms to be provided and with such reasonable fee as may be prescribed by the office, provided that all such applications shall be accompanied by a deed of ownership or a certified map or plat of survey prepared by a professional land surveyor qualified and currently licensed by the Louisiana Professional Engineering and Land Surveying Board in accordance with R.S. 37:681 et seq., defining the boundary between lands belonging to the state and those of riparian owners and showing the exact extent of land claimed to be lost through erosion, compaction, subsidence, or sea level rise, and by such other evidence as may be required by the administrator showing ownership of the riparian lands in question by the applicant.

D. In all cases in which a definitive boundary may be arrived at by mutual consent or through the procedures applicable to contested boundaries, the administrator of the State Land Office, as provided in Paragraph (1) of this Subsection, or the executive director of the Coastal Protection and Restoration Authority, as provided in Paragraph (2) of this Subsection, may allow reclamation.

(1) The administrator of the State Land Office may issue a permit for the carrying out of the work necessary to implement the recovery of the land lost through erosion, compaction, subsidence, or sea level rise; however, no permit shall be issued until plans and specifications for the work have been first submitted to the governing authority of the parish in which the proposed project is located, the Department of Transportation and Development, the Department of Wildlife and Fisheries, the Coastal Protection and Restoration Authority, and the Department of Conservation and Energy for review and comment not less than sixty days prior to the issuance of the permit. No permit shall be required for projects to facilitate the development, design, engineering, implementation, operation, maintenance, or repair of integrated coastal protection projects by the Coastal Protection and

Restoration Authority under R.S. 49:214.1 et seq. or other applicable law or projects for the Atchafalaya Basin Program. Within sixty days of completion of the reclamation project, the riparian owner shall submit to the State Land Office proof of the extent of the land area actually reclaimed in the manner provided in Subsection C of this Section for showing the submerged area, which map or plat shall be employed for fixing the definitive boundary between the reclaimed land area and the state water bottoms. Permits issued pursuant to these provisions shall be effective for a period not to exceed two years from the date of issuance and shall thereupon expire. All work remaining or any additional work may be completed only by application in the manner provided by this Section.

(2)(a)(i) To facilitate the development, design, and implementation of integrated coastal protection projects, including hurricane protection and flood control, pursuant to R.S. 49:214.1 et seq., the executive director of the Coastal Protection and Restoration Authority, after consultation with other state agencies, including the Department of Conservation and Energy and the State Land Office, may enter into agreements with owners of land contiguous to and abutting navigable water bottoms belonging to the state who have the right to reclaim or recover the land, including all oil and gas mineral rights, as provided in Subsection B of this Section, which agreements may establish in the owner the perpetual, transferrable ownership of all subsurface mineral rights to the then-existing coast or shore line. The agreements may also provide for a limited or perpetual alienation or transfer, in whole or in part, to the owner of subsurface mineral rights owned by the state relating to the emergent lands that emerge from waterbottoms that are subject to the owner's right of reclamation in exchange for the owner's compromise of his ownership and reclamation rights within the area and for such time as the executive director deems appropriate and in further exchange for the owner's agreement to allow his existing property to be utilized in connection with the project to the extent deemed necessary by the executive director.

(ii) When land is acquired from any person by an "acquiring authority" as defined in R.S. 31:149, for the principal purpose of facilitating the development, design, and implementation of integrated coastal protection projects, including hurricane protection and flood control, by the state, its political subdivisions, or by the state and federal government, the executive director of the Coastal Protection and Restoration Authority, after consultation with other state agencies, including the Department of Conservation and Energy and the State Land Office, may, in accordance with rules and regulations adopted in accordance with the Administrative Procedure Act by the Coastal Protection and Restoration Authority after consultation with other state agencies, including the Department of Conservation and Energy and the State Land Office, enter into an agreement under this Section with respect to the ownership of minerals and other matters to the same extent as authorized under Item (i) of this Paragraph. In addition, the agreement shall, at a minimum, specify:

(aa) That the acquired land shall remain available for the principal purposes of the acquisition.

(bb) Ownership of minerals.

(cc) Mineral servitudes and exercise of mineral rights, including noninterference with the principal purposes of the acquisition consistent with the provisions of Item (i) of this Paragraph and R.S. 31:149.

(dd) Permanent easements, servitudes, rights-of-way, and rights of use as necessary to facilitate the principal purposes of the acquisition. These shall include, but are not limited to, those necessary for construction, operation, maintenance, repair, replacement, and rehabilitation of any projects or cooperative agreements undertaken by the state or a political subdivision for integrated coastal protection or by the state and federal governments pursuant to state or federal law, including but not limited to, the Coastal Wetlands Planning, Protection and Restoration Act, the Coastal Zone Management Act, the Water Resources Development Act, the Coastal Impact Assistance Program, and the North American Wetlands Conservation Act.

(ee) Other easements, servitudes, rights-of-way or rights of use as may be determined by the state to be necessary regarding public access and use.

(ff) Indemnification and the holding harmless of the public entity, except for the negligence or actions of the public entity, its employees, agents, contractors, and assigns.

(iii) No agreement shall be entered into pursuant to the provisions of Item (ii) until after the adoption in accordance with the Administrative Procedure Act of rules and regulations to implement such provisions as provided above. Such rules and regulations shall not be promulgated or adopted as emergency rules. Such rules and regulations shall additionally consider the nature, extent and conditions of public access to and use of the surface lands and waters that will be permitted by the acquiring authority on the land and water bottom acquired, including for navigation, boating, commercial and recreational fishing, hunting, trapping, nature observation and study, and other traditional activities that are consistent with the principal purposes of the acquisition.

(iv) If the agreement authorized in Item (ii) is in the form of, or constitutes part of, an act of donation of immovable property to the state, acceptance by the state of such property shall be subject to the requirements of R.S. 41:151 or its successor.

(b) In addition to the provisions of Subparagraph (a) of this Paragraph, in the case of a project involving a barrier island, the executive director may also require the owner to transfer title to all or a portion of the island in exchange for any subsurface mineral rights acquired by said owner.

(c) Any person granted a perpetual, transferrable ownership of subsurface mineral rights as a result of an agreement entered into pursuant to the provisions of this Section shall have a perpetual transferrable servitude to use the surface of any such land for the purposes of locating, accessing, extracting, and transporting those subsurface minerals with the same freedom, and subject to the same restrictions, as an owner of the surface.

(d) When the executive director proposes to execute an agreement by which an election pursuant to this Section is affected, the executive director shall first submit the agreement for review and approval to the House Committee on Natural Resources and Environment and the Senate Committee on Natural Resources, after publishing the agreement as provided in the Administrative Procedure Act.

(e) As used in this Section, the term "emergent land" shall mean land that emerges from a public water bottom to an elevation sufficient to support emergent vegetation, except that in the case of the seaward side of a barrier island the minimum elevation required shall be the lowest elevation sufficient to support emergent vegetation on the landward side of such island. However, no land which lies below the elevation of ordinary low water shall be considered emergent land.

(f) The Coastal Protection and Restoration Authority shall provide an owner granted subsurface mineral rights pursuant to this Paragraph, recordable evidence of the rights transferred, which documents shall include an adequate legal description of the area subject to such owners' rights and a plat thereof. The owner shall be responsible for filing any such document in the conveyance records of the parish in which such property is located, which filing shall be public notice thereof.

E. Except to the extent that the land lost through erosion, compaction, subsidence, or sea level rise continues to be encumbered by an oil, gas, and mineral lease and subject to R.S. 9:1151, upon emergence of any land within a permitted reclamation area or within an area subject to an agreement entered into pursuant to Subsection D of this Section, said land or any subsurface mineral right created pursuant to Subsection D of this Section shall be reacquired and owned by the riparian owner, or the state or its transferee in the case of areas subject to an agreement entered into pursuant to Paragraph (D)(2) of this Section, subject to and encumbered with any right-of-way or servitude grant, or any mineral, geothermal, geopressure, or any other lease granted by the state for a lawful purpose

while the reclaimed land was an eroded or subsided area, the rights of the state or lessee thereunder to be in no manner abrogated or affected by the reclamation and to remain free and clear of any claim by the riparian owner for compensation out of the proceeds of the grant or lease or otherwise.

F. Except as otherwise provided in Paragraph (D)(2) of this Section, the words "reclamation" or "recovery of land" or "reclamation project" as used in this Section shall refer to the raising of land through filling or other physical works which elevate the surface of the theretofore submerged land as a minimum above the level of ordinary low water in the case of rivers or streams and above the level of ordinary high water in the case of bodies of water other than rivers and streams, to such heights as may be prescribed in regulations or forms adopted by the administrator of the State Land Office to ensure reasonably permanent existence of the reclaimed lands. Any reclamation pursuant to Paragraph (D)(1) of this Section not in substantial compliance with the permit procedure provided above shall be an absolute nullity and no private rights of ownership shall vest or be acquired by prescription.

G.(1) The administrator of the State Land Office shall have the authority to adopt regulations allowing reclamation of land in compliance with the provisions of Paragraph (D)(1) of this Section, and the executive director of the Coastal Protection and Restoration Authority shall have the authority to adopt regulations pursuant to Paragraph (D)(2) of this Section.

(2) Permits may be granted for bulkheads, generally parallel to the shore, that do not interfere with navigation on any inland navigable water body whether or not the area to be bulkheaded eroded before July 1, 1921, if, on the basis of evidence furnished the administrator of the State Land Office, such bulkheading will aid in reclaiming submerged land or preventing erosion, compaction, or subsidence. No permit shall be required for projects to facilitate the development, design engineering, implementation, operation, maintenance, or repair of integrated coastal protection projects by the Coastal Protection and Restoration Authority under R.S. 49:214.1 et seq. or other applicable law or projects for the Atchafalaya Basin Program. Such permits shall not vest any title in any private owner other than as to lands eroded after July 1, 1921.

(3) Permits may be further granted to provide adequate foundation of flood protection for presently existing structures in proximity to the eroded banks.

H. No reclamation by a riparian landowner shall be permitted if, in the determination of the Department of Conservation and Energy, the State Land Office, the Coastal Protection and Restoration Authority, or the attorney general, the activity would unreasonably obstruct or hinder the navigability of any waters of the state or impose undue or unreasonable restraints on the state rights which have vested in the areas pursuant to Louisiana law, and to that extent the land area sought to be reclaimed may be limited.

I. Any person aggrieved either by a substantive agency decision made pursuant to the provisions of this Section, including interlocutory decisions relating to boundaries and determinations of areas reclaimed, or by a failure of the agency to render the decisions timely may seek immediate judicial review of the agency action. Proceedings for review of decisions by the Department of Conservation and Energy, the Coastal Protection and Restoration Authority, or the State Land Office may be instituted by filing a petition in the Nineteenth Judicial District Court within thirty days after mailing of notice of the final decision by the administrator or secretary. Any party may request and be granted a trial de novo.

J. No person, firm, partnership, or corporation shall dredge the water bottom of Lake Pontchartrain for private commercial purposes, except as authorized by Article IX, Section 3 of the Constitution of Louisiana, and then only to the extent that such dredging does not unreasonably or unduly restrain the navigability or public use of Lake Pontchartrain. The provisions of this Subsection shall not apply to water bottoms located in Jefferson Parish.

Added by Acts 1978, No. 645, §2, eff. July 13, 1978; Amended by Acts 1996, 1st Ex. Sess., No. 55, §1, eff. May 7, 1996; Acts 2001, No. 919, §1; Acts 2003, No. 279, §6; Acts 2004, No. 716, §1, eff. July 6, 2004; Acts 2006, No. 626, §1, eff. June 23, 2006; Acts 2008, No. 580, §5; Acts 2010, No. 734, §5; Acts 2015, No. 72, §1; Acts 2023, No. 150, §15, eff. Jan. 10, 2024.

RS 41:1703

Permits and licenses for encroachments other than reclamation projects

§1703. Permits and licenses for encroachments other than reclamation projects

A. Encroachments, other than those provided in R.S. 41:1702, may be permitted and licensed by the division under the provisions of this Chapter.

B. The office, with the aid of the division, the Department of Conservation and Energy, the Department of Wildlife and Fisheries, the Department of Transportation and Development, and the attorney general, shall adopt regulations to implement this Chapter, including the granting and revoking of permits, leases or licenses, processing of applications, establishing fee schedules, collecting of fees or revenues for all manner of encroachments, and shall create an overall and comprehensive plan for the orderly development and preservation of state lands so as to ensure maximum benefit and use, all in accordance with the law. The office shall maintain a current inventory of state lands and a depository in which shall be recorded and preserved all records, surveys, plats, applications, permits, leases, licenses, and other evidence pertaining to the trust lands, their description, disposition, and encroachments thereon.

Added by Acts 1978, No. 645, §2, eff. July 13, 1978; Acts 2001, No. 919, §1; Acts 2018, No. 242, §2; Acts 2023, No. 150, §15, eff. Jan. 10, 2024.

RS 41:1704

Definitions

§1704. Definitions

As used in this Chapter:

(1) "Encroachment" means any construction, or improvement, obstacle, fill, or material which is placed upon or maintained upon state lands.

(2) "Pier" means any structure extending channelward from the shore or bank, built upon pilings with water on both sides, with or without a sunshade or boathouse, built or maintained for the purpose of providing a berthing or mooring place for watercraft or for loading or unloading cargo or passengers onto or from watercraft or for fishing.

(3) "Wharf" means any structure built upon pilings extending along the shore and generally connected with the bank or shore along its length, with or without a sunshade or boathouse, built or maintained for the purpose of providing a berthing or mooring place for watercraft or for loading or unloading cargo or passengers onto or from watercraft or for fishing.

(4) "Material" means rock, gravel, sand, shell, silt, or other inorganic substances used to fill any state lands of this state.

(5) "Deposit" means the action of placing or moving materials by artificial means, over state lands which results in or adds to a landfill, whether contained within a bulkhead or not.

(6) "Person" shall mean any individual, partnership, corporation, organization, or entity not including political subdivisions or state agencies.

(7) "Structure" means any encroachment upon state lands, other than those which are specified as the subject matter of a particular class of permit, which is permanently attached to the public lands by pilings, or other means, including, but not limited to storage docks, houses, camps, warehouses, residences, bulkheads not proximate to the shore or bank, business establishments, dams, bridges, impoundment structures, or similar works.

(8) "Noncommercial" means built or maintained by either private citizens or nonprofit corporations for the purpose of recreation and enjoyment and not for revenue production, except for nonprofit corporations, or realizing profit.

(9) "Commercial" means built or operated for any purpose where revenue is produced or profit realized.

(10) "Landfill" means the direct or induced raising or elevating of any navigable waterbottom by deposit to the extent that newly emerging land results, not covered at mean low water or navigable rivers and streams or mean high water on other state properties.

(11) "Lessor" means the state of Louisiana, through the department.

(12) "Owner" means the actual owner of record.

(13) "Bank stabilization works" means concrete, rock, masonry, rip-rap, or similar materials used to cover existing banks or shorelines or bulkheads located above the mean low water line, all in acres subject to erosion, to combat the same.

Added by Acts 1978, No. 645, §2, eff. July 13, 1978.

RS 41:1705

Application of Chapter; exemptions

§1705. Application of Chapter; exemptions

This Chapter shall not apply to:

(1) Piers, wharves, structures, or other improvements within the jurisdiction of any deep-water port commission of this state, including but not restricted to the authority to grant permits to construct, create, alter, improve, extend, or maintain any wharf, pier, dock, structure, or other improvement, and the granting of any permit for any of such purposes shall be and remain in the deep-water port commissions as to any such activity heretofore or hereafter performed or for which permit heretofore was or hereafter is sought.

(2) Levees or other public flood control structures;

(3) Temporary extensions to existing encroachment added for a period not to exceed six months, if required by low or high water, unless unduly interfering with public navigation or fishery;

(4) Ordinary repairs and maintenance to existing encroachments;

(5) Duck blinds, rafts, floats or buoys, unless unduly interfering with public navigation or fishery;

(6) Shore or bank stabilization works;

(7) Operations upon navigable waters by the United States Army Corps of Engineers in exercise of their authority over navigation;

(8) Regulation of oyster beds, fish, and other wildlife, or collection of payment for fill materials exercised by the Department of Wildlife and Fisheries;

(9) Any temporary emergency flood control measure;

(10) Any highway related project undertaken by authority of the Department of Transportation and Development;

(11) Any activity by a state mineral lessee in the development and operation of the lease;

(12) The establishment and maintenance of any encroachment by the state agency in the discharge of its lawful duties or functions;

(13) Pipeline rights-of-way granted over state lands by the estate; or

(14) Commercial and noncommercial wharves and piers extending over public lands less than fifty linear feet whose surface area does not exceed one hundred fifty square feet, unless part of another encroachment or system or unduly interfering with public interests, navigation, or fishery.

(15) Projects of the Terrebonne Parish governing authority utilizing the area of Bayou Terrebonne between Terrebonne High School and the Intracoastal Waterway for a public purpose.

(16) Alternative oyster culture permits legally issued by the Department of Wildlife and Fisheries pursuant to R.S. 56:431.2.

Added by Acts 1978, No. 645, §2, eff. July 13, 1978. Amended by Acts 1981, No. 1, §1, eff. May 18, 1981; Acts 1997, No. 222, §1; Acts 2012, No. 293, §1, eff. May 25, 2012.

RS 41:1706

Classes of permits

§1706. Classes of permits

A. Any person desiring to construct, create, alter, improve, extend, or maintain any wharf, pier, dock, bulkhead, landfill, structure, or other encroachment shall obtain a permit from the office, prior to commencing any work, under the procedures established herein. Permits shall be classified as follows:

(1) Class A Permits: Permits for reclamation of lands lost through erosion under R.S. 41:1702(D)(1).

(2) Class B Permits: Permits to construct bulkheads or flood protection structures in proximity to the bank or shore, excluding bank stabilization works and projects to facilitate the development, design engineering, implementation, operation, maintenance, or repair of integrated coastal protection projects by the Coastal Protection and Restoration Authority under R.S. 49: 214.6.1 et seq. or other applicable law or projects for the Atchafalaya Basin Program.

(3) Class C Permits: Permits to construct commercial wharves and piers.

(4) Class D Permits: Permits to construct structures other than wharves or piers, excluding projects to facilitate the development, design engineering, implementation, operation, maintenance or repair of integrated coastal protection projects by the Coastal Protection and Restoration Authority under R.S. 49: 214.6.1 et seq. or other applicable law or projects for the Atchafalaya Basin Program.

(5) Class E Permits: Permits to construct landfills upon non-eroded state lands.

B. All permits shall be subject to the regulations and procedures established by this Chapter and adopted by the division or the office. The requirements and procedures for applicants established in R.S. 41:1702(D)(1) to implement reclamation of eroded lands shall govern reclamation projects; the regulations and procedures established by other Sections of this Chapter shall apply only to Class A Permits when no conflict exists with R.S. 41:1702. Noncommercial piers and wharves shall not be subject to permit requirements.

C. From March 17, 2025, to January 1, 2030, no Class B Permits shall be issued for the construction of a bulkhead in St. Tammany Parish within the area defined by the following coordinates: beginning at 30°25'16.3"N 90°06'51.4"W; proceeding east to 30°25'16.1"N 90°06'45.5"W; then south to 30°25'08.8"N 90°06'46.1"W; then west to 30°25'06.6"N 90°07'04.7"W; then north to 30°25'11.6"N 90°07'04.9"W; then east to 30°25'12.3"N 90°06'51.3"W; and finally north to the point of beginning. This restriction applies to all water bodies within this area, including those locally known as Lake Emfred and Suter Slip.

Added by Acts 1978, No. 645, §2, eff. July 13, 1978; Acts 2001, No. 919, §1; Acts 2018, No. 242, §2; Acts 2018, No. 570, §2, eff. July 1, 2018; Acts 2025, No. 115, §1, eff. June 8, 2025.

RS 41:1707

Permits; applications; documentation and processing

§1707. Permits; applications; documentation and processing

A. Any person or entity desiring to commence operations upon any encroachment as provided in R.S. 41:1706 shall notify the office in writing of his intent to apply for a permit, and the nature thereof. Upon receipt of the applicant's letter, the office shall forward the appropriate application forms to the applicant with a copy of the regulations governing that class permit. The office shall forward a copy of the letter of intent to the local governing authority of the parish or parishes within which the encroachment is planned.

B. Applications shall be completed in triplicate and each copy shall be accompanied by a certified deed of ownership of the lands contiguous to public lands, or if the applicant is not the owner, then a certified copy of the deed or other instrument under which the true owner holds title plus written permission from the owner to carry out the project. If a certified copy of a deed translative of title does not exist, then the office upon good cause shown, may accept some other reasonable evidence of ownership of the adjacent property to be benefited by the encroachment or other lawful proof of applicant's authority to use the same. Where an encroachment is not attached to or does not benefit property contiguous to these lands, the applicant shall submit certified proof of the authority under which he is constructing the encroachment.

C. All permit applications shall be accompanied by clear and legible copies of maps, plans, details and other documentation and correspondence submitted to the United States Army Corps of Engineers and other state, local, or federal agencies which have jurisdiction over the proposed work. Whenever possible, permits shall be granted for minor bulkheads, piers, wharves or structures, upon satisfaction of documentation requirements of the United States Army Corps of Engineers to avoid duplication of efforts by the applicant. Where a permit application contemplates any form of landfill or reclamation, or involves a substantial encroachment upon state lands, the applicant shall provide a plat of survey as contemplated for land reclamation permits under R.S. 41:1702, and any applicable engineering or architectural plans. In all cases, an applicant shall submit additional information, prior to issuance of a permit, where the secretary or attorney general requires the same for consideration of the permit application or resolution of legal issues.

Added by Acts 1978, No. 645, §2, eff. July 13, 1978; Acts 2001, No. 919, §1.

RS 41:1708

Leases to maintain encroachments; exceptions

§1708. Leases to maintain encroachments; exceptions

The office may grant leases for the continuing maintenance of all lawful encroachments upon state lands upon such terms and conditions established as most beneficial to both the state and lessee, in accordance with law. Owners of noncommercial piers and wharves, Class A and Class B encroachments shall not be subject to lease requirements. Any exempt wharf or pier described hereinabove shall be subject to lease if it is determined to unduly interfere with public navigation and fishery or is part of another encroachment or system of encroachments.

Added by Acts 1978, No. 645, §2, eff. July 13, 1978; Acts 2001, No. 919, §1.

RS 41:1709

Terms and conditions of leases

§1709. Terms and conditions of leases

A. Owners or occupiers of encroachments, constructed pursuant to a permit issued hereunder, and those existing upon state lands as of July 13, 1978, which are otherwise lawful except for a permit, shall apply to the office for a lease of the encroachment. No permit shall be required for projects to facilitate the development, design, engineering, implementation, operation, maintenance, or repair of integrated coastal protection projects by the Coastal Protection and Restoration Authority under R.S. 49:214.6.1 et seq. or other applicable law or projects for the Atchafalaya Basin Program. Where the best interests of the state and applicant will be served, a noncompetitive lease shall be granted upon the conditions contained in this Chapter. The term "noncompetitive lease" as used in this Chapter shall not refer to any proposed use for which the lease is granted. All such leases shall be for a cash consideration and such terms and other considerations as deemed most beneficial to the state of Louisiana, considering the type and extent of the encroachment. The cash and other considerations for the leases and renewals shall be based upon linear feet, area, values of the improvement and the public land occupied, degree of impairment to the public interest, and benefit to the owner, be it income, profit or otherwise, that is derived by use of the public lands. The cash and considerations for leases of minor commercial wharves and piers shall be a nominal fee, sufficient to cover the costs of processing and administration by the office. If it is determined that the considerations paid to the state are not reasonable, fair, and adequate value of the lands occupied as of the date of renewal, additional cash, or other considerations may be required of the lessee at that time in order that the state be justly compensated for use of the public lands. All leases shall be reviewed and approved by the attorney general prior to issuance or renewal.

B. Each lease granted under the authority of this Section shall be for a term not to exceed five years. The office shall have the right to renew any such lease but not in excess of ten successive periods under the same or revised terms, but in no case shall any single renewal of such a lease be for a period exceeding five years, nor shall the total number of years of which the land is leased under the same lease exceed fifty. At the end of the fifty-year maximum period, the lessee may apply for a new lease as provided herein.

Added by Acts 1978, No. 645, §2, eff. July 13, 1978. H.C.R. No. 56, 1989 R.S; Acts 2001, No. 919, §1; Acts 2018, No. 570, §2, eff. July 1, 2018.

RS 41:1710

Leases for encroachments wholly upon public lands; leases for encroachments under this Title

§1710. Leases for encroachments wholly upon public lands; leases for encroachments under this Title

A. Where an encroachment is located wholly upon state waterbottoms and not proximate to any bank or shore, a lease may be granted under the procedure, terms and conditions for the leasing of public lands contained in R.S. 41:1213 through 1217, except that any lease of encroachments under this Section shall be limited to an area reasonably required to operate or maintain the encroachment as described in the permit for its construction.

B. Structures and encroachments which are the subject matter of Subsection B of Section 91, Sections 1262 through 1269, and Sections 1501 through 1509 of Title 41 of the Louisiana Revised Statutes of 1950 are exempt from obtaining leases under this Chapter.

Added by Acts 1978, No. 645, §2, eff. July 13, 1978.

RS 41:1711

Leases and permits; general conditions

§1711. Leases and permits; general conditions

A. All permits and leases for encroachments shall be conditioned upon the applicant's or lessee's holding the state and office harmless for all acts or omissions of any person or agent in the construction and maintenance of the encroachment though the lease or permit subsequently expires or is revoked; constructing, creating, and maintaining the encroachment in a state of repair or upkeep and condition has to reasonably conform to criteria and standards adopted to protect the public interest. Permits issued pursuant to these provisions shall be effective for a period not to exceed two years from the date of issuance and shall thereupon expire; all work remaining or any additional work may be completed only upon application in the manner provided by this Chapter. No permit or lease shall be issued unless first approved by the governing authority of the parish in which the encroachment is located, the attorney general, and such other parochial or state agencies, as may have jurisdiction in the premises.

B. Any lease or permit granted pursuant to the provisions of this Chapter shall be subordinate to prior servitudes, permits, and leases and to any future oil, gas, and mineral lease and shall be subject to the laws of the state concerning wildlife and to the rules, regulations, and orders authorized by such laws. Without consent of the lessee, or permittee, the state or agency having authority may grant servitudes and other leases affecting the property which do not interfere unreasonably and permanently with the use of the property by the lessee.

Added by Acts 1978, No. 645, §2, eff. July 13, 1978; Acts 2001, No. 919, §1.

RS 41:1712

Leases and permits; grant or denial; title

§1712. Leases and permits; grant or denial; title

A. Where encroachment, activity, or lease thereof would or does obstruct or hinder the navigability of any waters of the state, impose undue or unreasonable restrains on the state or public rights which have vested pursuant to Louisiana Law, or result in injury to or interference with the public interest or usage, to that extent the application shall be denied, or the encroachment limited.

B. In no instance shall a permit or lease be construed to confirm title or rights with respect to the encroachment relative to other claimants of the riparian property or as between riparian owners. Nothing in this Chapter, the regulations adopted thereunder, nor permits or leases issued shall be construed to divest the state of ownership or any right, title, interest, or power in or over any state lands, except as authorized by Section 3 of Article IX of the Louisiana Constitution of 1974.

C. The office shall adopt timetables and provide an opportunity for hearing, after reasonable notice, for any person aggrieved by a decision to issue or deny a permit or lease, as provided by law, and may establish criteria and standards of construction and maintenance for all types of encroachments, to best protect the public interest. The office may adopt boundaries or lines upon any state lands, not exceeding bounds established by the United States Army Corps of Engineers beyond which no encroachment shall be placed, all in accordance with law.

D. When permit or lease applications involve projects over which the United States Army Corps of Engineers, the Department of Conservation and Energy, or any other federal or state agency asserts jurisdiction, and the governmental agencies have, by public notice or regulations, established timetables for receipt of objections, public hearings, or other proceedings, the office, to least inconvenience the applicant and prevent multiple hearings, shall adopt and conform to the timetables or evidentiary requirements and shall attempt to coordinate any public hearing with the agencies whenever feasible. When the United States Army Corps of Engineers or other interested agencies do not assert jurisdiction over a given project, thirty days from date of published notice by the applicant shall be allowed for receipt of objections in writing by the office.

Added by Acts 1978, No. 645, §2, eff. July 13, 1978; Acts 2001, No. 919, §1; Acts 2023, No. 150, §15, eff. Jan. 10, 2024.

RS 41:1713

Leases and permits, cause for cancellation or revocation

§1713. Leases and permits, cause for cancellation or revocation

A. Abandonment of an encroachment, or noncompliance with the law, this Chapter, or regulations and standards adopted, shall result in the revocation or cancellation of any permit or lease unless the persons responsible remedy the problem or violation within thirty days of written or published notice, by the division or office, as applicable, specifying the violation. The period for compliance may be extended for additional thirty-day periods up to one hundred twenty days total, upon a showing by the persons responsible of inability to comply by reason of extensive work required. Where force majeure prevents the persons responsible from complying with the division's or the office's demand, the thirty-day corrective period shall be suspended until such date when work becomes reasonably possible.

B. If the violation is such that no remedy is possible, or an immediate and substantial hazard to public health, safety and welfare exists, or the persons responsible refuse or fail to correct the problem, within the thirty days provided, any permit or lease for the encroachments involved shall be cancelled and revoked. Any construction or maintenance of an encroachment not in substantial compliance with this Chapter shall be an absolute nullity and no rights shall vest in the persons responsible or be acquired by prescription.

Added by Acts 1978, No. 645, §2, eff. July 13, 1978; Acts 2001, No. 919, §1; Acts 2018, No. 242, §2.

RS 41:1714

Sanctions for violations; exceptions

§1714. Sanctions for violations; exceptions

A. The attorney general shall, by injunctive or other relief, prevent the unlawful creation of encroachments without permit, or which by construction or continuing existence, create a hazard to the public interests. Any encroachment constructed or maintained without permit or lease, or abandoned shall be a nuisance and an obstruction and embarrassment to the public use and interest.

B. The attorney general, by court action, may compel or effect the removal or demolition of the encroachment at the expense of the parties responsible for their creation without any compensation and the parties responsible may be sentenced to pay all damages which have been occasioned by the creation or existence of the encroachment. The state may elect to keep the encroachment for the benefit of the public, but only upon reimbursement to the persons responsible for the cost of materials and labor required to construct the same. In no cases shall the state be compelled to suffer the existence of unlawful encroachments described herein. All remedies existing in law or equity in favor of landowners shall likewise be available to the state for enforcement of this Chapter.

C. In those cases where it is determined that an encroachment is constructed or maintained without lease or permit by reason of unintentional mistake or error, resulting in a failure to apply to the office, the persons responsible shall have thirty days from written or published notice to complete application to the office before appropriate action is instituted by the attorney general.

Added by Acts 1978, No. 645, §2, eff. July 13, 1978; Acts 2001, No. 919, §1.

RS 41:1731

Legislative findings

CHAPTER 14-A. LEASES FOR PRODUCTION OF WIND ENERGY

§1731. Legislative findings

To ensure the viability of the state's natural resources, to provide a continuing energy source for the citizens and businesses of Louisiana, to promote economic development through job retention and creation in Louisiana, and to promote a clean and lasting environment, the Louisiana Legislature finds that the state, through the Department of Conservation and Energy, should promote the generation and use of the renewable energy derived from wind.

Acts 2005, No. 481, §1, eff. July 12, 2005; Acts 2023, No. 150, §15, eff. Jan. 10, 2024.

RS 41:1732

Lease authority and royalties

§1732. Lease authority and royalties

A. Notwithstanding any other provision of law except Subsection B of this Section, the State Mineral and Energy Board, in conjunction with the secretary of the Department of Conservation and Energy, shall have the authority to lease for the exploration, development, or production of energy from wind any lands belonging to the state or the title to which is held by the state, including water bottoms, vacant state lands, and lands adjudicated to the state at tax sale, except lands that form any portion of state highway right-of-way. The leases shall be granted through a public bid process which shall be promulgated by the adoption of rules and regulations by the State Mineral and Energy Board. All bonuses, rentals, royalties, payments, or other sums due the state as the lessor under the terms of leases granted under the provisions of this Subsection for the exploration, development, and production of energy from wind shall be paid to the office of mineral resources. Revenues received from these leases by the office of mineral resources shall be remitted to the state treasurer who, after compliance with Article VII, Section 9 of the Constitution of Louisiana, shall credit an amount equal to twenty-five percent of the revenues to the Wetlands Conservation and Restoration Fund and an amount equal to the seventy-five percent to the state general fund. The funds generated under leases granted under the provisions of this Section shall not be included in calculations for the Budget Stabilization Fund.

B. Notwithstanding any other provision of law, the State Mineral and Energy Board, with the approval of the secretary of the Department of Wildlife and Fisheries, shall have the authority to lease for the exploration, development, or production of energy from wind, any properties under the jurisdiction of the Wildlife and Fisheries Commission or the Department of Wildlife and Fisheries, including but not limited to wildlife management areas and refuges. The leases shall be granted through a public bid process which shall be promulgated by the adoption of rules and regulations by the State Mineral and Energy Board. All bonuses, rentals, royalties, payments or other sums payable to the state as the lessor under the terms of leases granted under the provisions of this Subsection for the exploration, development, and production of energy from wind shall be deposited in the Wildlife and Fisheries Conservation Fund.

C. Any lease granted under the provisions of this Chapter shall require a decommissioning plan for the end of the facility's expected life or upon circumstance that would require closure of the facility. The decommissioning plan shall include the estimated cost of site closure and remediation that includes removing the wind energy production facility along with any necessary infrastructure facilities and restoring the property to as near as reasonably possible to the condition of the property prior to the commencement of construction of the facility. Additionally, the leases shall be subject to the same decommissioning rules and regulations as provided by the provisions of Subpart I of Part 585 of Subchapter B of Chapter V of Title 30 of the Code of Federal Regulations (30 CFR 585.900 et seq.) to the extent they are not inconsistent with the provisions of this Section or any rules or regulations promulgated pursuant to this Chapter.

Acts 2005, No. 481, §1, eff. July 12, 2005; Acts 2009, No. 196, §6, eff. July 1, 2009; Acts 2022, No. 443, §2; Acts 2023, No. 150, §15, eff. Jan. 10, 2024.

RS 41:1733

Award of state wind leases

§1733. Award of state wind leases

A. All proposals for lease of state lands for the exploration, development, or production of energy from wind shall be submitted to the State Mineral and Energy Board. The State Mineral and Energy Board shall then submit to the state land office and the Department of Wildlife and Fisheries the portion of the proposal which contains the location of the proposed lease. The state land office and the Department of Wildlife and Fisheries shall review the proposed location of the lease and shall certify to the State Mineral and Energy Board whether or not there are other leases of any kind at the proposed lease location. If there are other leases, the state agencies shall attach to the certification a copy of all other leases at the proposed lease location. The state land office and the Department of Wildlife and Fisheries are hereby authorized to charge the applicant reasonable fees to fulfill the requirements of this Section. Any such fees shall be promulgated through rules and regulations adopted in accordance with the Administrative Procedure Act.

B. After certification by the other state agencies, the State Mineral and Energy Board shall forward the applications and certification with copies of any other leases on the proposed location to the secretary of the Department of Conservation and Energy, who shall evaluate whether the lands proposed for lease best support the exploration, development, or production of energy from wind. In evaluating the proposed lease, the secretary of the Department of Conservation and Energy shall consider the capability of the lease proposal to fulfill the intent of this Chapter, the environmental impact of the placement of wind turbines and other equipment necessary for the exploration, development, or production of energy from wind, the impact of the proposed lease on any other leases, including leases for the exploration or production of subsurface deems appropriate. When evaluating the proposed lease, the secretary of the Department of Conservation and Energy shall consult with the Department of Wildlife and Fisheries when the proposed lease lies within the confines of properties under the jurisdiction of the Louisiana Wildlife and Fisheries Commission or the Department of Wildlife and Fisheries and may consult any other state agency or governmental entity that may have jurisdiction within the confines of the proposed lease.

C. If the secretary of the Department of Conservation and Energy determines that a proposed lease for the exploration, development, or production of energy from wind is appropriate, the secretary shall recommend to the State Mineral and Energy Board that the board conduct a public bid process. If the secretary of Department of Conservation and Energy determines that a proposed lease for the exploration, development, or production of energy from wind is not appropriate, the secretary shall notify the State Mineral and Energy Board who shall then notify the applicant that no bid process shall occur.

D. A lease may be granted in whole or in part. The State Mineral and Energy Board has authority to accept the bid it finds is most advantageous to the state and may lease upon whatever terms it considers proper. Such lease shall include a provision permitting the state, at its option, to take in kind all or any of the portion due it as royalty.

Acts 2005, No. 481, §1, eff. July 12, 2005; Acts 2008, No. 580, §5; Acts 2009, No. 196, §6, eff. July 1, 2009; Acts 2022, No. 443, §2; Acts 2023, No. 150, §15, eff. Jan. 10, 2024.

RS 41:1734

Powers and duties of the secretary of the Department of Conservation and Energy

§1734. Powers and duties of the secretary of the Department of Conservation and Energy

A. The secretary of the Department of Conservation and Energy shall promulgate rules and regulations pursuant to the Administrative Procedure Act to implement the provisions of this Chapter and to institute reasonable fees for services performed by the department. The rules and regulations shall include all provisions necessary to accomplish the intent of the legislature as stated in this Chapter and shall provide for the following:

(1) Criteria for setting the annual rent or royalty amounts for leases executed pursuant to this Chapter.

(2) Criteria for setting a primary term for leases and the necessary wind energy production or other actions by the lessee to continue the lease beyond the primary term. The rules and regulations shall also provide for the release of acreage at the end of the primary term on that portion of the lease where none of the necessary wind energy production or other actions occur.

(3) Requirements for financial security to ensure proper closure of the site pursuant to the decommissioning plan.

(4) Requirements for determining that if no responsible party can be located or such party has failed or is financially unable to undertake decommissioning required by the lease and that no energy has been produced from the facility from wind for two years. These requirements shall include notice to the last operator of record.

B. The secretary may expend sums payable to the department from the financial security required by the rules and regulations promulgated pursuant to this Section and enter into contracts for the purpose of restoration of wind energy sites pursuant to the terms of the lease or when the secretary has determined there is no responsible party pursuant to this Section. Restoration of a wind energy site includes removing the wind energy production facility along with any necessary infrastructure facilities and restoring the property to as near as reasonably possible to the condition of the property prior to the commencement of construction of the facility.

Acts 2005, No. 481, §1, eff. July 12, 2005; Acts 2022, No. 443, §2; Acts 2023, No. 150, §15, eff. Jan. 10, 2024.

RS 41:1751

Repealed by Acts 2006, No. 713, §4, eff. July 1, 2006.

§1751. Repealed by Acts 2006, No. 713, §4, eff. July 1, 2006.

RS 41:1752

Repealed by Acts 2006, No. 713, §4, eff. July 1, 2006.

§1752. Repealed by Acts 2006, No. 713, §4, eff. July 1, 2006.

RS 41:1753

Repealed by Acts 2006, No. 713, §4, eff. July 1, 2006.

§1753. Repealed by Acts 2006, No. 713, §4, eff. July 1, 2006.